

TEXAS TRANSPORTATION COMMISSION

VARIOUS Counties

MINUTE ORDER

Page 1 of 2

VARIOUS Districts

To facilitate the safety and movement of traffic and to preserve the financial investment of the public in its highways, the Texas Transportation Commission (commission) finds that public necessity requires the laying out, opening, constructing, reconstructing, maintaining, widening, straightening, extending, and operating of the highway facilities listed below as a part of the State Highway System (highway system).

As provided for by Transportation Code, Chapter 203, Subchapter D, including Sections 203.051, 203.052, and 203.054, the commission finds and determines that each of the parcels of land listed below, and more particularly described in the attached Exhibits (parcels), are necessary or convenient as a part of the highway system to be constructed, reconstructed, maintained, widened, straightened, or extended (constructed or improved) and it is necessary to acquire fee simple title in the parcels or such lesser property interests as set forth in the attached Exhibits.

The commission finds and determines that the highway facilities to be constructed or improved on the parcels identified and listed below under "CONTROLLED ACCESS" are designated as a Controlled-Access Highway in accordance with Transportation Code, Section 203.031; and where there is adjoining real property remaining after acquisition of a parcel, the roads are to be constructed or improved as a part of the highway facility with the right of ingress and egress to or from the remaining real property adjoining the highway facility to be permitted or denied, as designated and set forth on each of the attached Exhibits A - R. Where there is adjoining real property remaining after acquisition of a parcel with respect to the highway facilities to be constructed or improved on the parcels identified as listed below under "NON-CONTROLLED ACCESS," roads are to be constructed or improved as a part of the highway facility with the right of ingress and egress to or from the remaining real property adjoining the highway facility to be permitted or denied, as designated and set forth on each of the attached Exhibits 1 - 11, in accordance with Transportation Code, Sections 203.002 and 203.003.

The commission finds and determines that condemnation of the parcels is required.

IT IS THEREFORE ORDERED that the initiation of condemnation proceedings for the parcels is adopted and authorized by a single order for the parcels, and this first vote by the commission applies to all of the parcels.

IT IS FURTHER ORDERED that the executive director is hereby authorized to proceed to condemnation on the parcels and directed to transmit or cause to be transmitted this request of the commission to the Office of the Attorney General to file or cause to be filed against all owners, lienholders, and any owners of any other interests in the parcels, proceedings in condemnation to acquire in the name of and on behalf of the state, fee simple title to each parcel or such lesser estates or property interests as are more fully described in each of the attached Exhibits, save and excepting oil, gas, and sulfur, as provided by law, as follows:

TEXAS TRANSPORTATION COMMISSION

VARIOUS Counties

MINUTE ORDER

Page 2 of 2

VARIOUS Districts

NON-CONTROLLED ACCESS

<u>COUNTY</u>	<u>HIGHWAY</u>	<u>EXHIBIT</u>	<u>ROW CSJ NO.</u>	<u>PARCEL</u>
Collin	FM 455	8	0816-04-046	29
El Paso	SS 276	6	0608-01-002	8
El Paso	SS 276	11	0608-01-002	7
Jefferson	FM 365	4	0932-01-099	11
Lubbock	FM 1730	9	1344-02-020	18
Montgomery	FM 2978	10	3050-02-022	1
Nueces	SH 358	7	0617-01-172	8
Nueces	SH 358	1	0617-01-172	14
Upshur	SH 155	5	0520-02-047	30
Upshur	SH 155	3	0520-02-048	10
Upshur	SH 155	2	0520-02-048	9

CONTROLLED ACCESS

<u>COUNTY</u>	<u>HIGHWAY</u>	<u>EXHIBIT</u>	<u>ROW CSJ NO.</u>	<u>PARCEL</u>
Angelina	US 59	C	0176-02-112	22
Bell	IH 35	L	0015-04-083	83
Bell	IH 35	M	0015-04-083	109
Bell	IH 35	K	0015-04-083	31
Bell	IH 35	E	0015-14-123	92
Bell	IH 35	D	0015-14-123	98
Dallas	SH 121	R	0364-02-020	16
Denton	IH 35E	P	0196-02-115	171B
Harris	IH 45	N	0500-03-546	310
Harris	IH 610	A	0271-14-225	321
Harris	IH 610	O	0271-14-225	311
Harris	IH 610	B	0271-14-225	301
Maverick	FM 1021	Q	1229-01-053	2
McLennan	IH 35	G	0014-08-083	62
McLennan	IH 35	F	0014-08-083	4,4E
McLennan	IH 35	I	0015-01-220	52B
McLennan	IH 35	J	0015-01-220	59
McLennan	IH 35	H	0015-01-220	52A

Submitted and reviewed by:

Director, Right of Way Division

Recommended by:

Executive Director

113056 MAR 29 12

Minute
Number

Date
Passed

County: Nueces
Highway: SH 358
RCSJ: 0617-01-172
CCSJ: 0617-01-177
Project Limits From: Nile Drive
To: Staples Street

Page 1 of 3
Revision Date: May 1, 2011

Field Notes for Parcel 14

Being 0.014 of an acre (599 square feet) of land, more or less, situated in the "Rincon Del Oso" Enriquez Villareal Survey (Abstract No. 1) in Nueces County, Texas and being out of and a part of Lot 1A of the Lots 1A and 2A Woodlawn Annex Unit 3 Subdivision of the City of Corpus Christi, Nueces County, Texas, recorded in Volume 39, Page 116 of the Map Records of said Nueces County, said Lot 1A and the southwesterly 60.5 feet of Lot 2A of said Woodlawn Annex Unit 3 (8.171 acres total) described in a Special Warranty Deed with Vendor's Lien from D & R Real Estate Properties, Inc. to Padre Island Associates, Ltd., dated July 1, 1982, recorded in Volume 1831, Page 288 of the Nueces County Deed Records. All deed references herein are to said Nueces County Deed Records unless otherwise noted and all lot references herein are to said Woodlawn Annex Unit 3 Subdivision unless otherwise noted. All references herein to Centerline Stations are to the reestablished centerline of the Texas Highway Department SH 358 (Lexington Boulevard) Right-of-Way Map dated October, 1957. All references herein to Centerline Stations are to the reestablished centerline of the Texas Highway Department SH 358 (Lexington Boulevard) Right-of-Way Map dated October, 1957. Metes and bounds description of said 0.014 of an acre parcel is as follows:

COMMENCING at a 3/4" iron pipe found for the East corner of the Padre Island Associates, Ltd. 60.5-foot by 190-foot tract (Tract II, Volume 1831, Page 288 of said Nueces County Deed Records), same being in the northwest line of Block 4 of the Woodlawn Estates Subdivision (Volume 10, Page 34 of said Map Records) and in the southeast line of said Lot 2A, thence as follows:

South 28 deg. 40 min. 33 sec. West (called South 29 deg. 01 min. 30 sec. West) along the line common to said Lot 2A and said Block 4 of Woodlawn Estates, at 60.5 feet pass a point for the southeast corner of said Lot 2A, said point being the easterly northeast corner of said Lot 1A, and then continuing along the line common to said Lot 1A and said Block 4 of Woodlawn Estates, at 909.31 feet pass a point for the North corner of Lot 12, Block 4 of said Woodlawn Estates, and then continuing along the line common to said Lot 12 and said Lot 1A, for a total distance of 1,123.90 feet to a TxDOT Type III right-of-way marker set for the easterly southeast corner of said 0.014 of an acre parcel, same being in the proposed northeasterly right-of-way line of SH 358 and 85.41 feet right of SH 358 Right-of-Way Centerline Station 309 + 28.52, same also having State Plane Coordinates of $x = 1,354,597.16$ and $y = 17,145,616.93$ and being the **POINT OF BEGINNING**;

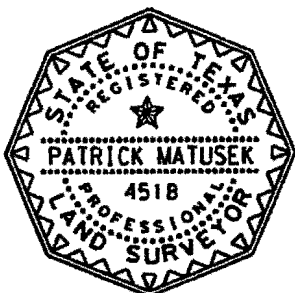
Parcel 14
Page 2 of 3
Revision Date: May 1, 2011

- 1) **THENCE** South 28 deg. 40 min. 33 sec. West continuing along said line common to Lots 12 and 1A, a distance of 5.41 feet to a point for the southwest corner of said Lot 12, said point being the South corner of said Lot 1A and the southerly southeast corner of said 0.014 of an acre parcel, said point also being in the existing northeasterly right-of-way line of SH 358;
- 2) **THENCE** North 61 deg. 22 min. 56 sec. West along said existing northeasterly right-of-way line of SH 358 and along the southwest line of said Lot 1A, a distance of 221.47 feet to a TxDOT Type II right-of-way marker set for the northwest corner of said 0.014 of an acre parcel, same being 80.00 feet right of SH 358 ROW Centerline Station 311 + 50.00;
- 3) **THENCE** South 62 deg. 46 min. 52 sec. East along said proposed northeasterly right-of-way line of SH 358 and severing said Lot 1A, a distance of 221.55 feet to the **POINT OF BEGINNING**, containing 0.014 of an acre (599 square feet) of land, more or less. All bearings are on the Texas State Plane Coordinate System, NAD 83 (1993 Adj.) South Zone. All distances and coordinates are surface and may be converted to grid by dividing by TxDOT conversion factor of 1.00002.

Access will be permitted to the highway facility from the remainder of the property lying northeast of SH 358 at the approximate location of existing legally permitted driveway locations (which will be rebuilt and reestablished at the new right of way property line by the State of Texas as part of the highway improvement project associated with this right of way parcel's acquisition).

Access will also be permitted to the highway facility from the remainder of the property lying northeast of SH 358 at such additional future locations as may be authorized by the driveway permit application process, provided such future requested locations comply with design and access management manual guidelines.

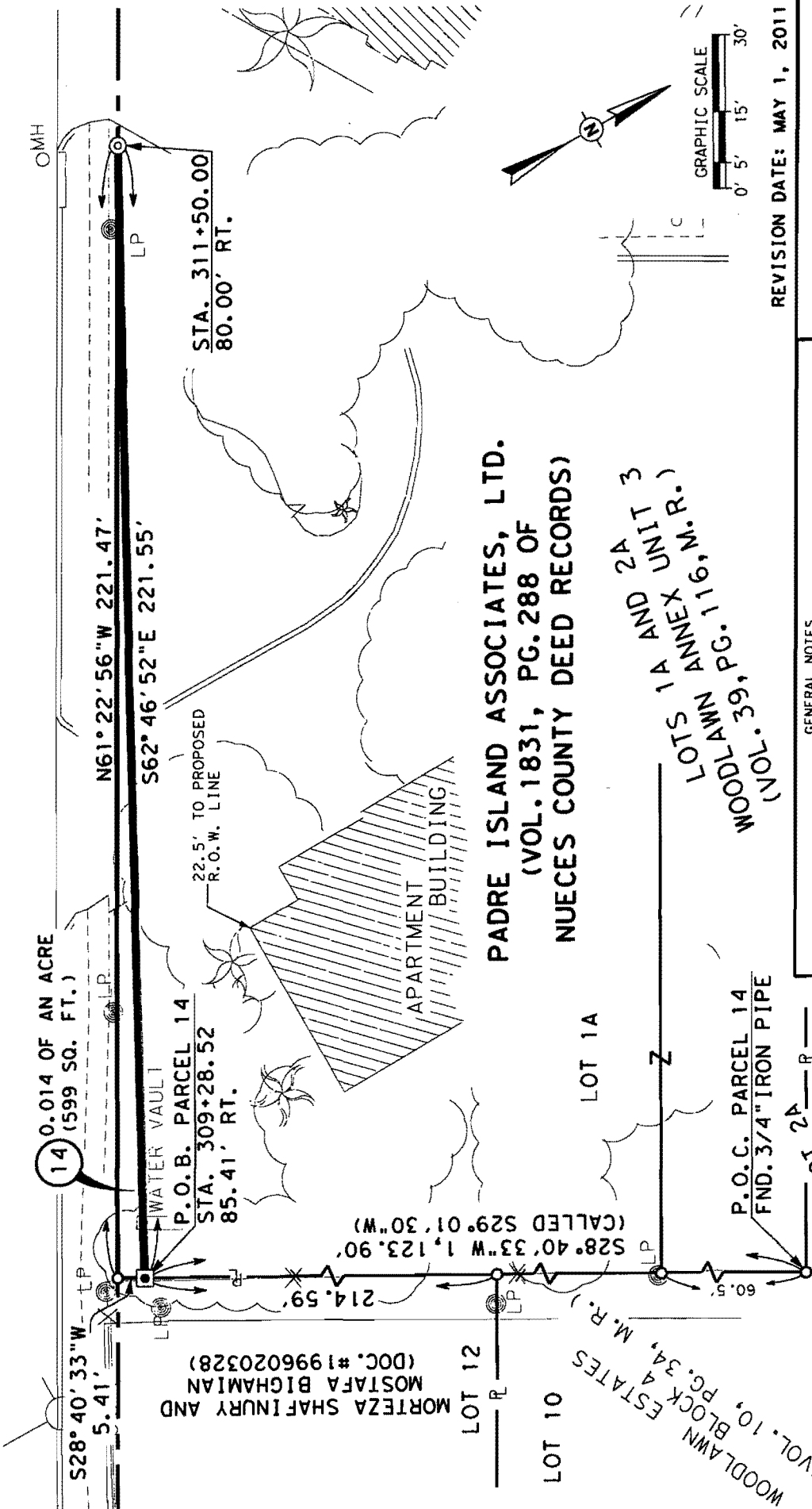
I hereby certify the foregoing legal description was prepared from a survey performed on the ground and that it correctly represents the facts found at the time of the survey. A survey plat of even date herewith accompanies this legal description.



Patrick C. Matusek

Patrick C. Matusek
Registered Professional Land Surveyor
License No. 4518, State of Texas
Surveyed July 15, 2006

SH 358 (S.P.I.D.)
(VOL. 270, PG. 96 OF
NUECES COUNTY DEED RECORDS)



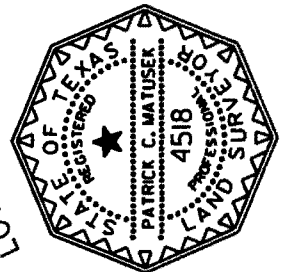
REVISION DATE: MAY 1, 2011

MEP MAVERICK
ENGINEERING, INC.
318 EAST MORRIS STREET, SUITE 100
PHOENIX, ARIZONA 85004
PHONE (602) 233-2725 FAX (602) 233-2716

- GENERAL NOTES**
- ALL DEED REFERENCES ARE TO NUECES COUNTY OFFICIAL RECORDS UNLESS OTHERWISE NOTED.
 - ALL BEARINGS ARE ON THE TEXAS STATE PLANE COORDINATE SYSTEM, NAD 83 (1993 ADJ.) SOUTH ZONE. ALL DISTANCES AND COORDINATES SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY TxDOT CONVERSION FACTOR OF 1.00002.
 - CURVE LENGTHS SHOWN ARE ARC LENGTHS.

LEGEND	
---	EASEMENT LINE
---	LINE NOT TO SCALE
---	EXISTING FENCE
---	EXISTING R.O.W. LINE
---	PROPOSED R.O.W. LINE
---	PROPERTY LINE
---	PARCEL NUMBER

DIST. NAME	SURVEY PLAT OF	COUNTY
CHRISTI	PARCEL 14	NUECES
	CCSJ 0617-01-177	HWY. NO.
	RCSJ 0617-01-172	SH 358
	0.014 OF AN AC.	SHEET
	ACQUISITION (599 SQ.FT.)	3 OF 3

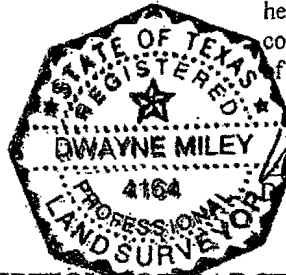


I HEREBY CERTIFY THIS SURVEY WAS PERFORMED ON THE GROUND, AND THAT THIS PLAT CORRECTLY REPRESENTS THE FACTS FOUND AT THE TIME OF THE SURVEY. A LEGAL DESCRIPTION OF EVEN SURVEY DATE HEREWITH ACCOMPANIES THIS PLAT.

Patrick C. Matusek
PATRICK C. MATUSSEK
REGISTERED PROFESSIONAL LAND SURVEYOR
LICENSE NO. 4518, STATE OF TEXAS
SURVEYED JULY 15, 2006

COUNTY: UPSHUR
HIGHWAY: SH 155
CSJ NO. 520-02--037, 038 & 039 (Construction)
CSJ NO. 520-02-046,047 & 048 (ROW)
LIMITS: HWY 80 TO SABINE RIVER

I, D. Dwayne Miley, Registered
Professional Land Surveyor, do
hereby verify that this description
correctly represents the results
of a survey made on the ground.



Dwayne Miley R.P.L.S. 4164

2/7/11

PROPERTY DESCRIPTION FOR PARCEL 9

Being 0.120 of an acre of land, more or less, being out of a called 1.337 acre tract of land described in a deed from Jessie L. Bates and wife, Shirley K. Bates to Joe David Hill, Et Ux and recorded in Volume 381 Page 657 of the Upshur County Deed Records (UCDR), situated in the William McClung Survey A-339, Upshur County, Texas on Texas State Highway Number 155; said 0.120 of an acre of land more particularly described by metes and bounds as follows:

COMMENCING at a 3/4" Iron Rod Found marking the South corner of said 1.337 acre tract; THENCE as follows:

N 46° 40' 08" W along the common boundary line of said 1.337 acre tract and a called 0.908 of an acre tract owned by Aretha Jeffery and recorded in Volume 417 Page 105 UCDR, a distance of 214.97 feet to a 1/2" Iron Rod Set in the proposed East right-of-way line of said State Highway 155 and being the POINT OF BEGINNING of the herein described tract; said 1/2" Iron Rod being located 94.36 feet right of and at a right angle from the proposed survey centerline of State Highway 155, hereinafter referred to as "survey centerline", at survey centerline station 738+28.86 and being located at the coordinates of 6,907,007.4564 feet North and 3,006,180.6435 feet East;

- 1.) THENCE N 46° 40' 08" W, along the common boundary line of said 0.908 of an acre tract and said 1.337 acre tract, a distance of 17.11 feet to a 1/2" Iron Rod Set in the existing East right-of-way line of said State Highway 155; said 1/2" Iron Rod being 77.27 feet right of and at a right angle from survey centerline station 738+28.40;
- 2.) THENCE N 35° 15' 57" E, along the existing East right-of-way line of said State Highway 155, a distance of 68.47 feet to a 1/2" Iron Rod Set in the existing East right-of-way line of said State Highway 155; said 1/2" Iron Rod being 65.85 feet right of and at a right angle from survey centerline station 738+95.91;

- 3.) THENCE N 44° 36' 29" E, continuing along the existing East right-of-way line of said State Highway 155, a distance of 168.25 feet to a ½" Iron Rod Set in the existing East right-of-way line of said State Highway 155; said ½" Iron Rod being 65.00 feet right of and at a right angle from survey centerline station 740+64.16;
- 4.) THENCE S 43° 44' 32" E, along the common boundary line of said 1.337 acre tract and a called 1.00 acre tract owned by Joe Hill, et ux and recorded in Volume 148 Page 322 UCDR, a distance of 20.01 feet to a ½" Iron Rod Set in the proposed East right-of-way line of said State Highway 155; said ½" Iron Rod being 85.00 feet right of and at a right angle from survey centerline station 740+63.68;
- 5.) THENCE S 44° 54' 34" W, along the proposed East right-of-way line of said State Highway 155, a distance of 13.65 feet to a TxDOT TYPE II Right Of Way Monument Set in the proposed East right-of-way line of said State Highway 155; said TxDOT TYPE II Right Of Way Monument being 85.00 feet right of and at a right angle from survey centerline station 740+50.00;
- 6.) THENCE S 42° 27' 39" W, continuing along the proposed East right-of-way line of said State Highway 155, a distance of 221.36 feet to the POINT OF BEGINNING and containing 0.120 of an acre of land, more or less.

NOTE: Bearings, Distances, and Coordinates shown are GRID coordinates based on the Texas State Plane Coordinate System of 1983 (NAD83), North Central Zone, based on NGS Monuments Wilkins W Base Reset (CR1236), Tyler Tx Cors Arp (TXTY/DG5394), Marshall Tx Cors Arp (TXMA/DG 3772) and Palestine Cors Arp (PATT/AF 9638).

This description is based on the Right-Of-Way Map of State Highway 155, and the individual plat titled "PARCEL NO. 9" made by D. Dwayne Miley, Registered Professional Survey in April, 2010.

NUMBER	DIRECTION	DISTANCE
L1	N 46°40'08" W	17.11 FT
L2	N 35°15'57" E	68.47 FT
L3	S 43°44'32" E	20.01 FT
L4	S 44°54'34" W	13.65 FT

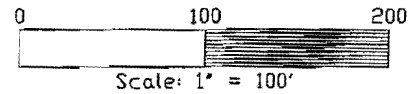
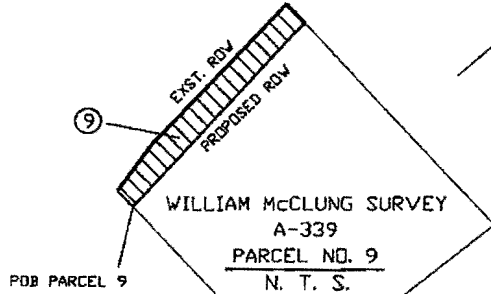
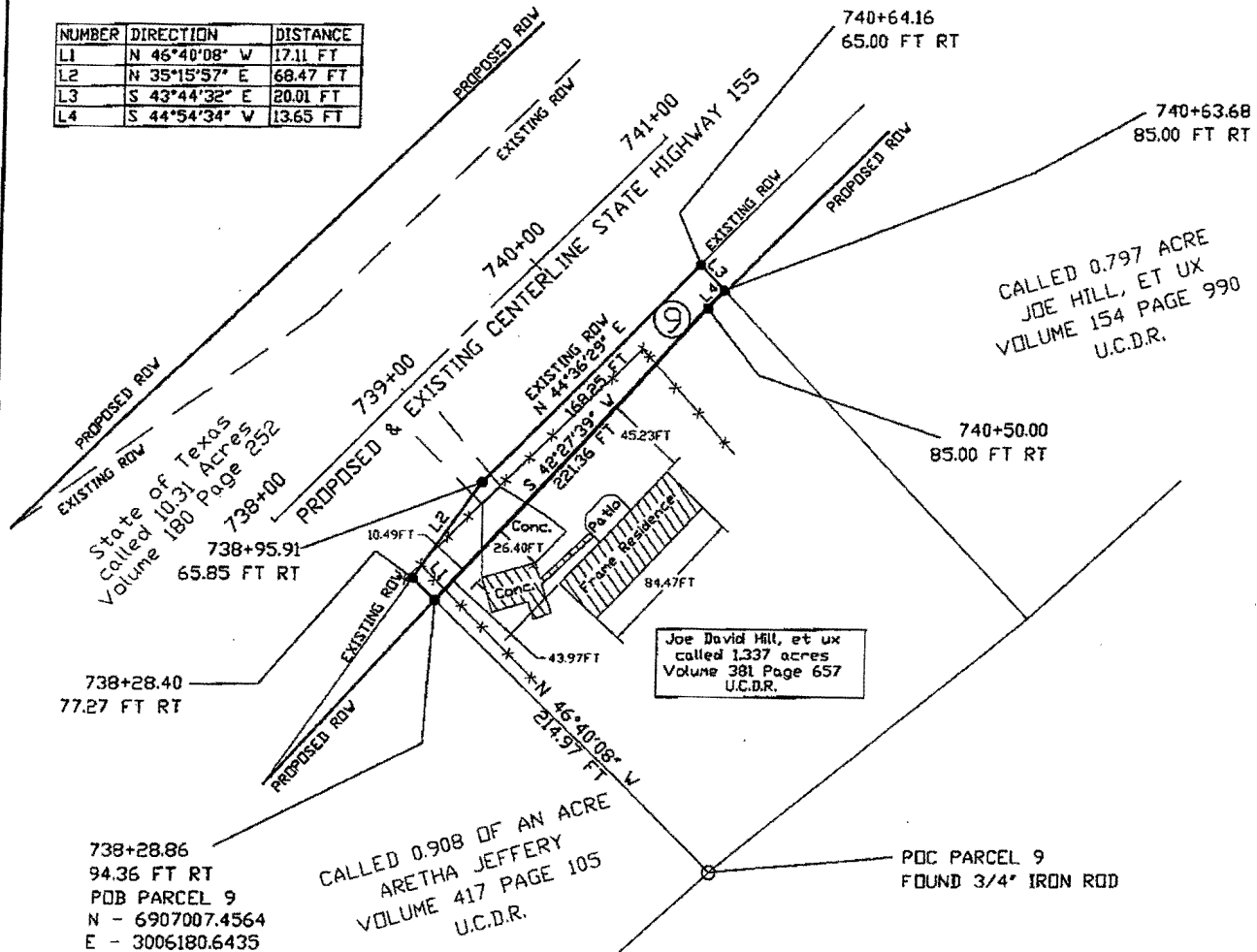


EXHIBIT "A"
PAGE 3 OF 3

- PROPERTY CORNER
 - SET TxDOT TYPE II CONC. MON. W/BRONZE DISK UNLESS OTHERWISE NOTED
 - SET 1/2" IRON ROD
- U.C.D.R. UPSHUR COUNTY DEED RECORDS
WL. WATERLINE

PARCEL NO.	AREA (acres)		
	EXISTING	TO BE ACQUIRED	REMAINING
9	1.337	0.120	1.217

PARCEL NO. 9
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
JOE DAVID HILL

STATE HWY 155 UPSHUR, COUNTY
CSJ 0520-02-037, 038 & 039 (CONSTRUCTION)
CSJ 0520-02-046, 047 & 048 (ROW)

SCHAUMBURG & POLK, INC. APRIL 1, 2010
SCALE: 1"=100'

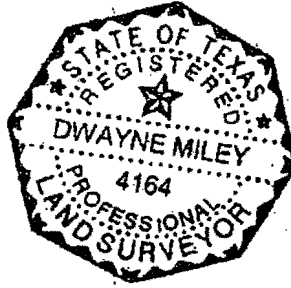
NOTES:
1. SEE ROW MAP.
2. REFER TO S. H. 155 RIGHT-OF-WAY MAP, FIELD NOTES TITLED PARCEL NO. 9 PREPARED BY THE UNDERSIGNED.
3. BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE GRID COORDINATES BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM OF 1983 (NAD83), NORTH CENTRAL ZONE BASED ON NGS MONUMENTS WILKINS W BASE Reset (CR1236), TYLER TX CORP ARP (TXMA/DC3384), MARSHALL TX CORP ARP (TXMA/DC3772) AND PALESTINE CORP ARP (PAT/AF 9638).

I, D. DWAYNE MILEY, REGISTERED PROFESSIONAL LAND SURVEYOR, DO HEREBY VERIFY THAT THIS PLAT REPRESENTS THE RESULTS OF A SURVEY MADE ON THE GROUND.

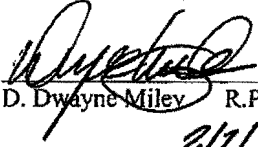


[Signature] 2/7/11
DATE

COUNTY: UPSHUR
HIGHWAY: SH 155
CSJ NO. 520-02--037, 038 & 039 (Construction)
CSJ NO. 520-02-046,047 & 048 (ROW)
LIMITS: HWY 80 TO SABINE RIVER



I, D. Dwayne Miley, Registered Professional Land Surveyor, do hereby verify that this description correctly represents the results of a survey made on the ground.


D. Dwayne Miley R.P.L.S. 4164
2/1/11

PROPERTY DESCRIPTION FOR PARCEL 10

Being 0.059 of an acre of land, more or less, being out of a called 0.797 acre tract of land described in a deed from Jesse L. Bates and wife, Shirley Bates to Joe Hill and wife, Jennie Hill and recorded in Volume 154 Page 990 of the Upshur County Deed Records (UCDR), situated in the William McClung Survey A-339, Upshur County, Texas on Texas State Highway Number 155; said 0.059 of an acre of land more particularly described by metes and bounds as follows:

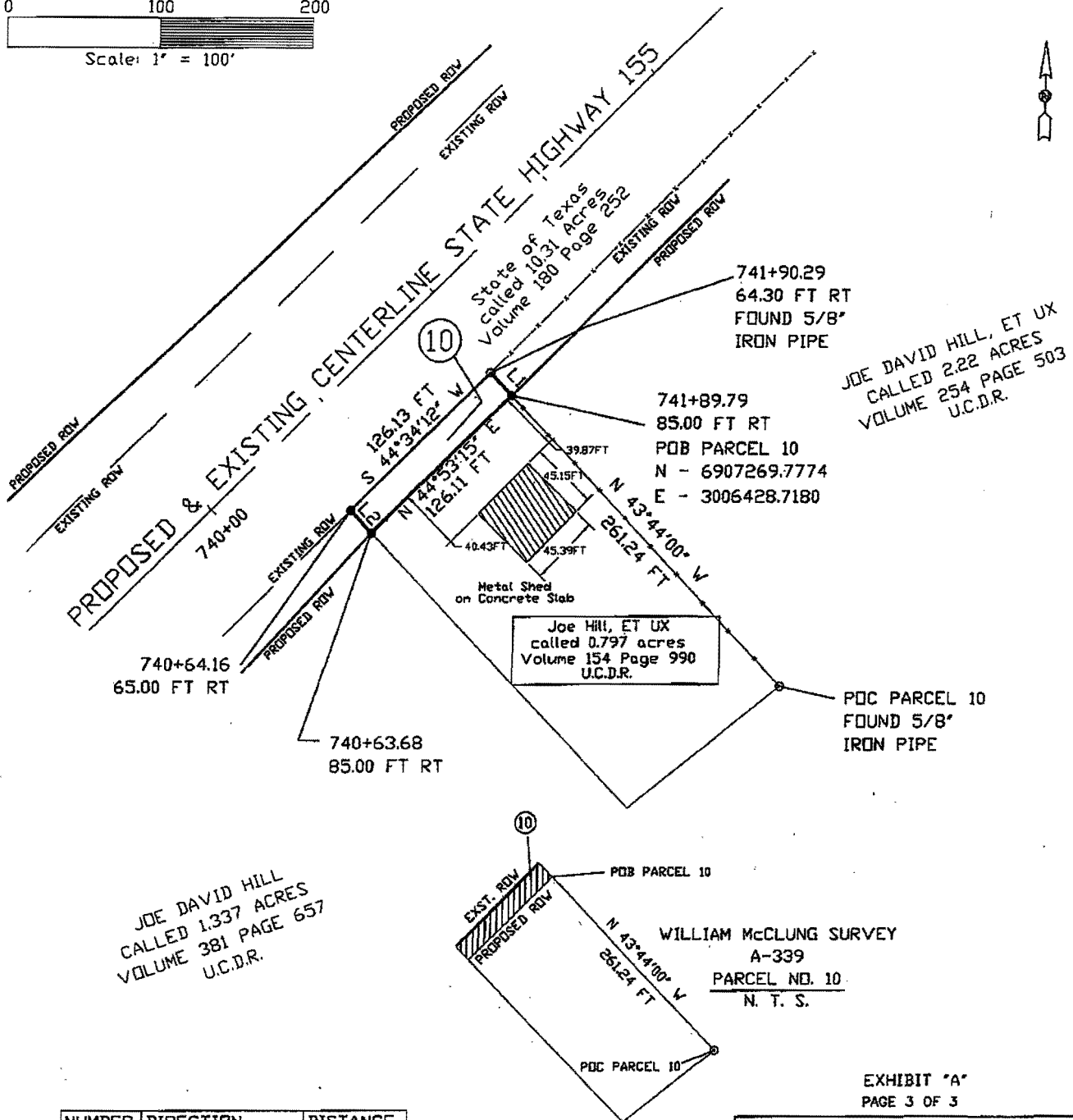
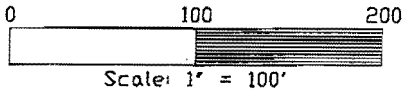
COMMENCING at a 5/8" Iron Pipe Found marking the East corner of said 0.797 acre tract and being the South corner of a called 2.22 acre tract owned by Joe David Hill, et ux and recorded in Volume 254 Page 503 (UCDR); THENCE as follows:

- N 43° 44' 00" W along a common boundary line of said 2.22 acre tract and said 0.797 acre tract; a distance of 261.24 feet to a 1/2" Iron Rod Set in the proposed East right-of-way of State Highway 155 and being the POINT OF BEGINNING of the herein described tract; said 1/2" Iron Rod being located 85.00 feet right of and at a right angle from the proposed survey centerline of State Highway 155, hereinafter referred to as "survey centerline", at survey centerline station 741+89.79 and being located at the coordinates of 6,907,269.7774 feet North and 3,006,428.7180 feet East;
- 1.) THENCE N 43° 44' 00" W, continuing along the common boundary line of said 0.797 acre tract and said 2.22 acre tract, a distance of 20.70 feet to a 5/8" Iron Pipe Found in the existing East right-of-way line of said State Highway 155; said 5/8" Iron Pipe being 64.30 feet right of and at a right angle from survey centerline station 741+90.29;
 - 2.) THENCE S 44° 34' 12" W, along the existing East right-of-way line of said State Highway 155, a distance of 126.13 feet to a 1/2" Iron Rod Set in the existing East right-of-way line of said State Highway 155; said 1/2" Iron Rod being 65.00 feet right of and at a right angle from survey centerline station 740+64.16;

- 3.) THENCE S 43° 44' 32" E, along the South boundary line of said 0.797 acre tract, a distance of 20.01 feet to a ½" Iron Rod Set in the proposed East right-of-way line of said State Highway 155; said ½" Iron Rod being 85.00 feet right of and at a right angle from survey centerline station 740+63.68;
- 4.) THENCE N 44° 53' 15" E, continuing along the proposed East right-of-way line of said State Highway 155, a distance of 126.11 feet to the POINT OF BEGINNING and containing 0.059 of an acre of land, more or less.

NOTE: Bearings, Distances, and Coordinates shown are GRID coordinates based on the Texas State Plane Coordinate System of 1983 (NAD83), North Central Zone, based on NGS Monuments Wilkins W Base Reset (CR1236), Tyler Tx Cors Arp (TXYT/DG5394), Marshall Tx Cors Arp (TXMA/DG 3772) and Palestine Cors Arp (PATT/AF 9638).

This description is based on the Right-Of-Way Map of State Highway 155, and the individual plat titled "PARCEL NO. 10" made by D. Dwayne Miley, Registered Professional Survey in April, 2010.



NOTES:
1. SEE ROW MAP.
2. REFER TO S. H. 155 RIGHT-OF-WAY MAP, FIELD NOTES TITLED PARCEL NO. 10 PREPARED BY THE UNDERSIGNED.
3. BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE GRID COORDINATES BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM OF 1983 (NAD83), NORTH CENTRAL ZONE BASED ON NGS MONUMENTS WILKINS W BASE Resat (CR1236), TYLER TX CORP ARP (TXTY/DCS394), MARSHALL TX CORP ARP (TXMA/DC3772) AND PALESTINE CORP ARP (PATT/AF 9638).
I, D. DWAYNE MILEY, REGISTERED PROFESSIONAL LAND SURVEYOR, DO HEREBY VERIFY THAT THIS PLAT REPRESENTS THE RESULTS OF A SURVEY MADE ON THE GROUND.

R.P.L.S. NO. 4164

DATE

EXHIBIT "A"
PAGE 3 OF 3

⊙ PROPERTY CORNER ■ SET TXDOT TYPE II CONC. MON. W/BRONZE DISK UNLESS OTHERWISE NOTED ● SET 1/2" IRON ROD			
U.C.D.R. UPSHUR COUNTY DEED RECORDS			
WL WATERLINE			
AREA (acres)			
PARCEL NO.	EXISTING	TO BE ACQUIRED	REMAINING
10	0.797	0.059	0.738
PARCEL NO. 10 RIGHT OF WAY PLAT SHOWING PROPERTY OF JOE HILL, ET UX			
STATE HWY 155		UPSHUR, COUNTY	
CSJ 0520-02-037, 038 & 039 (CONSTRUCTION)			
CSJ 0520-02-046, 047 & 048 (ROW)			
SCHAUMBURG & POLK, INC.		APRIL 1, 2010	
		SCALE: 1"=100'	

January, 2010
Parcel 11
Page 1 of 4

COUNTY: JEFFERSON
RCSJ NO.: 0932-01-099
ACCOUNT NO.: 8020-01-082
HIGHWAY NO.: F.M. 365
LIMITS: SPUR 93 TO US 69

PROPERTY DESCRIPTION FOR PARCEL 11

Being a 0.404 acre (17,589 square feet) parcel of land, all of Lot 5, Block 12 of the Montrose Addition to the City of Port Arthur, Jefferson County, Texas as recorded in Volume 7, Page 69 of the Map or Plat Records of Jefferson County and being all of that certain tract of land as conveyed by deed dated August 14, 1996 from Alvin James, et ux, to George Ortego and wife, Irma Ortego, recorded in Clerk's File No. 96-9625101 of the Official Public Records of Jefferson County; said 0.404 acre parcel being situated in and a part of the T.& N.O.R.R. Survey, Sec. No. 7, Abstract No. 239, Jefferson County, Texas and being more particularly described as follows;

BEGINNING at a point on an existing manhole cover set located on the Easterly Right-of-Way line of Texas Avenue (60 feet wide public dedicated Right-of-Way per Volume 7, Page 69, of the Map or Plat Records, Jefferson County) marking the common Westerly corner of Lot 5, Block 12 and Tract 6-A of the Tracts 6-A & 6-B Replat of Lot 6, Block 12 of the Montrose Addition, as recorded in Clerk's File No. 2007037682 Official Public Records of Jefferson County; this point also marks the Northwest corner of that certain tract of land as conveyed by deed dated March 6, 2009 from Richard J. Daley and wife Jeanette A. Daley to Danny G. Figueroa, recorded in Clerk's File No. 2009008238 of the Official Public Records of Jefferson County and the Southwest corner of said Ortego tract and the herein described parcel; this point being located 339.57 feet right, radial distance from Engineers Baseline Station 792 + 94.73 of F.M. Highway No. 365, said Beginning Point having coordinates of (X=3,546,264.4647, Y=13,915,675.2954);

- (1) **THENCE**, North 53 deg. 22 min. 10 sec. West (North 48 deg. 47 min. West - Plat), along said Easterly Right-of-Way line of Texas Avenue with the West line of Lot 5, Block 12, a distance of 175.76 feet to a point located on the existing Southerly Right-of-Way line of F.M. Highway No. 365 (120 feet wide - Volume 741, Page 71 and Volume 741, Page 73, Deed Records of Jefferson County) marking the Northwest corner of said Ortego tract and the herein described parcel;
- (2) **THENCE**, North 36 deg. 37 min. 50 sec. East, along said existing Southerly Right-of-Way line of F.M. Highway No. 365 and the North line of said Ortego tract and this parcel, a distance of 100.00 feet to a point located on the common line of Lots 4 and 5, Block 12 marking the Northwest corner of that certain tract of land as conveyed by deed dated August 22, 2008 from Richard J. Daley and wife Jeanette A. Daley to Mark E. and Christene D. Sonnier recorded in Clerk's File No. 2008030336 of the Official Public Records of Jefferson County and the Northeast corner of said Ortego tract and the herein described parcel;

January, 2010
Parcel 11
Page 2 of 4

- (3) **THENCE**, South 53 deg. 22 min. 10 sec. East (South 48 deg. 47 min. East - Plat), along said common line of Lots 4 and 5, the common line of said Ortego and Mark E. and Christene D. Sonnier tracts with the East line of this parcel, a distance of 176.03 feet to a 1/2" steel rod with cap marked "Soutex" found marking the common corner of Lots 4, 5 and 7, Block 12 and said Tract 6-A, the Northeast corner of said Danny G. Figueroa tract and the Southeast corner of said Ortego tract and the herein described parcel;
- (4) **THENCE**, South 36 deg. 47 min. 10 sec. West (South 41 deg. 13 min. West - Plat), along the common line of said Lot 5, Block 12 and said Tract 6-A, the common line of said Ortego and Danny G. Figueroa tracts with the South line of this parcel, a distance of 100.00 feet to the **POINT OF BEGINNING** and containing 0.404 acre (17,589 square feet) parcel of land.

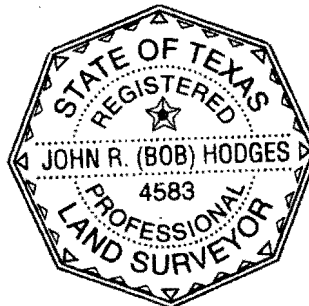
Revised: January 2010 by Landtech Constants, Inc.
Surveyed: April 2001
Job No. 00-CAI-020

SURVEYOR'S CERTIFICATE:

I, John R. Hodges, Registered Professional Land Surveyor No. 4583 in the State of Texas, do hereby certify that the above plat correctly reflects an actual survey made on the ground under my supervision and to the best of my knowledge and belief, the limits, boundaries and corners are truly shown just as found at the time of the survey.

This field note description is being submitted along with a plat of even date based on this survey.

Given under my hand seal this the 31ST day of MARCH, 2010.




John R. Hodges, R.P.L.S. #4583

LEGEND

- SET 1/2" STEEL ROD WITH PLASTIC CAP MARKED J.R. HODGES #4583
- SET CONCRETE MONUMENT WITH TxDOT BRONZE DISK
- ▲ FOUND PROPERTY CORNER AS SHOWN
- POINT FOR CORNER
- POB POINT OF BEGINNING
- POC POINT OF COMMENCING

NOTES

BEARINGS AND COORDINATES
REFERENCED TO THE TEXAS STATE
PLANE COORDINATE SYSTEM -
SOUTH CENTRAL ZONE-NAD 83

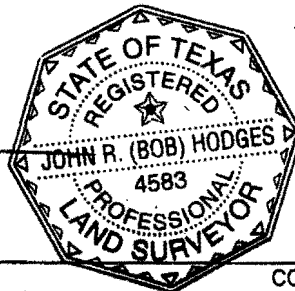
SCALE FACTOR=0.9999161

I, JOHN R. HODGES, REGISTERED PROFESSIONAL LAND SURVEYOR NO. 4583 IN THE STATE OF TEXAS, DO HEREBY CERTIFY THAT THE ABOVE PLAT CORRECTLY REFLECTS AN ACTUAL SURVEY MADE ON THE GROUND UNDER MY SUPERVISION AND TO THE BEST OF MY KNOWLEDGE AND BELIEF, THE LIMITS, BOUNDARIES AND CORNERS ARE TRULY SHOWN JUST AS FOUND AT THE TIME OF THIS SURVEY.

THIS PLAT IS BEING SUBMITTED ALONG WITH A FIELD NOTE DESCRIPTION OF EVEN DATE BASED ON THIS SURVEY.

GIVEN UNDER MY HAND SEAL THIS THE 31ST DAY OF MARCH, 2010.


JOHN R. HODGES, RPLS NO. 4583



DATE OF SURVEY: APRIL 2001

POINT OF BEGINNING		CONVEYANCE DATA CHART					
Y - NORTHING	X - EASTING	STATION		CURRENT TRACT	NEW ACQUIRED	APPROX. REMAINDER	
		FROM	TO	AC.	AC./S.F.	LEFT(AC.)	RIGHT(AC.)
		792+55.30	793+83.38	0.404	0.404/17,589	-	0.000
13915675.2954	3546264.4647	-	-	-	-	-	-
		-	-	-	-	-	-

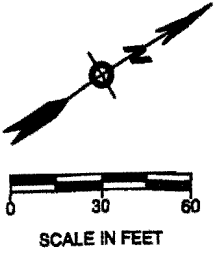
 **Chica & Associates, Inc.**
595 Orleans, Suite 508 Beaumont, Texas 77701
Ph: (409) 833-4343 Fax: (409) 833-8326

**PARCEL PLAT
SHOWING PARCEL 11**
F.M. HWY. 365
JEFFERSON COUNTY, TEXAS

PAGE 4 OF 4

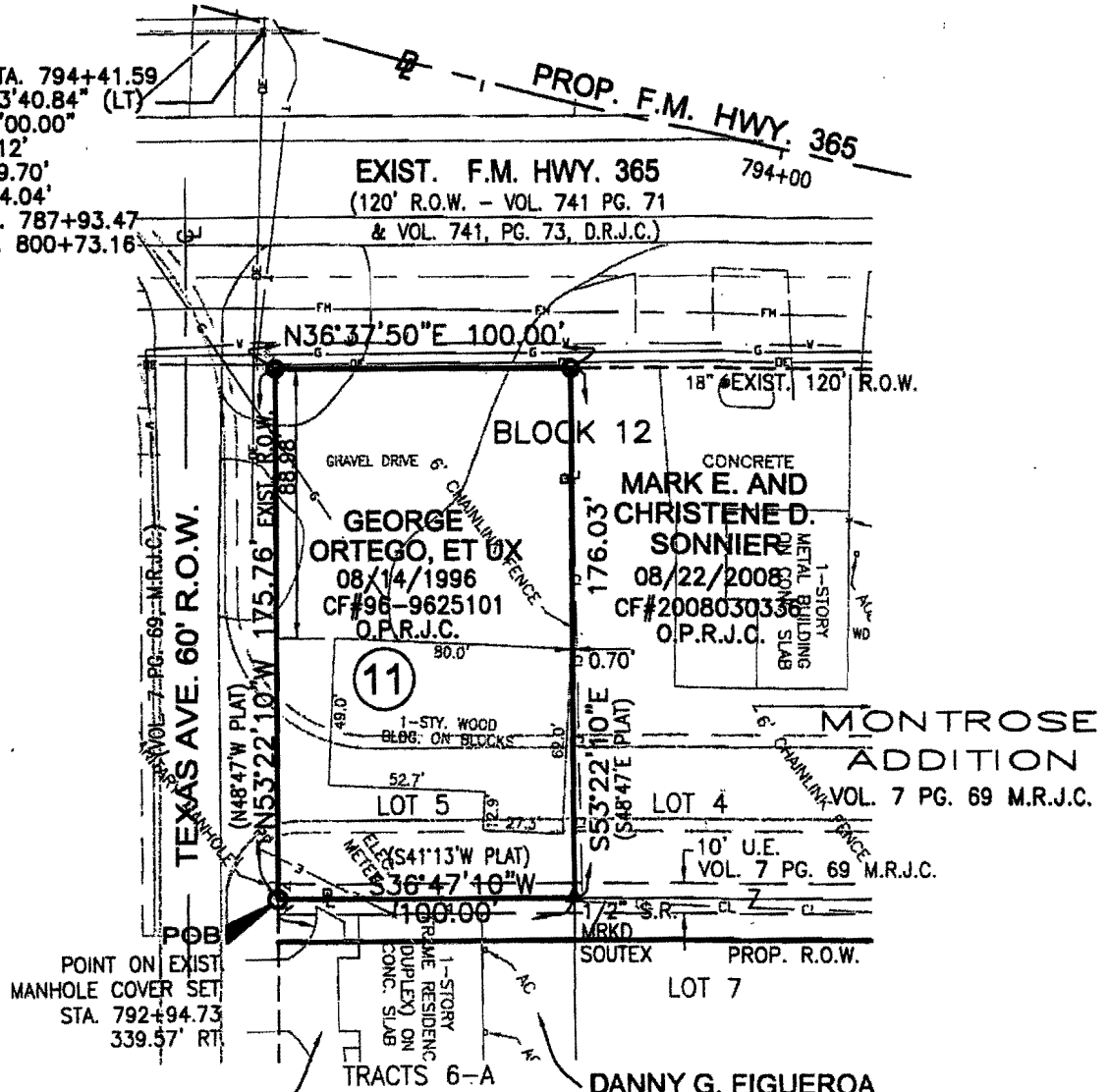
 **ARCENEUX & GATES**
Consulting Engineers, Inc.
Engineer Surveyor Planners

DRAWN BY: N/M/K	REVISED: JANUARY, 2010
CHECKED: JRH	BY LANDTECH CONSULTANTS, INC.
APPVD. BY: JRH	REVISED BY: BDG DATE: 12-19-04
DATE: 12/19/04	ACCOUNT No. 8020-01-082 R.C.S.J. No. 0932-01-099



T. & N.O. RR. SURVEY SEC. 7
ABST. No. 239

C PI STA. 794+41.59
 $\Delta = 22^\circ 23' 40.84''$ (LT)
 $D = 1^\circ 45' 00.00''$
 $T = 648.12'$
 $L = 1,279.70'$
 $R = 3,274.04'$
 PC STA. 787+93.47
 PT STA. 800+73.16



TRACTS 6-A & 6-B
 REPLAT OF LOT 6,
 BLOCK 12 OF
 MONTROSE ADDITION
 CF#2007037682 O.P.R.J.C.

DANNY G. FIGUEROA
 03/06/2009
 CF#2009008238
 O.P.R.J.C.

DATE OF SURVEY: APRIL 2001

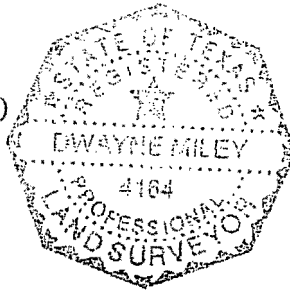
PARCEL PLAT
 SHOWING PARCEL 11

F.M. HWY. 365
 JEFFERSON COUNTY, TEXAS

PAGE 3 OF 4

DRAWN BY: N/M/K		REVISED: JANUARY, 2010	
CHECKED: JRH		BY LANDTECH CONSULTANTS, INC.	
APPVD. BY: JRH		REVISED BY: BDG	DATE: 12-19-04
DATE: 12/19/04	ACCOUNT No. 8020-01-082	R.C.S.J. No. 0932-01-099	

COUNTY: UPSHUR
HIGHWAY: SH 155
CSJ NO. 520-02-037, 038 & 039 (Construction)
CSJ NO. 520-02-046, 047, & 048 (ROW)
LIMITS: HWY 80 TO SABINE RIVER



I, D. Dwayne Miley, Registered Professional Land Surveyor, do hereby verify that this description correctly represents the results of a survey made on the ground.

D. Dwayne Miley
D. Dwayne Miley R.P.L.S. 4164
February 12, 2008

PROPERTY DESCRIPTION FOR PARCEL 30

Being 0.114 of an acre of land, more or less, being out of a called 3.858 acre tract of land described in a deed from TWT Holdings, Ltd., a Texas limited partnership to Chhay Holdings, Ltd., a Texas limited partnership recorded in Volume 443 Page 918 of the Upshur County Deed Records (UCDR), situated in the John Carson Survey A-69, Upshur County, Texas on Texas State Highway Number 155; said 0.114 of an acre of land more particularly described by metes and bounds as follows:

COMMENCING at a ½" Iron Rod Found in the North ROW line of the Union Pacific Railroad marking the Southeast corner of said 3.858 acre tract; THENCE as follows:

- N 89° 29' 06" W along the South boundary line of said 3.858 acre tract a distance of 399.82 feet to a TxDOT TYPE II Right Of Way Monument Set in the proposed East right-of-way line of said State Highway 155 and being the POINT OF BEGINNING of the herein described tract; said TxDOT TYPE II Right Of Way Monument being located 100.00 feet right of and at a right angle from the proposed survey centerline of State Highway 155, hereinafter referred to as "survey centerline", at survey centerline station 791+43.37 and being located at the coordinates of 6,911,605.2238 feet North and 3,008,520.2141 feet East;
- 1.) THENCE N 04° 10' 29" W, along the proposed East right-of-way line of said State Highway 155, a distance of 90.38 feet to a TxDOT TYPE II Right Of Way Monument Set in the proposed East right-of-way line of said State Highway 155; said TxDOT TYPE II Right Of Way Monument being 90.41 feet right of and at a right angle from survey centerline station 792+33.23;
 - 2.) THENCE N 04° 10' 29" W, continuing along the proposed East right-of-way line of said State Highway 155, a distance of 211.18 feet to a TxDOT TYPE I Right Of Way Monument Found in the existing East right-of-way line of said State Highway 155; said TxDOT TYPE I Right Of Way Monument being 78.22 feet right of and at a right angle from survey centerline station 794+35.94 and being 108.60 feet right of and at a right angle from centerline station 1198+33.61 (US80);

- 3.) THENCE S 02° 05' 49" W, along the existing East right-of-way line of said State Highway 155, a distance of 300.67 feet to a ½" Iron Rod Found in the existing East right-of-way line of said State Highway 155; said ½" Iron Rod being 67.05 feet right of and at a right angle from survey centerline station 791+42.56;
- 4.) THENCE S 89° 29' 06" E, along the South boundary line of said 3.858 acre tract, a distance of 32.96 feet to the POINT OF BEGINNING and containing 0.114 of an acre of land, more or less.

NOTE: Bearings, Distances, and Coordinates shown are GRID coordinates based on the Texas State Plane Coordinate System of 1983 (NAD83), North Central Zone, based on NGS Monuments Wilkins W Base Reset (CR1236), Tyler Tx Cors Arp (TXY/DG5394), Marshall Tx Cors Arp (TXMA/DG 3772) and Palestine Cors Arp (PATT/AF 9638).

This description is based on the Right-Of-Way Map of State Highway 155, and the individual plat titled "PARCEL NO. 30" made by D. Dwayne Miley, Registered Professional Survey in December, 2007.

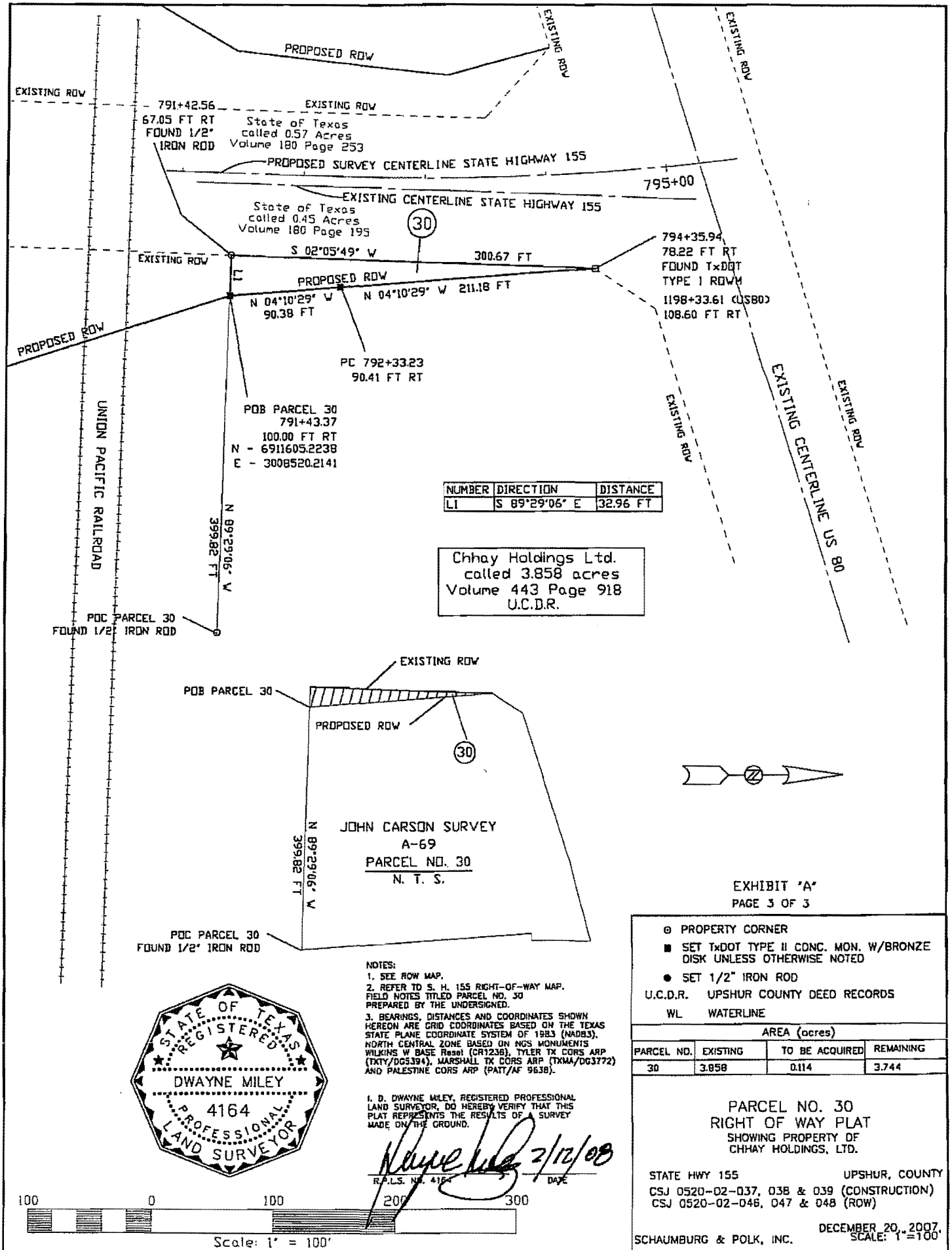


EXHIBIT 'A'
PAGE 3 OF 3

- ⊙ PROPERTY CORNER
 - SET TxDOT TYPE II CONC. MON. W/BRONZE DISK UNLESS OTHERWISE NOTED
 - SET 1/2" IRON ROD
- U.C.D.R. UPCHUR COUNTY DEED RECORDS
WL WATERLINE

AREA (acres)			
PARCEL NO.	EXISTING	TO BE ACQUIRED	REMAINING
30	3.858	0.114	3.744

PARCEL NO. 30
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
CHHAY HOLDINGS, LTD.

STATE HWY 155 UPCHUR, COUNTY
CSJ 0520-02-037, 038 & 039 (CONSTRUCTION)
CSJ 0520-02-046, 047 & 048 (ROW)

SCHAUMBURG & POLK, INC. DECEMBER 20, 2007
SCALE: 1" = 100'

Parcel 8, Page 1 of 4

HIGHWAY: Spur 276
LIMITS: From SH 20, 0.168 Miles North of Borderland Rd. To 0.13 Miles West of IH 10
COUNTY: El Paso
ACCOUNT NO.:
ROW CSJ: 0608-01-002
OWNER: Red Road Compound, Ltd.

Property Description for Parcel 8

Being 14,751 square feet or 0.339 of an acre of land out the Nellie D. Mundy Survey Number 239, City of El Paso, El Paso County, Texas, and being out of a calculated 7.659 acre tract of land out of Lot 2, Block 1, as shown on the map or plat of Covenant Corner Commerce Park recorded in Volume 75, Page 71, El Paso County Plat Records, (E.P.C.P.R.), City of El Paso, El Paso County, Texas, and out of a certain tract of land out Lot 2B and Lot 2C, Block 1, Covenant Corner Commerce Park Replat "A", recorded as file number 20080004562, E.P.C.P.R., same being described in deeds to Red Road Compound, LTD., recorded in Volume 2970, Page 1128 and Volume 3290, Page 896, Official Public Records of Real Property El Paso County (O.P.R.R.P.E.C.) said 14,751 square feet or 0.339 of an acre of land being more particularly described as follows:

COMMENCING at a point on the westerly right-of-way line of Interstate Highway 10, as described in deed to the State of Texas and recorded in Volume 1320, Page 251, El Paso County Deed Records (E.P.C.D.R.), for the northeast corner of said Lot 2B, Block 1, from which a 1/2-inch iron rod with plastic cap "Conde" found bears North 29 degrees East, 0.3 feet;

THENCE South 03 degrees 14 minutes 38 seconds West, along the common line of said Interstate Highway 10 and said Lot 2B, Block 1, a distance of 143.29 feet to a 5/8-inch iron rod with TxDOT ROW aluminum cap set on the proposed northerly right-of-way line of Spur 276, for the northeast corner and POINT OF BEGINNING of the herein described parcel, at 107.96 feet left of Spur 276 Proposed Baseline Station 82+26.39;

- 1.) THENCE South 03 degrees 14 minutes 38 seconds West, continuing along the common line of said Interstate Highway 10 and said Lot 2B, Block 1, a distance of 66.87 feet to a point on the existing northerly right-of-way line of Loop 375 (Talbot Avenue [varying width] formerly known as F.M. Road 259), recorded in Volume 1523, Page 0507, E.P.C.D.R., at the southeast corner of said Lot 2B, Block 1 and the southeast corner of the herein described parcel, from which a 1/2-inch iron rod with plastic cap found bears North 45 degrees East, 0.3 feet;
- 2.) THENCE North 86 degrees 45 minutes 22 seconds West, along the existing northerly right-of-way line of said Loop 375, a distance of 324.44 feet to a 5/8-inch iron rod with TxDOT ROW aluminum cap set on the proposed northerly right-of-way line of Spur 276, for the southwest corner of the herein described parcel, at 112.47 feet left of Spur 276 Proposed Baseline Station 79+26.93;
- 3.) THENCE North 75 degrees 18 minutes 08 seconds East, along the proposed northerly right-of-way line of Spur 276, a distance of 214.86 feet to a 5/8-inch iron rod with TxDOT ROW aluminum cap, set for a northerly corner and angle point of said proposed northerly right-of-way line of Spur 276, at 121.73 feet left of Spur 276 Proposed Baseline Station 81+19.38;
- 4.) THENCE South 87 degrees 05 minutes 04 seconds East, continuing along the proposed northerly right-of-way line of said Spur 276, a distance of 120.03 feet to the POINT OF BEGINNING and containing 14,751 square feet or 0.339 of an acre of land.

Parcel 8, Page 2 of 4

Access will be permitted to the highway facility from the remainder of the property along Spur 276.

This property description is accompanied by a parcel plat of even date.

Note: All bearings and coordinates are referenced to the Texas State Coordinate System, Central Zone, NAD 83 (NSRS 2007) as supplied by TxDOT and Jacobs Carter Burgess and are referenced to NGS stations and their respective provided coordinates as shown, CHINO (CE0444) X=358,754.59 Y=10,717,710.57 and EL PASO (CE0732) X=353,776.33, Y=10,706,506.99. All distances and coordinates are surface and may be converted to grid by dividing by the surface adjustment factor of 1.00023100.

I, Scott M. Fertak, a Registered Professional Land Surveyor, do hereby certify that to the best of my knowledge and belief, this property description is a true and correct representation of a survey made on the ground, under my direction and supervision.

Revised Parent Tract call and size, 10 November 2011

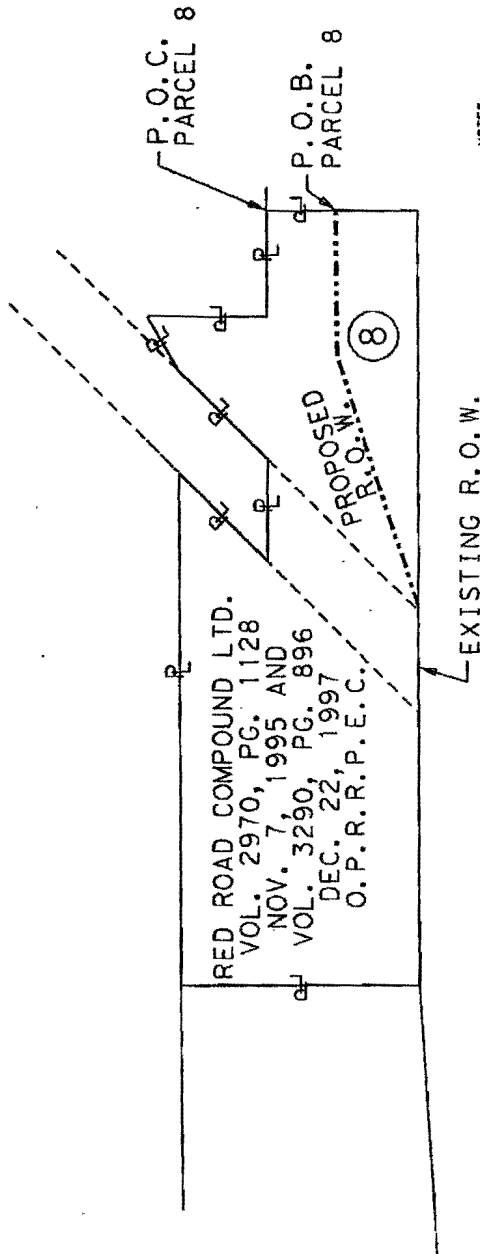
Date: 10 day of November, 2011



A handwritten signature in black ink, appearing to read "Scott M. Fertak".

Scott M. Fertak
Registered Professional Land Surveyor
No. 5257

NELLIE D. MUNDY SURVEY NO. 239



EXISTING R.O.W.

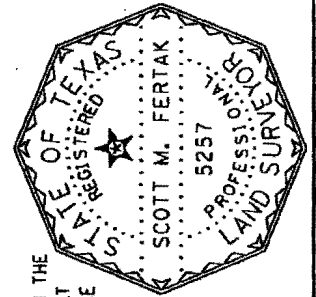
TALBOT AVENUE

PARCEL 8
N.T.S.

- NOTES:
1. ALL BEARINGS AND COORDINATES ARE REFERENCED TO THE TEXAS COORDINATE SYSTEM, CENTRAL ZONE, NAD 83 (NRS 2007). AS SUPPLIED BY TROT AND JACOBS, CARTER AND BURGESS AND ARE REFERENCED TO THE STATIONS AND THEIR RESPECTIVE PROVIDED COORDINATES AS SHOWN, CHAINS (CE00441X-358, 754, 59, Y-10, 717, 710, 57) AND EL PASO (CE07321, 715, 33, Y-10, 706, 506, 99). ALL DISTANCES AND COORDINATES ARE SURFACE AND MAY BE CONVERTED TO STATE PLANE (GSD) BY DIVIDING BY THE SURFACE ADJUSTMENT FACTOR OF 1.00023100.
 2. SUBJECT TO AND UNDEFINED EASEMENT ACROSS NELLIE D. MUNDY SURVEY NO. 239 AND 240 FROM LEE H. ORNDORFF TO THE EL PASO ELECTRIC COMPANY, RECORDED IN VOL. 533, PAGE 323, EL PASO COUNTY DEED RECORDS, JAN. 6, 1931.
 3. SUBJECT TO AND UNDEFINED EASEMENT ACROSS NELLIE D. MUNDY SURVEY NOS. 239, 240 AND 241 FROM LEE H. ORNDORFF TO THE MOUNTAIN STATES TELEGRAPH COMPANY, RECORDED IN VOL. 539, PG. 88, EL PASO COUNTY DEED RECORDS, NOV. 14, 1930.
 4. THIS PLAT ACCOMPANIES A PROPERTY DESCRIPTION OF EVEN DATE.

AREA TABLE (ACRES)		
EXISTING	TAKING	REMAINDER
	LEFT	RIGHT
7.659 (CALC)	0.339	7.320

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY SUPERVISION AND THAT THIS PLAT CORRECTLY REPRESENTS THE FACTS AS FOUND AT THE TIME OF THE SURVEY.
SURVEY DATE: AUG. 26, 2011



SCOTT M. FERTAK
REGISTERED PROFESSIONAL LAND SURVEYOR
NO. 5257

LEGEND	
EXIST. ROW LINE	----
PROP. ROW LINE	----
COUNTY LINE	----
PROPOSED ACCESS DENIAL LINE	----
EXISTING ACCESS DENIAL LINE	----
SURVEY LINE	----
FENCE	----
CITY LIMITS	----
E.P.C.P.R. - EL PASO COUNTY PLAT RECORDS	○
E.P.C.D.R. - EL PASO COUNTY DEED RECORDS	○
O.P.R.P.E.C. - OFFICIAL PUBLIC RECORDS OF REAL PROPERTY EL PASO COUNTY	○
SET 5/8" IRON ROD W/TXDOT ROW	●
ALUMINUM CAP (UNLESS NOTED)	○
PROPERTY CORNER FOUND AS NOTED.	○
PARCEL NUMBER	⊗

REVISION	DATE
REV. PARENT TRACT SIZE	NOV 2011
REV. PARCEL SIZE, RENUMBER	SEPT 2011

PARCEL 8
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
RED ROAD COMPOUND LTD.
SPUR 276 EL PASO COUNTY
CSJ 0608-01-002
LANDTECH CONSULTANTS, INC. SEPT. 2011
PAGE 3 OF 4 SCALE: 1" = 50'

NELLIE D. MUNDY SURVEY NO. 239



0 25 50

COVENANT CORNER
COMMERCE PARK
REPLAT "A"

FILE NO. 20080004562

E.P.C.P.R.

LOT 2C
BLOCK 1

RED ROAD COMPOUND LTD.

VOL. 2970, PG. 1128

NOV. 7, 1995 AND

COMMERCE PARK

VOL. 3290, PG. 896

DEC. 22, 1997

O.P.R.R.P.E.C.

LOT 2
BLOCK 1

15' UTILITY EASEMENT

VOL. 75, PG. 71

15' PUBLIC SERVICE

BOARD EASEMENT VOL. 3628,

PG. 1734, O.P.R.R.P.E.C.

LOT 2A

BLOCK 1 EXISTING R.O.W.

EXISTING R.O.W.

LOT 2B
BLOCK 1

10' UTILITY EASEMENT PER PLAT
35' PRIVATE COMMON
20' DRAINAGE AND UTILITY
EASEMENT PER PLAT

P.O.C.
FND. 1/2" IR
W/CAP "CONDE"
BEARS N 29° E, 0.3'

TRANSMOUNTAIN OIL
COMPANY, L.C.

DOC. # 20080092706

O.P.R.R.P.E.C.

NOV. 19, 2008

P.O.B.

STA. 82+26.39

107.96' LT.

N 75° 18' 08" E 214.86'
PROPOSED R.O.W.

(8)

STA. 81+19.38

121.73' LT.

S 87° 05' 04" E

120.03'

S 03° 14' 38" W

66.87'

THE STATE OF TEXAS

VOL. 1320, PG. 251

E.P.C.D.R.

NOV. 17, 1956

FND. 1/2" IR W/CAP

BEARS N 45° E, 0.3'

EXISTING R.O.W.

N 86° 45' 22" W 324.44'

STA. 79+26.93

112.47' LT.

PT STA. 82+87.69 / S 87° 05' 04" E
1,278.50'

LOOP 375

PARCEL 8

RIGHT OF WAY PLAT
SHOWING PROPERTY OF

RED ROAD COMPOUND LTD.

SPUR 276 EL PASO COUNTY

CSJ 0608-01-002

LANDTECH CONSULTANTS, INC. SEPT. 2011

PAGE 4 OF 4

SCALE: 1" = 50'

(TALBOT AVENUE,
FORMERLY KNOWN AS F.M. 259)
(WIDTH VARIES)

VOL. 1523, PG. 0507

E.P.C.D.R.

FEB. 12, 1960

R=1,000.00'
L=633.28'
Δ=36° 17' 03" E
CH. = N 74° 46' 25" E
622.75'

County: Nueces
Highway: SH 358
RCSJ: 0617-01-172
CCSJ: 0617-01-177
Project Limits From: Nile Drive
To: Staples Street

Page 1 of 3
Revision Date: May 1, 2011

Field Notes for Parcel 8

Being 0.011 of an acre (488 square feet) of land, more or less, situated in the "Rincon Del Oso" Enriquez Villareal Survey (Abstract No. 1) in Nueces County, Texas and being out of and a part of Lots 11 and 12 in Block 3 of the Woodlawn Estates Subdivision of the City of Corpus Christi, Nueces County, Texas, recorded in Volume 10, Page 34 of the Map Records of said Nueces County, said Lots 11 and 12 (0.985 of an acre or 42,900 square feet total) described in a General Warranty Deed from ROCKPORT/I-35, L.L.C. to 6422 SPID, LLC, dated April 8, 2010, recorded in Document # 2010012810 of the Official Records of said Nueces County. All deed references herein are to said Official Records of Nueces County unless otherwise noted. All references herein to Centerline Stations are to the reestablished centerline of the Texas Highway Department SH 358 (Lexington Boulevard) Right-of-Way Map dated October, 1957. Metes and bounds description of said 0.011 of an acre parcel is as follows:

COMMENCING at a 5/8" steel rod found for the northeast corner of Lot 14-R of the Lots 13-R and 14-R, Block-3 Woodlawn Estates Subdivision (Volume 32, Page 100 of said Map Records), same being the North interior corner of Lot-13R of said Lots 13-R and 14-R Woodlawn Estates Subdivision, thence as follows:

North 61 deg. 20 min. 26 sec. West (called North 60 deg. 51 min. 30 sec. West) along a line common to said Lots 13-R and 14-R, a distance of 95.00 feet to a point for the North corner of said Lot 14-R, said point being the lower northwesterly corner of said Lot 13-R and in the southeasterly right-of-way line of Clare Drive (Volume 32, Page 100 of said Map Records);

and South 28 deg. 39 min. 32 sec. West (called South 29 deg. 08 min. 30 sec. West) along said southeasterly right-of-way line of Clare Drive and along the northwest line of said Lot 14-R, a distance of 190.37 feet to a TxDOT Type II right-of-way marker set for a point of curvature in said southeasterly right-of-way line of Clare Drive, same being a point of curvature in the curved southwest line of Lot 14-R and 90.01 feet right of SH 358 Right-of-Way Centerline Station 306 + 85.30;

and South 59 deg. 57 min. 02 sec. East along the proposed northeasterly right-of-way line of SH 358 and severing said Lots 14-R and 13-R, a distance of 195.06 feet to a TxDOT Type III right-of-way marker set for the northwest corner of said 0.011 of an acre parcel, same being in the southeast line of said Lot 13-R and in the northwest line of said Lot 12, same also being 85.00 feet right of SH 358 Right-of-Way Centerline Station 304 + 90.31 and having State Plane Coordinates of $x = 1,354,981.73$ and $y = 17,145,406.97$ and being the **POINT OF BEGINNING**;

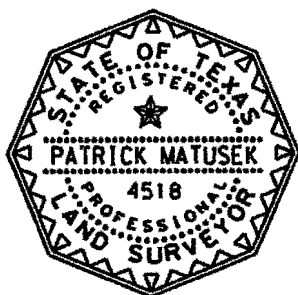
Parcel 8
Page 2 of 3
Revision Date: May 1, 2011

- 1) **THENCE** South 59 deg. 57 min. 02 sec. East continuing along said proposed northeasterly right-of-way line of SH 358 and severing said Lots 12 and 11, a distance of 195.05 feet to a TxDOT Type III right-of-way marker set for the southeast corner of said 0.011 of an acre parcel, same being the South corner of said Lot 11 and at the intersection of the existing northeasterly right-of-way line of SH 358 and the northwesterly right-of-way line of Woodlawn Drive (Volume 10, Page 34 of said Map Records), same also being 80.00 feet right of SH 358 Right-of-Way Centerline Station 302 + 95.32;
- 2) **THENCE** North 61 deg. 25 min. 17 sec. West along said existing northeasterly right-of-way line of SH 358 and along the southwest lines of said Lots 11 and 12, a distance of 195.00 feet to a point for the southwest corner of said Lot 12, said point being the South corner of said Lot 13-R and the southwest corner of said 0.011 of an acre parcel;
- 3) **THENCE** North 28 deg. 39 min. 34 sec. East along the line common to said Lots 12 and 13-R, a distance of 5.00 feet to the **POINT OF BEGINNING**, containing 0.011 of an acre (488 square feet) of land, more or less. All bearings are on the Texas State Plane Coordinate System, NAD 83 (1993 Adj.) South Zone. All distances and coordinates are surface and may be converted to grid by dividing by TxDOT conversion factor of 1.00002.

Access will be permitted to the highway facility from the remainder of the property lying northeast of SH 358 at the approximate location of existing legally permitted driveway locations (which will be rebuilt and reestablished at the new right of way property line by the State of Texas as part of the highway improvement project associated with this right of way parcel's acquisition).

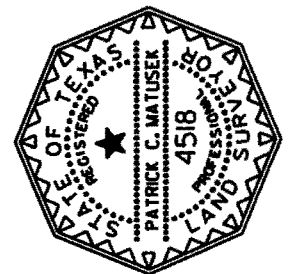
Access will also be permitted to the highway facility from the remainder of the property lying northeast of SH 358 at such additional future locations as may be authorized by the driveway permit application process, provided such future requested locations comply with design and access management manual guidelines.

I hereby certify the foregoing legal description was prepared from a survey performed on the ground and that it correctly represents the facts found at the time of the survey. A survey plat of even date herewith accompanies this legal description.



Patrick C. Matusek

Patrick C. Matusek
Registered Professional Land Surveyor
License No. 4518, State of Texas
Surveyed May 1, 2011



I HEREBY CERTIFY THIS SURVEY WAS PERFORMED ON THE GROUND, AND THAT THIS PLAT CORRECTLY REPRESENTS THE FACTS FOUND AT THE TIME OF THE SURVEY. A LEGAL DESCRIPTION OF EVEN SURVEY DATE HERewith ACCOMPANIES THIS PLAT.

Patrick C. Matusek
PATRICK C. MATUREK
REGISTERED PROFESSIONAL LAND SURVEYOR
LICENSE NO. 4518, STATE OF TEXAS
SURVEYED MAY 1, 2011

GENERAL NOTES

1. ALL DEED REFERENCES ARE TO NUECES COUNTY OFFICIAL RECORDS UNLESS

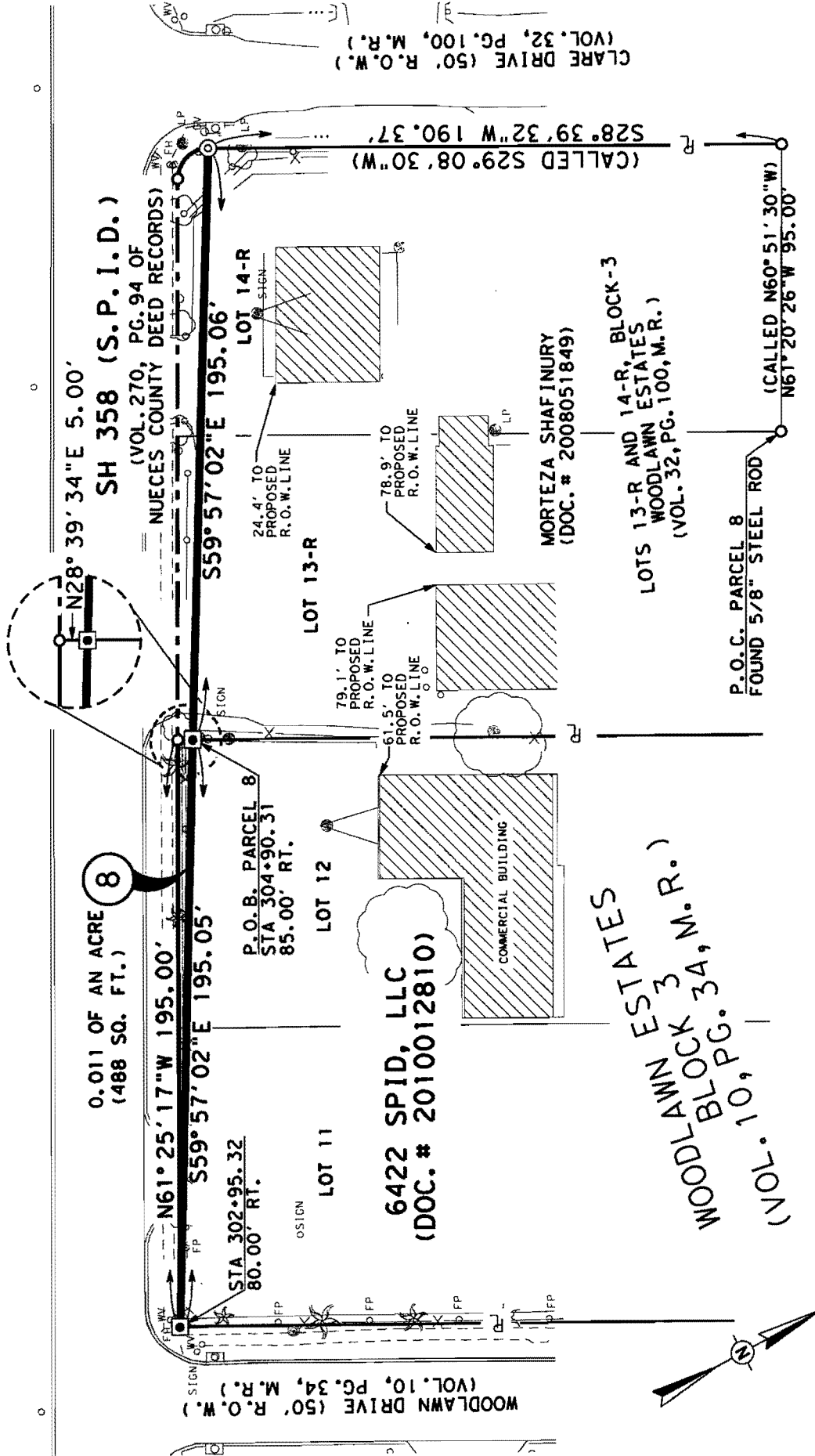
2. ALL BEARINGS ARE ON THE TEXAS STATE PLANE COORDINATE SYSTEM, NAD 83 (1993 ADJ.) SOUTH ZONE. ALL DISTANCES AND COORDINATES SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY TADOT CONVERSION FACTOR OF 1.00002.
3. CURVE LENGTHS SHOWN ARE ARC LENGTHS.

EASEMENT LINE
 LINE NOT TO SCALE
 EXISTING FENCE
 EXISTING R.O.W. LINE
 PROPOSED R.O.W. LINE
 PROPERTY LINE
 * = PARCEL NUMBER
 (C) = SET TxDOT TYPE II ROW MARKER
 T = SET TxDOT TYPE III ROW MARKER
 M.R. = MAP RECORDS OF NUCEES
 COUNTY, TEXAS
 R.O.W. = RIGHT-OF-WAY
 P.O.B. = POINT OF BEGINNING
 P.O.C. = POINT OF COMMENCING

ROW	CCSJ 0617-01-177	SH 358
ACQUISITION (488 SQ.FT.)	RCSJ 0617-01-172	SHEET 3 OF 3

MEI **MAVERICK**
ENGINEERING, INC.
EAST MORRIS STREET, YOAKUM, TEXAS
(361) 293-2725 FAX (361) 293-

REVISION DATE: MAY 1, 2011



County: Collin
Highway: FM 455
R.O.W. CSJ: 0816-04-046

Page 1 of 3
May 1, 2009

Description for Parcel 29

BEING 734 square feet of land, more or less, in the John C. Farris Survey, Abstract Number 331, City of Anna, Collin County, Texas, and being part of Lot 1, Block F, Willow Creek Phase 1A, according to the plat thereof recorded in Cabinet "P", Page 59 of the Official Public Records of Collin County Texas; said Lot 1 conveyed to Anna 810 Holdings LP, by deed as recorded in Document Number 20080215000182250 of the Official Public Records of Collin County Texas; said 734 square feet of land being more particularly described by the metes and bounds as follows:

COMMENCING at the Northwest corner of said Lot 1, same being in the East line of that certain called 2.00 acre tract of land conveyed to Amon Brian Roper by deed as recorded in Volume 5660, Page 2013 of the Official Public Records of Collin County Texas; from which a found 1/2-inch iron rod with cap bears South 04° 33' 51" West, 0.53 feet;

THENCE South 00° 38' 30" West with the common line of said Lot 1 and said 2.00 acre tract, a distance of 169.98 feet to the Southwest corner of said Lot 1; same being in the Existing North Right-of-way line of FM 455 as recorded in Cabinet "P", Page 59 of the Official Public Records of Collin County Texas;

THENCE South 88° 39' 53" East with the Existing North Right-of-way line of FM 455, a distance of 178.12 feet to a set 5/8-inch iron rod with aluminum disk in the New North Right-of-way line of FM 455, for the PLACE OF BEGINNING having N.A.D. 83 (1993) Texas State Plane, North Central Zone (4202) surface coordinate of North 7,178,697.389, East 2,561,806.617; **

- 1) THENCE North 45° 22' 52" East with the New North Right-of-way line of FM 455, a distance of 54.21 feet to a found 1/2-inch iron rod in the West Right-of-way line of Willow Creek Drive as recorded in Cabinet "P", Page 405 of the Official Public Records of Collin County Texas;
- 2) THENCE South 01° 20' 07" West with the West Right-of-way line of Willow Creek Drive, a distance of 38.97 feet to a found 1/2-inch iron rod for the Southeast corner of said Lot 1; same being in the Existing North Right-of-way line of FM 455;
- 3) THENCE North 88° 39' 53" West with Existing North Right-of-way line of FM 455, a distance of 37.69 feet to the PLACE OF BEGINNING and containing 734 square feet (0.017 Acres) of land, more or less.

County: Collin
Highway: FM 455
R.O.W. CSJ: 0816-04-046

Page 2 of 3
May 1, 2009

Description for Parcel 29

Notes:

Survey plat to accompany this legal description.

** The monument described and set in this call, if destroyed during construction, may be replaced with a TxDOT Type II Right of Way Marker upon the completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.

Basis of Bearings is a line between CORS Station TXAR (North 6,962,112.4020 East 2,411,057.5050 Grid Coordinates) and TXDE (North 6,978,860.0908 East 2,529,861.8823 Grid Coordinates), North American Datum 1983 (1993), which is North 81 degrees 58 minutes 33 seconds East – Texas State Plane, North Central Zone (4202).

All coordinates shown are surface unless otherwise noted and may be converted to grid by dividing by the TxDOT combined scale factor of 1.000152710.

I, Michael Dan Davis, a Registered Professional Land Surveyor in the State of Texas, Hereby certify that the land description and plat represent an actual survey made on the ground under my supervision.

 5/1/09

Michael Dan Davis
Registered Professional Land Surveyor No. 4838
Dannenbaum Engineering Company Fort Worth – LLC
6421 Camp Bowie Boulevard, Suite 400, Fort Worth, Texas 76116
Office: 817-763-8883, Fax: 817-377-2956



JOHN C. FARRIS SURVEY ABSTRACT NO. 331

EXHIBIT "A"
Page 3 of 3

ANNA 810 HOLDINGS LP
DOCUMENT NUMBER
20080215000182250
O.P.R.C.C.T.

WILLOW CREEK PHASE 1
CAB. P. PG. 405
O.P.R.C.C.T.

TRACT
ICW MANAGEMENT, L.P.
VOL. 5878, PG. 509
O.P.R.C.C.T.

AMON BRIAN ROPER
VOL. 5660, PG. 2013
O.P.R.C.C.T.

LOT 1, BLOCK F
WILLOW CREEK PHASE 1A
CAB. P. PG. 59
O.P.R.C.C.T.

ARMUSOL INVESTMENTS, INC.
DOCUMENT NUMBER
20080124000095200
O.P.R.C.C.T.

LOT 1, BLOCK G
WILLOW CREEK
PHASE 1B
CAB. P. PG. 27
O.P.R.C.C.T.

LOT 1, BLOCK B
WESTFIELD
ADDITION
CAB. P. PG. 895
O.P.R.C.C.T.

WESTFIELD ADDITION
BLOCK A, LOTS 1 & 2
CAB. 2006, PG. 12
P.R.C.C.T.

LEGEND
EXISTING ROADWAY INTERNAL
BOUNDARY LINE
EXISTING RIGHT OF WAY LINE
NEW RIGHT OF WAY LINE
EXISTING EASEMENT LINE
NEW EASEMENT LINE
PROPERTY LINE
SURVEY LINE
ACCESS DENIAL LINE

ACCESS IS PROHIBITED ACROSS THE "ACCESS DENIAL LINE" TO THE
HIGHWAY FACILITY FROM THE ADJACENT PROPERTY.

○ = SET TxDOT "AD-MONUMENT UNLESS OTHERWISE NOTED
AD = TxDOT ALUMINUM DISK ON TOP OF A 5/8-INCH IRON ROD
BD = TxDOT BRONZE DISK SET IN CONCRETE

P.O.R. = POINT OF REFERENCE
P.O.C. = POINT OF COMMENCING
P.O.B. = POINT OF BEGINNING

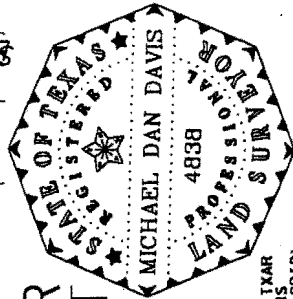
** THE MONUMENT DESCRIBED AND SET IN THIS CALL, IF DESTROYED
DURING CONSTRUCTION, MAY BE REPLACED WITH A TxDOT TYPE II
RIGHT OF WAY MARKER UPON THE COMPLETION OF THE HIGHWAY
CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED
PROFESSIONAL LAND SURVEYOR EITHER EMPLOYED OR RETAINED
BY TxDOT.

JOSEPH SCHLUTER SURVEY ABSTRACT No. 856

A PLAT OF A SURVEY OF
PARCEL 29
FOR FARM ROAD 455
RIGHT-OF-WAY CSJ: 0816-04-046
A 0.017 AC [734 SQ. FT.]
TRACT OF LAND IN THE
CITY OF ANNA

JOHN C. FARRIS SURVEY
ABSTRACT NO. 331
CITY OF ANNA

MAY 01, 2009
COLLIN COUNTY, TEXAS



BASIS OF BEARINGS IS A LINE BETWEEN CORNS STATION TXAR
IN 6,962,112.4020, E 2,411,057.5050 GRID) AND CORNS
STATION TXOA IN 6,918,860.0006, E 2,529,861.8823 GRID).
C.A.D. 831 WHICH IS NORTH 81° 58' 33" EAST - TEXAS PLANE
COORDINATE SYSTEM, NORTH CENTRAL ZONE (42021).

ALL DISTANCES AND COORDINATES
SHOWN ARE SURFACE AND MAY BE
CONVERTED TO GRID BY DIVIDING BY
TxDOT CONVERSION FACTOR 1.000152710.

Michael D. Davis No. 4838
DATE 5/1/09



WILSON SURVEYING CO., INC.
Registered Professional Land Surveyors
Global Positioning System Surveyors
TEXAS • NEW MEXICO • ARIZONA • NEVADA • UTAH



Page 1 of 3

County: Lubbock
Highway: F.M. 1730
ROW CSJ: 1344-02-020

Property Description for Parcel 18

Being a 12,008.994 square foot tract of land out of that certain tract of land conveyed to *Randy Lee Billings* in Warranty Deed recorded as #2006026612, Official Public Records of Lubbock County, Texas, being located in Section 16, Block E-2, Lubbock County, Texas and being more particularly described as follows:

BEGINNING at a 5/8" iron rod with TxDOT 3 1/4" aluminum cap, set on the South line of Tract A, Raney Addition as recorded in Volume 7603, Page 35, Official Public Records of Lubbock County, Texas and the North line of the said *Randy Lee Billings* tract, from which a 1/2" iron rod, found for the Northeast corner of said *Randy Lee Billings* tract, bears South 88°12'45" East, a distance of 363.19 feet, said point of beginning being 60.00 feet left of F.M. 1730 Station 262+50.03 and having a project coordinate of North: 7244452.157 and East: 925633.545;

(1) **THENCE** South 01°43'53" West, a distance of 319.36 feet to a 4" brass cap stamped "TEXAS DEPARTMENT OF TRANSPORTATION", set for a corner of this parcel;

(2) **THENCE** South 43°15'01" East, a distance of 87.71 feet to a 4" brass cap stamped "TEXAS DEPARTMENT OF TRANSPORTATION", set on the occupied North right of way line of 114th Street (no record found), for a corner of this parcel;

(3) **THENCE** South 01°46'04" West, a distance of 30.00 feet to a point on the South line of Section 16, Block E-2, for the Southeast corner of this parcel;

(4) **THENCE** North 88°13'56" West, along the South line of said Section 16, Block E-2, a distance of 81.98 feet to a point for the Southwest corner of this parcel;

(5) **THENCE** North 01°43'53" East, along the existing East right of way line of F.M. 1730 as recorded in Volume 558, Page 359, Deed Records of Lubbock County, Texas, at 30.00 feet pass the occupied North right of way line of 114th Street (no record found), continuing for a total distance of 411.37 feet to a point for the Northwest corner of said *Randy Lee Billings* tract and the Northwest corner of this parcel;

(6) **THENCE** South 88°12'45" East, at 15.00 feet pass a 1/2" iron rod with plastic cap, found for the Southwest corner of said Tract A, Raney Addition, continuing for a total distance of 20.00 feet to the point of beginning.

CONTAINING a total area of 12,008.994 square feet with an area of 2459.715 square feet of occupied right of way being a portion of the overall area total.



WILSON SURVEYING CO., INC.

*Registered Professional Land Surveyors
Global Positioning System Surveyors*

TEXAS • NEW MEXICO • ARIZONA • NEVADA • UTAH

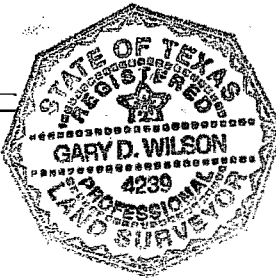


Page 2 of 3

NOTES:

1. Bearings based on Texas Plane Coordinate System, North zone, NAD 83.
2. Horizontal control for this project was established by static GPS methods and based on the City of Lubbock control monuments No.'s 801,803,810 & 814 as established by Carter & Burgess.
3. Distances are surface values.
4. Coordinate values are based on project coordinate system and may be converted to Texas Plane Coordinate System, North Zone, NAD 83 values by dividing by a surface adjustment factor of 1.0002452.
5. Date of field survey: May-Sept. 2007
6. Parcel plat with same date accompanies this description.
7. Parcel plat and this description revised November 21, 2007.


Gary D. Wilson Date 7-20-11
Registered Professional Land Surveyor
No. 4239 State of Texas

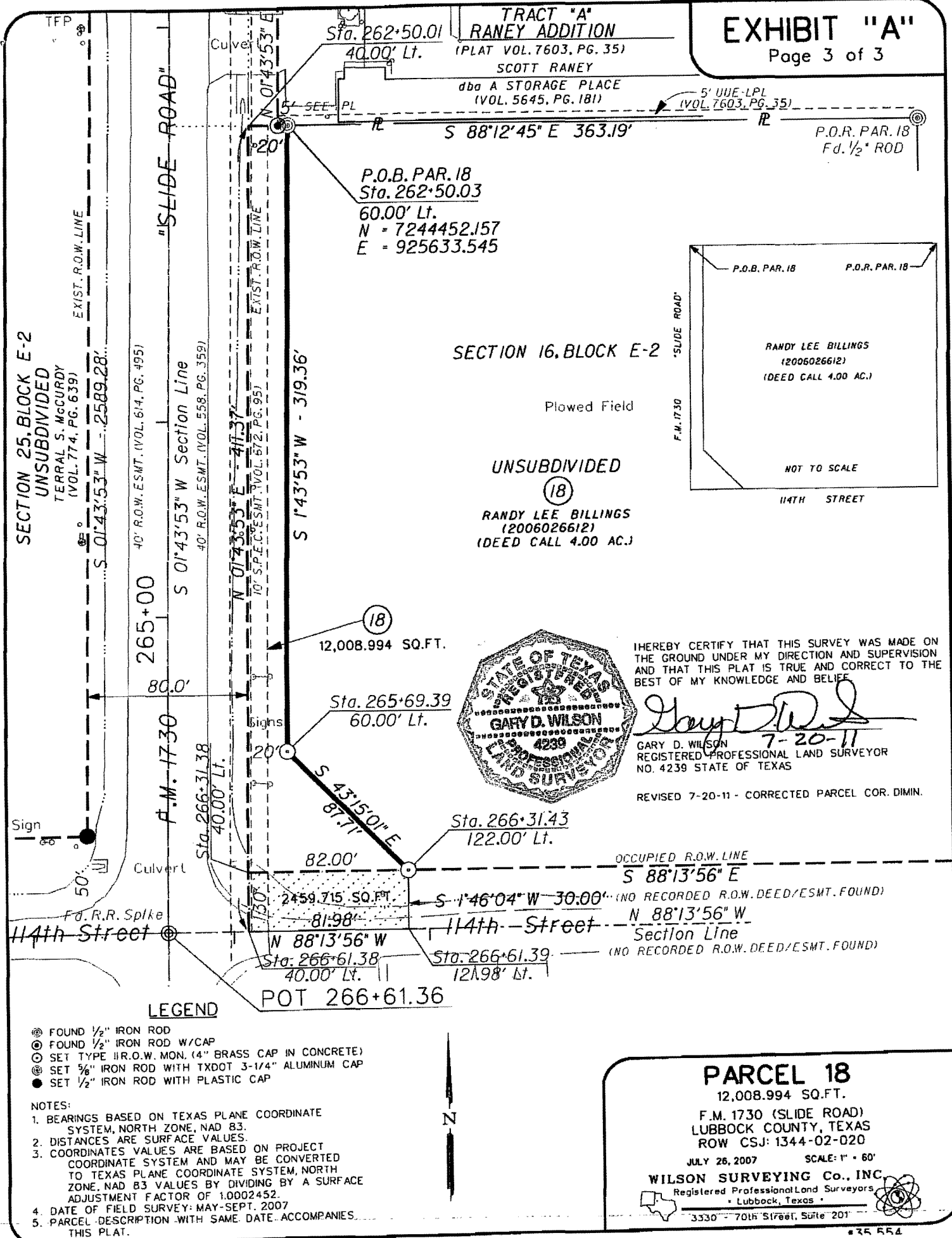


Revised: 7-20-11

Parcel18.doc

#35,554

EXHIBIT "A"
Page 3 of 3



Revised April, 2011
November, 2009
Parcel 1
Page 1 of 5

County: Montgomery
Highway: F.M. 2978
Limits: From Conroe/Hufsmith Rd. to Harris County Line
ROW CSJ: 3050-02-022

Property Description for Parcel 1

BEING a 0.2133 of one acre (9,290 square feet) parcel of land out of a calculated 0.7408 acre tract in the Joseph Miller Survey, Abstract 27, Montgomery County, Texas; said 0.7408 acre tract being part of 9.295 acres conveyed to Grace Dunahugh Chatham, Trustee, and Betty Grace Harris, Trustee, from William H. Chatham and Grace Dunahugh Chatham by deed dated July 8, 1982 and recorded under Montgomery County Clerk's File (M.C.C.F.) 8228860, Official Public Records of Real Property of Montgomery County (O.P.R.O.R.P.M.C.T.); said 0.7408 acre tract also being that same called 0.774 acre tract referred to as Tract Two conveyed to Wm. H. Chatham by deed dated May 18, 1976, recorded under M.C.C.F. 7614939, O.P.R.O.R.P.M.C.T.; said 0.2133 of an acre of land being more particularly described as follows:

COMMENCING at a one-half inch iron rod found at the northeast corner of said 0.7408 acre tract on the existing northwesterly right-of-way line of Conroe/Hufsmith Road (60 feet R.O.W. as evidenced by Volume 55, Page 65, Harris County Map Records; no deed of record found) being the southeast corner of a called 1.00 acre tract of land conveyed to Larry Lynn Wagner and wife, Mary Margaret Wagner by deed dated January 5, 1995 and recorded under M.C.C.F. 9501904, O.P.R.O.R.P.M.C.T.;

THENCE, South 37°20'51" West, along the southeast line of said 0.7408 acre tract (call South 38°36' West per M.C.C.F. 245050, Montgomery County Deed Records) and along the existing northwest right-of-way line of said Conroe/Hufsmith Road, a distance of 36.68 feet to a five-eighths inch iron rod with a Texas Department of Transportation (TxDOT) aluminum cap set in the proposed north right-of-way line of F.M. 2978 and at the northeast corner and the POINT OF BEGINNING of the herein described parcel having surface coordinates of N=13,978,924.50, E=3,044,776.71, and being located at Baseline Station 83+21.13, 285.47 feet left;**

Revised April, 2011
November, 2009
Parcel 1
Page 2 of 5

- 1.) THENCE, South 37°20'51" West, continuing along the southeast line of said 0.7408 acre tract (call South 38°36' West per M.C.C.F. 245050, Montgomery County Deed Records) and along the existing northwest line of said Conroe/Hufsmith Road, a distance of 160.43 feet, to a five-eighths inch iron rod with TxDOT aluminum cap set at the beginning of a non-tangent curve to the right and for corner on the proposed southerly right-of-way line of said F.M. 2978 at Baseline Station 84+47.87, 187.10 feet left; a concrete monument found at the southwest corner of said 0.7408 acre tract bears South 37°20'51" West, a distance of 167.01 feet;**
- 2.) THENCE, westerly along the proposed southerly right-of-way line of said F.M. 2978 and along said non-tangent curve to the right, having an arc length of 106.97 feet, a radius of 430.00 feet, a central angle of 14°15'11", and a chord bearing and chord length of South 76°46'49" West and 106.69 feet respectively, to a five-eighths inch iron rod with TxDOT aluminum cap set for corner at Baseline Station 84+71.41, 83.04 feet left, on the west line of said 0.7408 acre tract and on the existing easterly right-of-way line of F.M. 2978 (per M.C.C.F. 245050, Montgomery County Deed Records); a concrete monument found at the southwest corner of said 0.7408 acre tract bears South 01°20'47" East, a distance of 108.40 feet;**
- 3.) THENCE, North 01°20'47" West, along the west line of said 0.7408 acre tract and along the existing easterly right-of-way line of F.M. 2978 (called North 00°03'27" West per M.C.C.F. 245050, Montgomery County Deed Records), a distance of 60.24 feet to a five-eighths inch iron rod with TxDOT aluminum cap set at the beginning of a non-tangent curve to the left and for corner on the proposed northerly right-of-way line of said F.M. 2978 at Baseline Station 84+11.18, 82.12 feet left; a concrete monument (leaning) found at the northwest corner of said 0.7408 acre tract bears North 01°20'47" West a distance of 114.86 feet (from said concrete monument a found one-half inch iron rod bears North 27°24' East, distance of 0.34 feet);**

Revised April, 2011
November, 2009
Parcel 1
Page 3 of 5

- 4.) THENCE, easterly along the proposed northerly right-of-way line of said F.M. 2978 and along said non-tangent curve to the left, having an arc length of 225.89 feet, a radius of 370.00 feet, a central angle of 34°58'47", and a chord bearing and chord length of North 65°38'41" East and 222.40 feet respectively, to the POINT OF BEGINNING and containing 0.2133 of one acre (9,290 square feet) of land.

Notes:

All bearings are based on NGS-Range VI monuments established for the Tropical Storm Allison Recovery Project. Monument Nos. 100145 and 120195, dated 5-2-2003, Texas Coordinate System, South Central Zone, North American Datum (NAD) 1983 (1993 Adjustment) and NAVD 88. All distances and coordinates shown are surface and may be converted to grid by dividing by a combined adjustment factor of 1.00013.

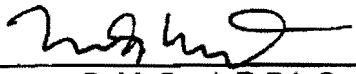
This project is referenced to the Texas Coordinate System, South Central Zone, NAD 83 to conform to previous R.O.W. Mapping F.M. 2978 in Harris County, Texas.

** The Monument described and set in this call may be replaced with a TxDOT Type II Right-of-Way Marker upon completion of the Highway Construction Project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.

Access is permitted to the highway facility from the remainder of the property adjacent to this parcel.

A plat of even date accompanies this property description.

This property description is prepared in conjunction with a parcel plat of equal date and is based on a survey completed on the ground in April, 2011.



Norman G. McCord, R.P.L.S.
Landtech Consultants, Inc.
2525 North Loop West, Suite 300
Houston, TX 77008, Phone 713-861-7068

4-22-11

Date



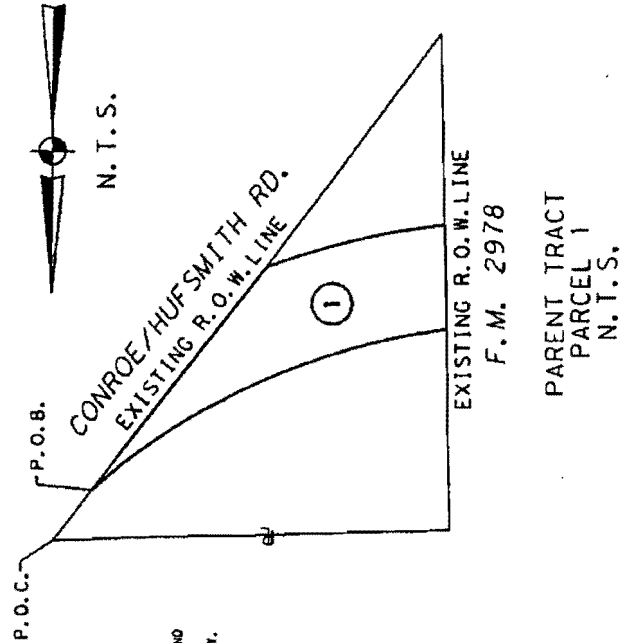
LEGEND

** Set 5/8" IR w/1x1001 Alum. Cap
 Set (5/8" Iron Rod with GS Cap)
 End. (Type Indicated at Location)
 Property Line
 Landhook
 Control Point
 P.O.B.
 P.O.C.
 D.R.M.C.T.
 M.C.C.F. NO.
 O.P.R.O.R.P.M.C.T.
 POINT OF BEGINNING
 POINT OF COMMENCING
 DEED RECORDS MONTGOMERY
 COUNTY, TEXAS
 MONTGOMERY COUNTY CLERK'S
 FILE NUMBER
 OFFICIAL PUBLIC RECORDS OF REAL
 PROPERTY MONTGOMERY COUNTY, TEXAS

NOTES:

1. BEARINGS ARE BASED ON NGS-RANGE VI MONUMENTS ESTABLISHED FOR THE TROPICAL STORM ALLISON RECOVERY PROJECT. MONUMENT NOS. 100145 AND 120195, DATED 5-2-2003. TEXAS COORDINATE SYSTEM, SOUTH CENTRAL ZONE, NAD 83, 93 ADJUSTMENT AND NAVD 88. COORDINATES LISTED ARE IN U.S. FEET. TO CONVERT FROM SURFACE TO GRID COORDINATES, DIVIDE BY A COMBINED ADJUSTMENT FACTOR OF 1.00013.
2. THIS MAP IS BASED ON ABSTRACTING PERFORMED BY LANDTECH CONSULTANTS INC. IN APRIL, 2011. FIELD SURVEYS COMPLETED APRIL, 2011. MAP SET COMPLETED APRIL, 2011.
3. A PROPERTY DESCRIPTION OF EVEN DATE ACCOMPANIES THIS PARCEL PLAT
4. ** THE MONUMENT DESCRIBED AND SET MAY BE REPLACED WITH A 1x1001 TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF THE HIGHWAY CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED PROFESSIONAL LAND SURVEYOR, EITHER EMPLOYED OR RETAINED BY TxDOT.
5. THIS PROJECT IS REFERENCED TO THE TEXAS STATE PLANE COORDINATE SYSTEM, SOUTH CENTRAL ZONE, NAD83 TO CONFORM WITH PREVIOUS R.O.W. MAPPING FM 2978 IN HARRIS COUNTY, TEXAS.

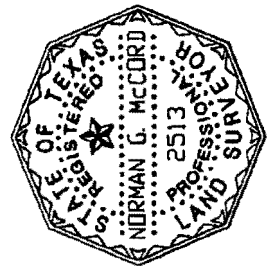
JOSEPH MILLER SURVEY
A-27



I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY SUPERVISION AND THAT THIS PLAT CORRECTLY REPRESENTS THE FACTS AS FOUND AT THE TIME OF THE SURVEY. SURVEY DATE: APRIL, 2011

Norman G. McCord 4-22-11

NORMAN G. MCCORD
REGISTERED PROFESSIONAL LAND SURVEYOR
NO. 2513, STATE OF TEXAS



April, 2011 by Landtech Consultants, Inc.
parcel / reduce taking

EXISTING	TAKING	REMAINING
0.7408 AC.	0.2133 AC.	0.4030 AC.LT
	9,290 Sq.Ft.	0.1245 AC.RT

*CALCULATED AREA

Landtech Consultants, Inc.
Civil Engineering & Land Surveying
2525 North Loop West
Suite 300
Houston, Texas 77008

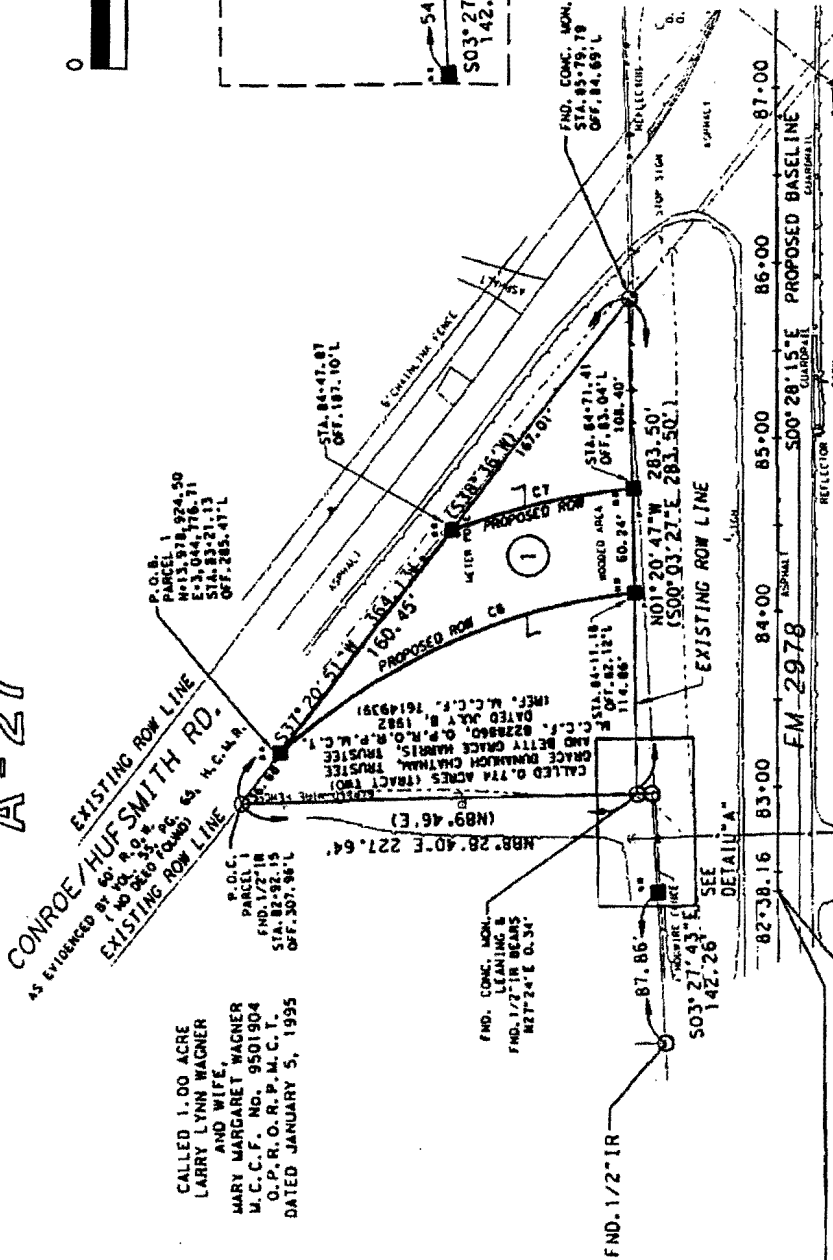
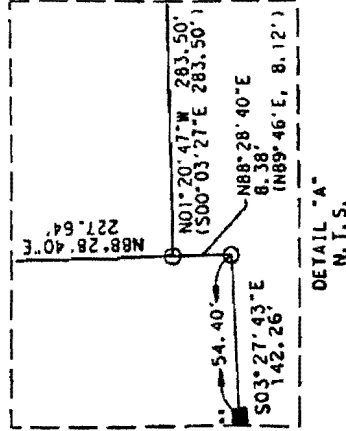
PARCEL 1
FM 2978
MONTGOMERY COUNTY, TEXAS
R.O.W. C.S.J.: 3050-02-022

DATE: APRIL, 2011 SCALE: N.T.S.

JOSEPH MILLER SURVEY A-27



0 100 200
SCALE 1"=100'



BEGIN PROJECT
STA. 82+38.16
R.C.S. NO. 3050-02-022
N= 13,979,005.13
E= 3,044,490.56
LATITUDE: 30° 08' 18.7224"N
LONGITUDE: 95° 35' 48.6362"W

CALLLED 1.460 ACRES (PART 1)
STATE OF TEXAS
M.C.C.F. NO. 245050
D.P.R.O.R.P.M.C.T.
DATED APRIL 2, 1970

CURVE TABLE

NO.	DELTA	RADIUS	LENGTH	CHORD BEARING	CHORD DIST.
1	14° 15' 11"	430.00'	106.37'	S78° 45' 49"W	106.63'
2	30° 58' 27"	376.00'	225.89'	N63° 38' 41"E	222.40'

Landtech Consultants, Inc.
Civil Engineering & Land Surveying
3525 North Loop West
Suite 300
Houston, Texas 77008

PARCEL 1
FM 2978
MONTGOMERY COUNTY, TEXAS
R.O.W. C.S.J. 3050-02-022

HIGHWAY: Spur 276
LIMITS: From SH 20, 0.168 Miles North of Borderland Rd. To 0.13 Miles West of IH 10
COUNTY: El Paso
ACCOUNT NO.:
ROW CSJ: 0608-01-002
OWNER: Big Diamond, Inc.

Property Description for Parcel 7

Being 6,050 square feet of land or 0.139 of an acre of land out of the Nellie D. Mundy Survey Number 239, City of El Paso, El Paso County, Texas, and being out of a called 2.1551 acre tract of land as described in deed to Big Diamond, Inc. recorded in Document Number 20100038159, Official Public Records of Real Property of El Paso County (O.P.R.R.P.E.C.), said 6,050 square feet of land or 0.139 acre, being more particularly described as follows:

COMMENCING at a point for the southwesterly corner of said Big Diamond, Inc. tract same being an interior corner of a tract of land described in deed to Transmountain Center, L.L.C. and recorded as Document Number 20060102388, O.P.R.R.P.E.C., from which a found 1/2-inch iron rod with cap bears North 54 degrees West, 0.3 feet;

THENCE North 03 degrees 14 minutes 38 seconds East, along the common line of said Big Diamond, Inc. and Transmountain Center L.L.C. tracts, a distance of 254.93 feet to a 5/8-inch iron rod with plastic cap "LANDTECH" set on the proposed easterly right-of-way line of Spur 276 on the common line of said Big Diamond, Inc. tract, Transmountain Center, L.L.C. tract and a tract of land described in deed to City of El Paso, recorded in Volume 3910, Page 0171, O.P.R.R.P.E.C., for the southwest corner and POINT OF BEGINNING of the herein described parcel, at 87.19 feet right of Spur 276 Proposed Baseline Station 79+44.33;

- 1.) THENCE North 03 degrees 14 minutes 38 seconds East, along a line common to said Big Diamond, Inc. tract and City of El Paso tract, a distance of 50.84 feet to a point on the existing southerly right-of-way line of Loop 375 (Talbot Avenue [varying width] formerly known as F.M. Road 259), recorded in Volume 1523, Page 0507, El Paso County Deed Records (E.P.C.D.R.), and the northwest corner of the herein described parcel;
- 2.) THENCE South 86 degrees 45 minutes 22 seconds East, along the existing southerly right-of-way line of said Loop 375, a distance of 238.01 feet to a point on said proposed southerly right-of-way line of Spur 276 on the existing westerly right-of-way line of Interstate Highway 10, as described in deed to The State of Texas, recorded in Volume 1320, Page 251, E.P.C.D.R., at the northeast corner of said Big Diamond, Inc. tract, for the northeast corner of the herein described parcel, from which a found 5/8-inch iron rod bears North 15 degrees East, 0.8 feet;

- 3.) THENCE South 81 degrees 11 minutes 15 seconds West, along said proposed easterly right-of-way line of Spur 276, a distance of 243.38 feet to the POINT OF BEGINNING and containing 6,050 square feet or 0.139 of an acre of land.

Access will be permitted to the highway facility from the remainder of the property along Spur 276.

A plat of even date accompanies this legal description.

Note: All bearings and coordinates are referenced to the Texas State Coordinate System, Central Zone, NAD 83 (NSRS 2007) as supplied by TxDOT and Jacobs Carter Burgess and are referenced to NGS stations and their respective provided coordinates as shown, CHINO (CE0444) X=358,754.59 Y=10,717,710.57 and EL PASO (CE0732) X=353,776.33, Y=10,706,506.99. All distances and coordinates are surface and may be converted to grid by dividing by the surface adjustment factor of 1.00023100.

I, Scott M. Fertak, a Registered Professional Land Surveyor, do hereby certify that to the best of my knowledge and belief, this property description is a true and correct representation of a survey made on the ground, under my direction and supervision.

Revised Added sign Detail to Parcel Sketch, 14 February 2012



Date: 14 day of February 2012


Scott M. Fertak
Registered Professional Land Surveyor
No. 5257



LOOP 375

7

EXISTING R.O.W.

PROP. R.O.W.

NELLIE D. MUNDY
SURVEY NO. 239

P.O.B.



BIG DIAMOND INC.
CALLED 2.1551
DOC. NO. 20100038159
O.P.R.P.E.C.
JUNE 9, 2010

P.O.C.

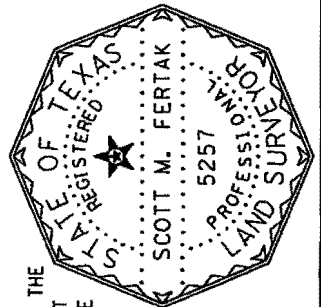
PARCEL 7
N.T.S.

NOTES:

1. ALL BEARINGS AND COORDINATES ARE REFERENCED TO THE TEXAS COORDINATE SYSTEM, CENTRAL ZONE, NAD 83 (NSRS 2007) AS SUPPLIED BY TxDOT AND JACOBS CARTER AND BURGESS AND ARE REFERENCED TO NGS STATIONS AND THEIR RESPECTIVE PROVIDED COORDINATES AS SHOWN, CHINO (CE0444) X=358,754.59, Y=10,717,710.5 AND EL PASO (CE0732) X=353,776.33, Y=10,705,506.99. ALL DISTANCES AND COORDINATES ARE SURFACE AND MAY BE CONVERTED TO STATE PLANE (GRID) BY DIVIDING BY THE SURFACE ADJUSTMENT FACTOR OF 1.00023100.
2. SUBJECT TO AND UNDEFINED EASEMENT ACROSS NELLIE D. MUNDY SURVEY NO. 239, AND 240 FROM LEE H. ORNDORFF TO THE EL PASO ELECTRIC COMPANY, RECORDED IN VOL. 533, PAGE 323, EL PASO COUNTY DEED RECORDS, JAN. 6, 1931.
3. SUBJECT TO AND UNDEFINED EASEMENT ACROSS NELLIE D. MUNDY SURVEY NOS. 239, 240 AND 241 FROM LEE H. ORNDORFF TO THE MOUNTAIN STATES TELEGRAPH COMPANY, RECORDED IN VOL. 539, PG. 88, EL PASO COUNTY DEED RECORDS, NOV. 14, 1930.
4. THIS PLAT ACCOMPANIES A PROPERTY DESCRIPTION OF EVEN DATE.

AREA TABLE (ACRES)		
EXISTING	ACQUIRE	REMAINDER
	LEFT	RIGHT
2.155	0.139	2.016

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY SUPERVISION AND THAT THIS PLAT CORRECTLY REPRESENTS THE FACTS AS FOUND AT THE TIME OF THE SURVEY.
SURVEY DATE: AUG. 26, 2011



Signature of Scott M. Fertak
SCOTT M. FERTAK
REGISTERED PROFESSIONAL LAND SURVEYOR
NO. 5257

LEGEND	
EXIST. ROW LINE	---
PROP. ROW LINE	---
PROPERTY LINE	---
COUNTY LINE	---
PROPOSED ACCESS DENIAL LINE	---
EXISTING ACCESS DENIAL LINE	---
SURVEY LINE	---
FENCE	---
CITY LIMITS	---
E.P.C.P.R. - EL PASO COUNTY PLAT RECORDS	---
E.P.C.D.R. - EL PASO COUNTY DEED RECORDS	---
O.P.R.P.E.C. - OFFICIAL PUBLIC RECORDS OF REAL PROPERTY EL PASO COUNTY	---
SET 5/8" IRON ROD W/TXDOT ROW	●
ALUMINUM CAP (UNLESS NOTED)	○
PROPERTY CORNER FOUND AS NOTED.	○
PARCEL NUMBER	⊙

PARCEL 7
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
BIG DIAMOND, INC.

SPUR 276 EL PASO COUNTY
CSJ 0608-01-002
LANDTECH CONSULTANTS, INC. SEPT. 2011
PAGE 3 OF 5 SCALE: 1" = 50'

(TALBOT AVENUE, 259)
FORMERLY KNOWN AS F.M.
(WIDTH VARIES)
VOL. 1523, PG. 0507
E.P.C.D.R.
FEB. 12, 1960

CITY OF EL PASO
VOL. 3910 PG. 0171
O.P.R.R. P.E.C.
DEC. 29, 2000
CALLED 5.5211 AC.

EXISTING R. O. W.

32.7'

16.1'

24.4'

WOOD SIGN
65' HIGH
2-4"x4" POSTS

7

PROP.

DETAIL 'A'
N.T.S.

TRANS MOUNTAIN
COMMERCIAL PARK
UNIT TWO
VOL. 76, PG. 01,
E.P.C.P.R.

TRANSMOUNTAIN CENTER L.L.C.
DOC.#20060102388
O.P.R.R.P.E.C.
OCT. 23, 2006
11.853 AC.

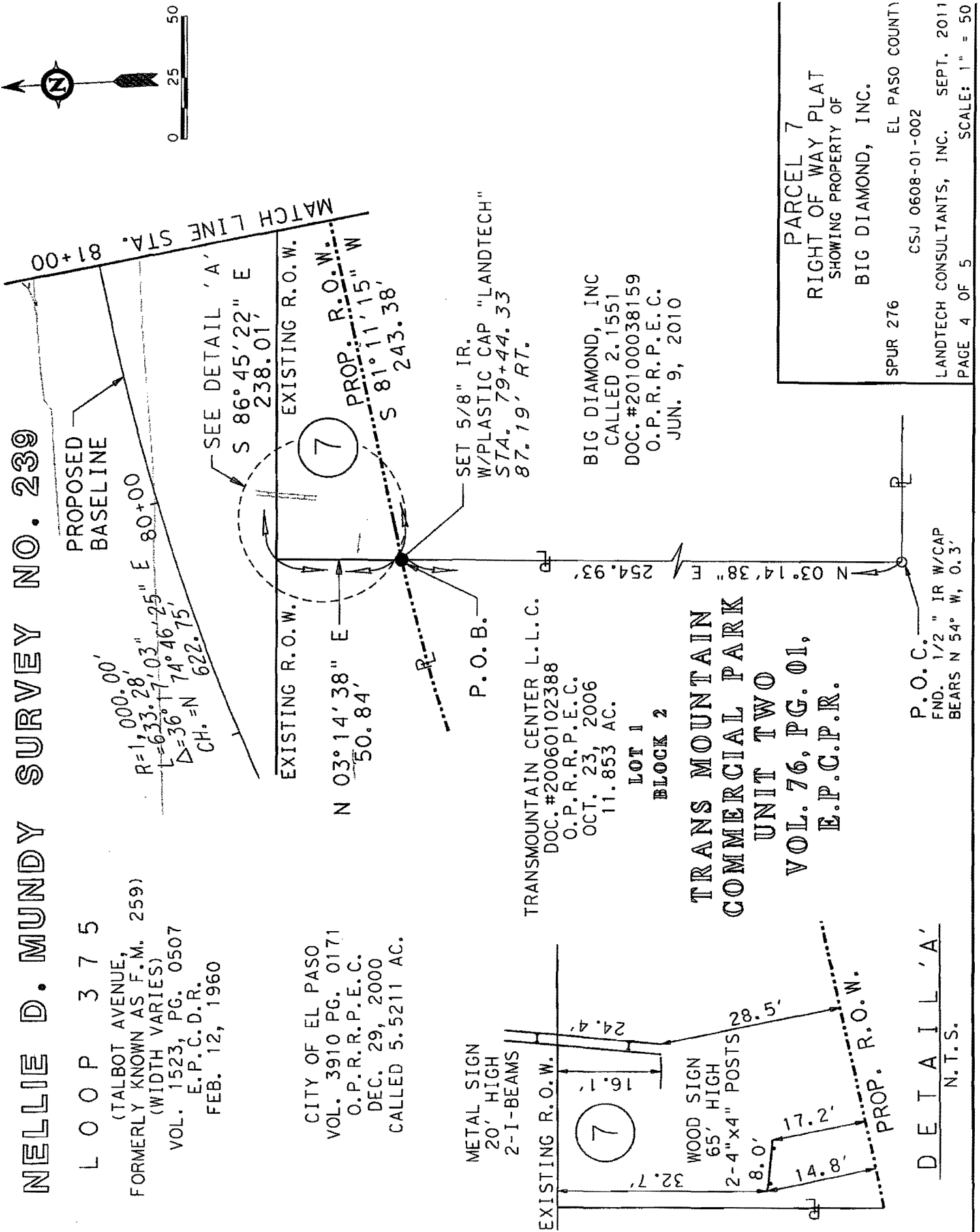
LOT 1
BLOCK 2

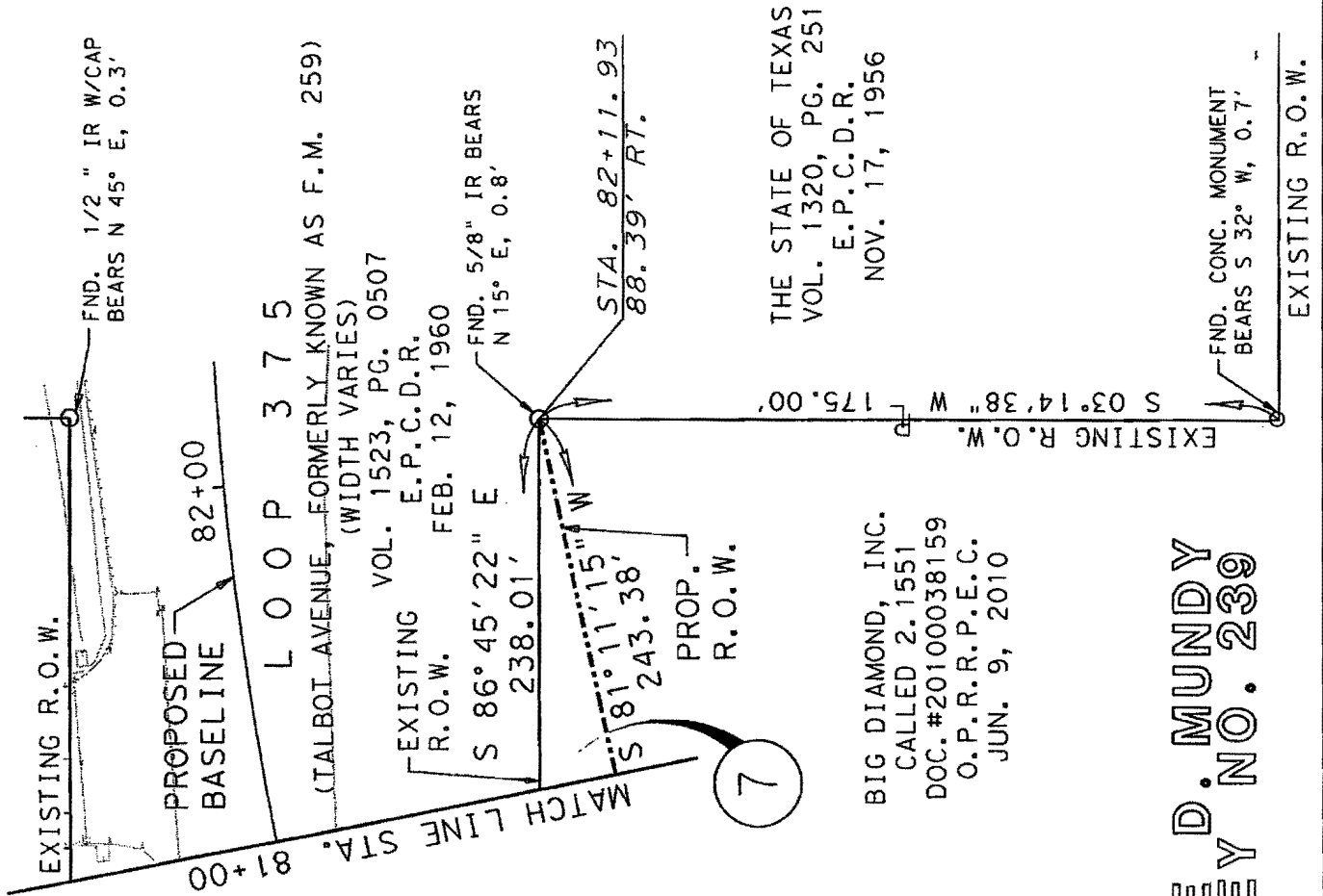
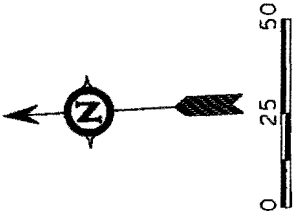
P.O.C.
FND. 1/2" IR W/CAP
BEARS N 54° W, 0.3'

BIG DIAMOND, INC
CALLED 2.1551
DOC.#20100038159
O.P.R.R.P.E.C.
JUN. 9, 2010

PARCEL 7
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
BIG DIAMOND, INC.

SPUR 276
EL PASO COUNTY
CSJ 0608-01-002
LANDTECH CONSULTANTS, INC. SEPT. 2011
PAGE 4 OF 5 SCALE: 1" = 50'





BIG DIAMOND, INC.
CALLED 2.1551
DOC. #20100038159
O.P.R.P.E.C.
JUN. 9, 2010

NELLIE D. MUNDY
SURVEY NO. 239

PARCEL 7
RIGHT OF WAY PLAT
SHOWING PROPERTY OF
BIG DIAMOND, INC.

SPUR 276 EL PASO COUNT
CSJ 0608-01-002
LANDTECH CONSULTANTS, INC. SEPT. 201

PAGE 5 OF 5 SCALE: 1" = 50'

Revised: May, 2011
September, 2010
Parcel 321
Page 1 of 9 Pages

County: Harris
Highway: Interstate Highway 610
Limits: West of West 34th St. on US 290 to North and South of US 290 on IH 610
RCSJ: 0271-14-225

Property Description for Parcel 321

Being a 0.7396 acre (32,216 square feet) parcel of land situated in the John Flowers Survey, Abstract 269, Harris County, Texas and being out of three (3) tracts of land conveyed to Keystone 290 Partnership Interest, LLC: a called 0.8459 of one acre tract, a called 3.2000 acre tract and a called 0.0918 of one acre tract dated November 05, 2009, October 28, 2009 and October 28, 2009, respectively and recorded under File Numbers 2009050645, 20090493763 and 20090493762, Film Code Numbers 014-35-0903, 014-24-0934 and 014-24-0927, respectively, all of the Harris County Official Public Records of Real Property (H.C.O.P.R.R.P.); said 0.7396 acre tract also being out of Restricted Reserve "A" of Keystone Plaza Retail Center, a subdivision in said Harris County according to the map or plat thereof recorded in Volume 332, Page 3 of the Harris County Map Records (H.C.M.R.); said 0.7396 acre tract being more particularly described as follows, with all bearings based on the Texas State Plane Coordinate System, South Central Zone, North American Datum of 1983 (1993 Adjustment). All distances and coordinates are surface and may be converted to grid by dividing by the combined adjustment factor of 1.00013.

COMMENCING at a 5/8-inch iron rod found in the existing southerly right-of-way line of Sherwood Lane (80 feet wide) as shown on the plat recorded in Volume 284, Page 123 of said H.C.M.R. for the northeast corner of said 0.8459 acre tract and the northwest corner of said 3.2000 acre tract and being the beginning of a curve to the left; thence as follows:

Southwesterly, along said existing southerly right-of-way line of Sherwood Lane and along the arc of said curve to the left having a Central Angle of 37°34'10"; a Radius of 275.00 feet; a Chord Bearing and Distance of South 87°24'07" West, 177.11 feet and an arc distance of 180.32 feet to a 5/8-inch iron rod with TxDOT aluminum cap set at the point of intersection with the proposed easterly right-of-way line of U.S. 290 (width varies), and being the POINT OF BEGINNING (N=13,862,372.55, E=3,090,687.60), and being at Baseline Station 2876+35.22, 253.44 feet left;**

THENCE, along said proposed easterly right-of-way line of U.S. 290, the following courses:

- 1.) South 43°48'51" West, a distance of 32.03 feet to a 5/8-inch iron rod with TxDOT aluminum cap set for an angle point at Baseline Station 2876+35.93, 221.42 feet left;**

Revised: May, 2011
September, 2010
Parcel 321
Page 2 of 9 Pages

- 2.) South 09°54'35" East, a distance of 32.44 feet to a PK nail set for an angle point at Baseline Station 2876+62.50, 202.80 feet left;**
- 3.) South 44°55'13" East, passing at a distance of 40.94 feet a point in the northwesterly line of a called 0.2755 acre lease tract to Steak and Ale of Texas described in a memorandum of lease dated November 01, 1985 and recorded under File Number K310200, Film Code Number 032-74-1231 of said H.C.O.P.R.R.P., and continuing for a total distance of 70.69 feet to a PK nail set for the beginning of a tangent curve to the right, and being at Baseline Station 2877+30.20, 202.80 feet left;**
- 4.) Southeasterly, along the arc of said curve to the right, passing at an arc distance of 51.74 feet a point in the westerly line of said 0.2755 acre lease tract, and continuing along said curve to the right for a total arc distance of 74.39 feet having a Central Angle of 00°50'56"; a Radius of 5,021.00 feet; a Chord Bearing and Distance of South 44°29'45" East, 74.39 feet to a PK nail set for a point of tangency at Baseline Station 2878+07.58, 202.25 feet left;**
- 5.) South 44°04'17" East, passing at a distance of 9.32 feet, a line common to said 0.8459 acre tract and said 3.2000 acre tract, and continuing for a total distance of 63.77 feet to a PK nail set for an angle point at Baseline Station 2878+71.34, 201.32 feet left, and being the beginning of an Access Denial Line;**
- 6.) North 45°55'40" East, along said Access Denial Line, a distance of 20.00 feet to a PK nail set for an angle point at Baseline Station 2878+71.64, 221.32 feet left;**
- 7.) South 44°04'20" East, continuing along said Access Denial Line, a distance of 20.00 feet to a PK nail set for an angle point at Baseline Station 2878+91.64, 221.08 feet left;**
- 8.) South 45°55'40" West, continuing along said Access Denial Line, a distance of 20.00 feet to a PK nail set for an angle point at Baseline Station 2878+91.34, 201.08 feet left, and being the end of said Access Denial Line;**
- 9.) South 44°04'17" East, a distance of 19.70 feet to a PK nail set for corner, being in the arc of a non-tangent curve to the left at Baseline Station 2879+10.00, 200.87 feet left;**

Revised: May, 2011
September, 2010
Parcel 321
Page 3 of 9 Pages

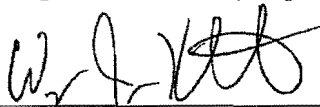
- 10.) Southeasterly, along the arc of said curve to the left having a Central Angle of $00^{\circ}50'39''$; a Radius of 4,979.00 feet; a Chord Bearing and Distance of South $44^{\circ}29'36''$ East, 73.35 feet and an arc distance of 73.35 feet to a PK nail set for a point of tangency at Baseline Station 2879+82.00, 200.95 feet left;**
 - 11.) South $44^{\circ}54'55''$ East, passing at a distance of 18.34 feet a PK nail set at Baseline Station 2880+00.00, 201.18 feet left, passing at a distance of 162.40 feet a point in the southerly line of said 3.2000 acre tract and the northerly line of said 0.0918 acre tract, and continuing for a total distance of 255.30 feet to a PK nail set in the southerly line of said 0.0918 acre tract, and being at Baseline Station 2882+35.58, 205.71 feet;
 - 12.) THENCE, South $45^{\circ}06'26''$ West, along the southerly line of said 0.0918 acre tract, a distance of 38.14 feet to a 5/8-inch iron rod with cap stamped "S&V SURVEYING" for the southwest corner of said 0.0918 acre tract, and being in the existing easterly right-of-way line of said U.S. 290 (width varies) conveyed to the State of Texas as Parcel 24Y (Part No. 2) in deed recorded in Volume 7552, Page 84 of the Harris County Deed Records (H.C.D.R.);
- THENCE, along said existing easterly right-of-way line of said U.S. 290, the following courses:
- 13.) North $44^{\circ}55'07''$ West, passing at a distance of 95.40 feet a found "X" in concrete for the northwest corner of said 0.0918 acre tract and the southwest corner of said 3.2000 acre tract, and continuing for a total distance of 216.19 feet to an angle point;
 - 14.) North $50^{\circ}10'38''$ West, passing at a distance of 205.05 feet a point for the most westerly corner of said 3.2000 acre tract and the most southerly corner of said 0.8459 acre tract, and continuing for a total distance of 276.55 feet to an angle point;
 - 15.) North $44^{\circ}55'13''$ West, a distance of 112.35 feet to a point for a southerly cut-back corner, from which a found "X" in concrete bears North $31^{\circ}36'00''$ East, 0.33 feet;
 - 16.) THENCE, North $03^{\circ}36'26''$ East, a distance of 34.35 feet to a 5/8-inch iron rod found for a northerly cut-back corner in the aforementioned existing southerly right-of-way line of Sherwood Lane, and being the beginning of a non-tangent curve to the right;
 - 17.) THENCE, Northeasterly, along said existing southerly right-of-way line of Sherwood Lane and along the arc of said curve to the right having a Central Angle of $19^{\circ}37'04''$; a Radius of 275.00 feet; a Chord Bearing and Distance of North $58^{\circ}48'30''$ East, 93.70 feet and an arc distance of 94.16 feet to the POINT OF BEGINNING, containing an area of 0.7396 of one acre (32,216 square feet) of land.

Revised: May, 2011
September, 2010
Parcel 321
Page 4 of 9 Pages

**** The monument described and set in this call may be replaced with a TxDOT Type II Right-of-way marker upon the completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.**

Access is prohibited across the Access Denial Line to the Highway facility from the abutting remainder property.

I, Wayne J. McKittrick, a Registered Professional Land Surveyor, hereby certify that the legal description above and the accompanying plat of even date represent an actual survey made on the ground under my supervision.

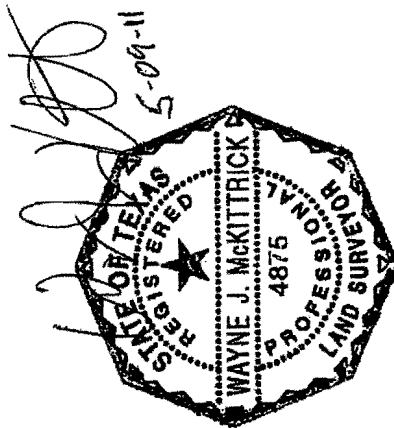
 5-09-11

Wayne J. McKittrick, R.P.L.S.
Texas Registration No. 4875
Survcon Inc.
5757 Woodway Avenue
Houston, Texas 77057
713-780-4123
Job No. 60019718
Revised: May, 2011
September, 2010



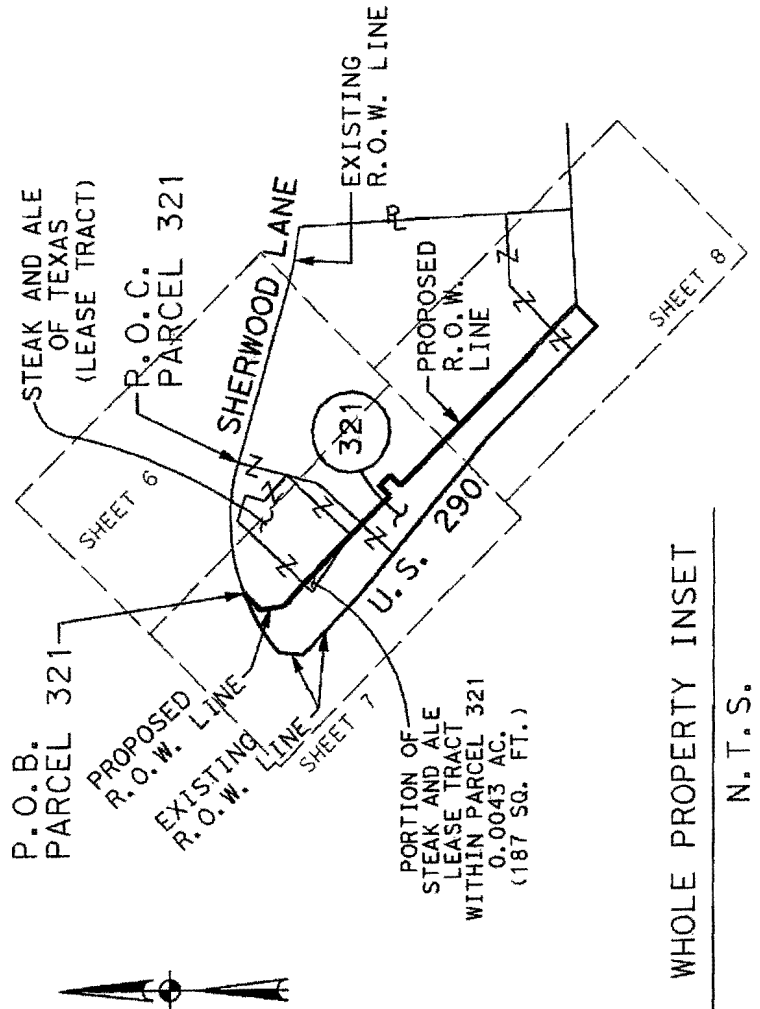
LEGEND

- SET TxDOT MONUMENT UNLESS NOTED OTHERWISE
- FOUND CONCRETE MONUMENT
- SET 5/8" I.R. W/ PLASTIC CAP STAMPED "SURVCON INC."
- FOUND MONUMENT AS NOTED
- ▣ INDICATES SET 5/8" IRON ROD W/ TxDOT ALUMINUM CAP STAMPED "ADL" UNLESS NOTED OTHERWISE
- R_c PROPERTY LINE
- I.R. IRON ROD
- I.P. IRON PIPE
- P.O.B. POINT OF BEGINNING
- P.O.C. POINT OF COMMENCING
- H.C.D.R. HARRIS COUNTY DEED RECORDS
- H.C.M.R. HARRIS COUNTY MAP RECORDS
- H.C.O.P.R.P. HARRIS COUNTY OFFICIAL PUBLIC RECORDS OF REAL PROPERTY
- H.C.C.R. HARRIS COUNTY CIVIL COURT RECORDS



NOTES:

1. ALL BEARINGS AND COORDINATES ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, SOUTH CENTRAL ZONE, NAD83 (1993 ADJUSTMENT). (ALL FOUND MONUMENTS HEREON WERE TIED TO THE HORIZONTAL CONTROL POINTS ESTABLISHED FOR TXDOT ALONG THE US 290 CORRIDOR). ALL COORDINATES AND DISTANCES ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY A COMBINED ADJUSTMENT FACTOR OF 1.00013.
 2. DRAWINGS ARE BASED ON ABSTRACTING PERFORMED JUNE 2007 & APRIL 2011.
 3. DRAWINGS ARE BASED ON FIELD SURVEYS PERFORMED JUNE 2007 THROUGH OCTOBER 2008 & APRIL 2011.
 4. A PROPERTY DESCRIPTION OF EVEN DATE WAS PREPARED IN CONJUNCTION WITH THIS PARCEL PLAT.
- ** THE MONUMENT DESCRIBED AND SET MAY BE REPLACED WITH A TxDOT TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF THE HIGHWAY CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED PROFESSIONAL LAND SURVEYOR, EITHER EMPLOYED OR RETAINED BY TxDOT.



WHOLE PROPERTY INSET

N.T.S.

SHEET 5 OF 9

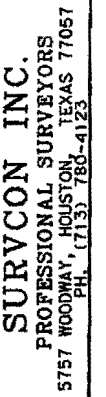
REVISIONS	
NO.	DATE
1	5/11
UPDATED OWNERSHIP DEED INFORMATION & REVISED R.O.W. TAKE	
EXISTING	TAKING
4.1377 AC.	0.7396 AC.
	32,216 S.F.
	3.3981 AC.
	LT.
PARCEL PLAT SHOWING PARCEL 321	
RCSJ: 0271-14-225	

COUNTY: HARRIS DATE: SEPT. 2010
HIGHWAY: IH 610 SCALE: 1" = 50'



SURVCON INC.
PROFESSIONAL SURVEYORS
5757 WOODWAY, HOUSTON, TEXAS 77057
PH. (713) 780-4123

5/9/2011 1:19:44 PM ...\\seg\3\213\US290P\321A.dgn





PARCEL PLAT SHOWING
PARCEL 321
RCSJ:0271-14-225

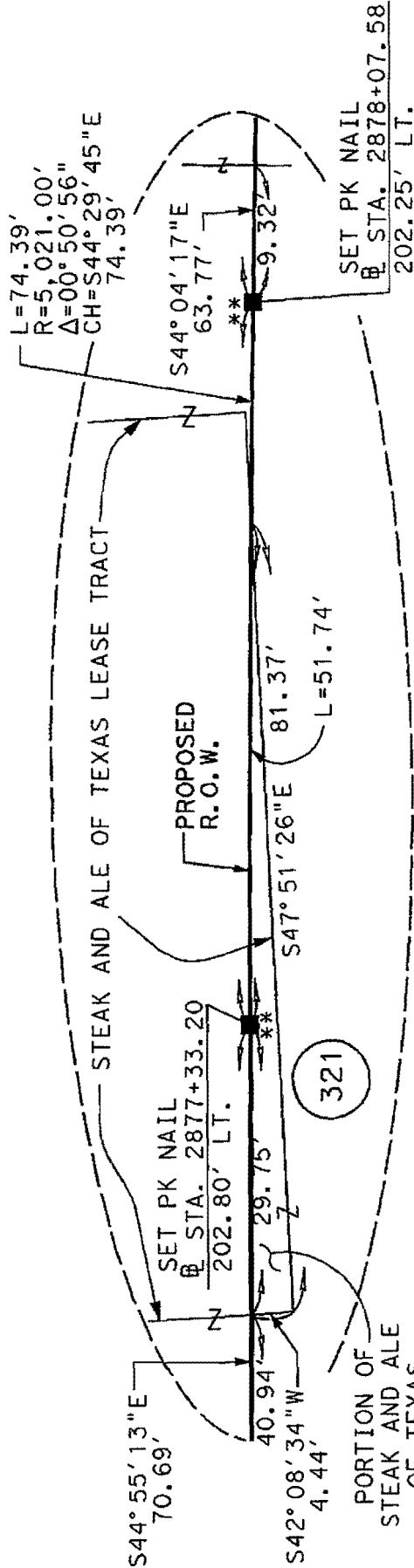
COUNTY: HARRIS
HIGHWAY: IH 610
DATE: SEPT. 2010
SCALE: 1" = 50'



SURVCON INC.
PROFESSIONAL SURVEYORS
5757 WOODWAY, HOUSTON, TEXAS 77057
PH. (713) 780-4123



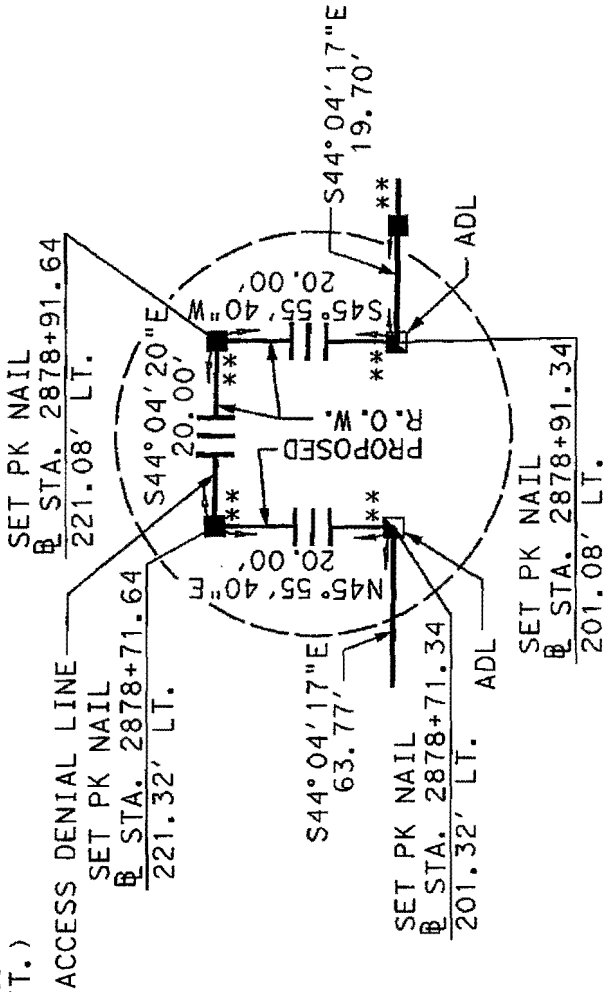
\\seg3\3\213\U6290P\321E.dgn 10:48:32 AM 5/9/2011



DETAIL "A"

N. T. S.

PORTION OF
STEAK AND ALE
LEASE TRACT 321
WITHIN PARCEL 321
0.0043 AC.
(187 SQ. FT.)



DETAIL "B"

N. T. S.



PARCEL PLAT SHOWING
PARCEL 321
RCSJ: 0271-14-225

COUNTY: HARRIS DATE: SEPT. 2010
HIGHWAY: IH 610 SCALE: 1" = 50'



SURVCON INC.
PROFESSIONAL SURVEYORS
5757 WOODWAY, HOUSTON, TEXAS 77057
PH. (713) 780-4123

September, 2010
Parcel 301
Page 1 of 4 Pages

County: Harris
Highway: Interstate Highway 610
Limits: West of West 34th St. on US 290 to North and South of US 290 on IH 610
RCSJ: 0271-14-225

Property Description for Parcel 301

Being a 0.0105 acre (458 square feet) parcel of land situated in the John Flowers Survey, Abstract 269, Harris County, Texas and being out of a called 3.929 acre tract of land conveyed to ASR 11500 NW, LP described in deed dated October 20, 2004 and recorded under File Number Y007254, Film Code Number 594-42-1155 of the Harris County Official Public Records of Real Property (H.C.O.P.R.R.P.), and being a portion of Unrestricted Reserve "A" of Eleven Thousand Five Hundred Northwest Freeway, a subdivision situated in said Harris County of record under Film Code Number 373059 of the Harris County Map Records (H.C.M.R.); said 0.0105 acre tract being more particularly described as follows, with all bearings based on the Texas State Plane Coordinate System, South Central Zone, North American Datum of 1983 (1993 Adjustment). All distances and coordinates are surface and may be converted to grid by dividing by the combined adjustment factor of 1.00013.

COMMENCING at a 1-inch iron pipe with cap stamped "Cotton Surveying" found for the southeast corner of said 3.929 acre tract, also being the southwest corner of Block One of Restricted Reserve "A" of Northwest Car Care, a subdivision situated in said Harris County of record under Film Code Number 531045 of said H.C.M.R.; and being in the existing northerly right-of-way line of Milwee Street (width varies) as recorded under Volume 7, Page 67 of said H.C.M.R.; thence as follows:

South 86°59'25" West, along said existing northerly right-of-way line of Milwee Street, a distance of 75.56 feet to an angle point;

North 68°58'58" West, continuing along said existing northerly right-of-way line of Milwee Street, a distance of 20.18 feet to a 5/8-inch iron rod with TxDOT aluminum cap set at the point of intersection with the proposed easterly right-of-way line of U.S. 290 (width varies), and being the POINT OF BEGINNING (N=13,865,257.03, E=3,087,656.18), and being at Baseline Station 2834+59.67, 162.54 feet left;**

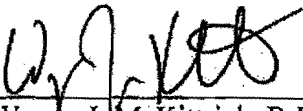
September, 2010
Parcel 301
Page 2 of 4 Pages

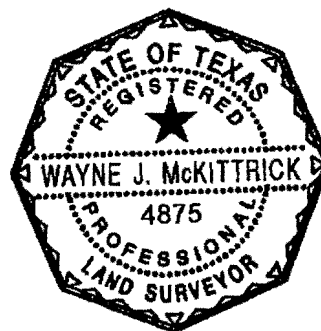
- 1) THENCE, North 68°58'58" West, continuing along said existing northerly right-of-way line of Milwee Street, a distance of 17.25 feet to the point of intersection with the existing easterly right-of-way line of said U.S. 290 (width varies) as conveyed to the State of Texas in two tracts: a tract described as Parcel 7Y described in deed recorded in Volume 4144, Page 42 of the Harris County Deed Records (H.C.D.R.), and a tract described as Parcel 8Y described in deed recorded in Volume 4101, Page 622 of said H.C.D.R., from which a found 1-inch iron pipe with cap stamped "Cotton" bears South 64°24'21" East, 0.74 feet;
- 2) THENCE, North 44°55'13" West, along said existing easterly right-of-way line of U.S. 290, a distance of 130.17 feet to a 5/8-inch iron rod with TxDOT aluminum cap set at the point of intersection with the aforementioned proposed easterly right-of-way line of U.S. 290, and being at Baseline Station 2833+13.24, 162.52 feet left;**
- 3) THENCE, South 47°40'48" East, along said proposed easterly right-of-way line of U.S. 290, a distance of 146.09 feet to the POINT OF BEGINNING, containing an area of 0.0105 of one acre (458 square feet) of land.

** The monument described and set in this call may be replaced with a TxDOT Type II Right-of-way marker upon the completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.

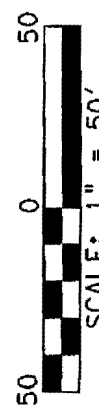
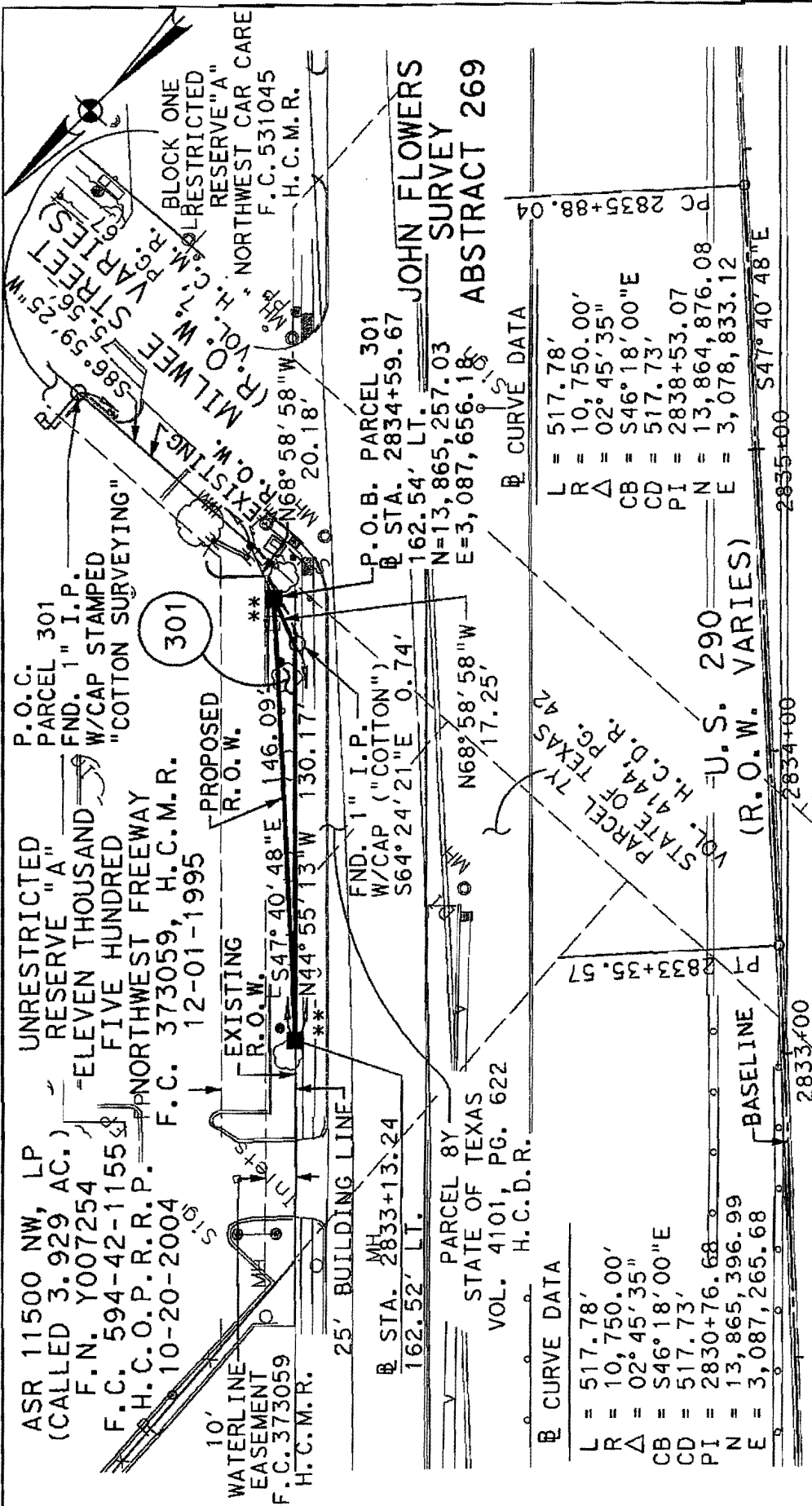
Access will be permitted to the facility from the remainder of the property abutting the highway facility.

I, Wayne J. McKittrick, a Registered Professional Land Surveyor, hereby certify that the legal description above and the accompanying plat of even date represent an actual survey made on the ground under my supervision.

 9-30-10
Wayne J. McKittrick, R.P.L.S. September, 2010
Texas Registration No. 4875
Survcon Inc.
5757 Woodway Avenue
Houston, Texas 77057
713-780-4123
Job No. 60019718



SHEET 3 OF 4



PARCEL PLAT SHOWING PARCEL 301 RCSJ:0271-14-225	
COUNTY: HARRIS HIGHWAY: IH 610	DATE: SEPT. 2010 SCALE: 1" = 50'
 SURVCON INC. PROFESSIONAL SURVEYORS 5757 WOODWAY, HOUSTON, TEXAS 77057 PH. (713) 780-4123	



LAND SURVEYORS, INC.

"Recognizing the landmarks of the past.....setting our foresight towards the future"

Richard L. Worthey, RPLS
J.L. Sims, Jr., RPLS

PARCEL 22

Page 1 of 5 Pages
C.C.S.J. No.: 0176-02-102
R.C.S.J. No.: 0176-02-112
County: Angelina
Highway: US Highway 59
Date: December 2010

Property Description:

BEING a 0.252 acre (10985.5 square feet) tract of land out of and a part of that certain Rivercrest Redland Voluntary Fire Department tract of land, more fully described and recorded in Volume 1094, Page 535 dated March 5, 1997 of the Deed Records of Angelina County, Texas. Said 0.252 acre (10985.5 square feet) tract of land being situated in the Vicente Micheli Survey, Abstract No. 29, Angelina County, Texas and being more particularly described as follows:

COMMENCING at a 1/2 inch iron rod found at the Northeast corner of said Rivercrest Redland Voluntary Fire Department tract, same being an Ell corner of that certain Redland Water Supply Corporation called 3.679 acre tract of land, more fully described and recorded in Volume 504, Page 753 dated June 10, 1980 of said Deed Records;

Thence South 13 deg. 27 min. 51 sec. East along and with the East line of said Rivercrest Redland Voluntary Fire Department tract, same being the most Southerly West line of said Redland Water Supply Corporation tract, a distance of 65.95 feet to a point at the Southeast corner of said Rivercrest Redland Voluntary Fire Department tract, same being the Northeast corner of that certain Darlene D. Williams called 0.33 acre tract of land, more fully described and recorded in Volume 833, Page 559 dated April 17, 1991 of said Deed Records;

Thence South 86 deg. 03 min. 41 sec. West along and with the South line of said Rivercrest Redland Voluntary Fire Department tract, same being the North line of said Williams tract, a distance of 57.36 feet to a 5/8 inch iron rod with TxDOT aluminum cap stamped "ROW Monument Lufkin District Property Corner" set for corner in a control of access line in the East right-of-way line of proposed US Highway 59 and being at the **PLACE OF BEGINNING** of the tract of land herein described, from which Engineer's Survey Centerline Station 319+90.89 on said proposed US Highway 59 bears South 82 deg. 55 min. 53 sec. West, a distance of 177.94 feet. Said beginning point has a TxDOT Project Coordinate of N. 10,519,293.7883 feet and E. 4,047,173.2932 feet;





PARCEL 22

Page 2 of 5 Pages
C.C.S.J. No.: 0176-02-102
R.C.S.J. No.: 0176-02-112
County: Angelina
Highway: US Highway 59
Date: December 2010

- (1) **THENCE South 86 deg. 03 min. 41 sec. West** continuing along and with the South line of said Rivercrest Redland Voluntary Fire Department tract, same being the North line of said Williams tract, a distance of **163.22 feet** to a point at the Southwest corner of said Rivercrest Redland Voluntary Fire Department tract, same being the Northwest corner of said Williams tract and being in the East right-of-way line of existing US Highway 59, from which a 1/2 inch iron rod found bears South 86 deg. 10 min. 55 sec. West, a distance of 0.68 feet and also from which Engineer's Survey Centerline Station 319+99.80 on said proposed US Highway 59 bears South 82 deg. 55 min. 53 sec. West, a distance of 14.96 feet;
- (2) **THENCE North 12 deg. 15 min. 08 sec. West** along and with the West line of said Rivercrest Redland Voluntary Fire Department tract, same being the East right-of-way line of said existing US Highway 59, a distance of **65.74 feet** to a point at the Northwest corner of said Rivercrest Redland Voluntary Fire Department tract, same being the most Northerly Southwest corner of said Redland Water Supply Corporation tract, from which a 1/2 inch iron rod found (bent) bears South 86 deg. 03 min. 41 sec. West, a distance of 0.46 feet and also from which Engineer's Survey Centerline Station 320+65.27 on said proposed US Highway 59 bears South 82 deg. 55 min. 53 sec. West, a distance of 9.02 feet;
- (3) **THENCE North 86 deg. 03 min. 41 sec. East** along and with the North line of said Rivercrest Redland Voluntary Fire Department tract, same being the most Northerly South line of said Redland Water Supply Corporation tract, a distance of **174.56 feet** to a 5/8 inch iron rod with TxDOT aluminum cap stamped "ROW Monument Lufkin District Property Corner" set for corner in said control of access line in the East right-of-way line of said proposed US Highway 59, from which Engineer's Survey Centerline Station 320+55.74 on said proposed US Highway 59 bears South 82 deg. 55 min. 53 sec. West, a distance of 183.32 feet;

W~~P~~ORTECH
LAND SURVEYORS, INC.

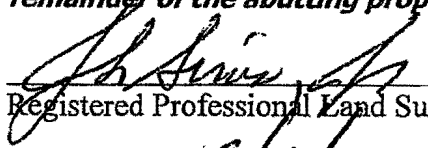
PARCEL 22

Page 3 of 5 Pages
C.C.S.J. No.: 0176-02-102
R.C.S.J. No.: 0176-02-112
County: Angelina
Highway: US Highway 59
Date: December 2010

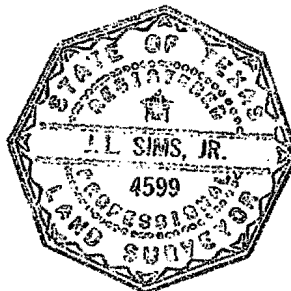
- (4) **THENCE South 02 deg. 19 min. 17 sec. East** along and with the East right-of-way line of said proposed US Highway 59 and said control of access line, a distance of **65.07 feet** to the **PLACE OF BEGINNING**, containing 0.252 acre (10985.5 square feet) of land, more or less.

(This description is based upon a survey made on the ground under my direct supervision in December 2010, and is being submitted along with a survey plat showing the property and facts found as described herein. All bearings are referenced to the Texas Coordinate System of 1983, Central Zone. All coordinates, acreages, and distances are TxDOT Project (surface feet) and may be converted to Grid by dividing the north and east coordinate values by a surface adjustment factor of 1.0000295. Then add 311.731 feet to the north coordinate value and 119.245 feet to the east coordinate value.)

"ACCESS is prohibited across the access denial line to the highway facility from the remainder of the abutting property."


Registered Professional Land Surveyor

Date Signed: 6/6/11



CONVEYANCE DATA CHART

FROM	STATION	TO	CURRENT TRACT	ROW	ACQUIRED	APPROX	REMAINDER
STA 319+90.89	STA 320+55.27	ENGLISH	ENGLISH	ENGLISH	ENGLISH	ENGLISH	ENGLISH
			CALC 0.333 AC		0.252 AC		CALC 0.081 AC

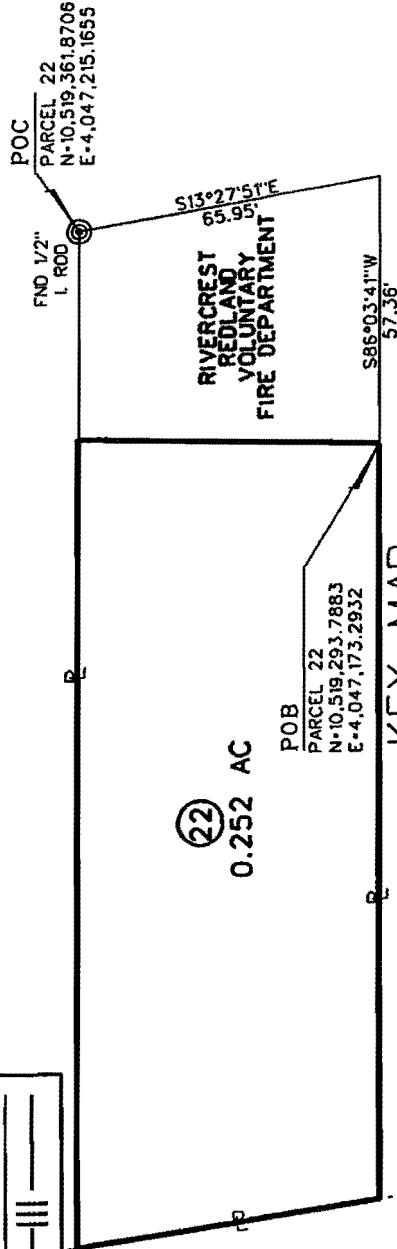
NOTES:

1. ALL BEARINGS ARE REFERENCED TO THE TEXAS COORDINATE SYSTEM OF 1983. CENTRAL ZONE. ALL COORDINATES, ACRES, AND DISTANCES ARE TxDOT PROJECT (SURFACE FEET) AND MAY BE CONVERTED TO GRID BY DIVIDING THE NORTH AND EAST COORDINATE VALUES BY A SURFACE ADJUSTMENT FACTOR OF 1.0000295. THEN ADD 311.731 FEET TO THE NORTH COORDINATE VALUE AND 119.245 FEET TO THE EAST COORDINATE VALUE.
2. ALL REMAINING ACRES ARE APPROXIMATE AND CALCULATED FROM INFORMATION OBTAINED FROM THE COUNTY APPRAISAL DISTRICT, THE COUNTY DEED RECORDS, AND FROM ACTUAL ON THE GROUND SURVEY TIES.

LEGEND

- PROPERTY CORNER
SET 1+DOT BRASS DISK
in CONCRETE
- SET 5/8" IRON ROD
W/1+DOT ALUMINUM DISC
STAMPED ROW MON. LUFKIN
DISTRICT PROPERTY CORNER
- SET 5/8" IRON ROD
W/1+DOT ALUMINUM DISC
STAMPED "DENIAL OF ACCESS
POINT"
- EXISTING R.O.W. MONUMENT
- PARCEL NUMBER
- POINT OF BEGINNING
- POINT OF COMMENCING
- DEED RECORDS ANGELINA COUNTY
- REAL PROPERTY RECORDS ANGELINA COUNTY
- PROG. ROW LINES
- PROPERTY LINES
- ACCESS DENIAL LINE

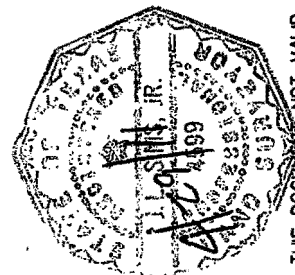
(22)
RIVERCREST REDLAND
VOLUNTARY FIRE DEPARTMENT
VOLUME 1094, PAGE 535
D.R.A.C.
MARCH 5, 1997
TAKING
0.252 ACRE (10985.5 SQ. FT.)



SURVEYOR'S CERTIFICATION

THE UNDERSIGNED DOES HEREBY CERTIFY THAT THIS SURVEY PLAT ACCURATELY REPRESENTS AN ON THE GROUND SURVEY MADE UNDER MY DIRECT SUPERVISION IN DECEMBER OF 2010, AND IS BEING SUBMITTED ALONG WITH THE SURVEYOR'S FIELD NOTE DESCRIPTION OF THE PROPERTY SHOWN HEREON.

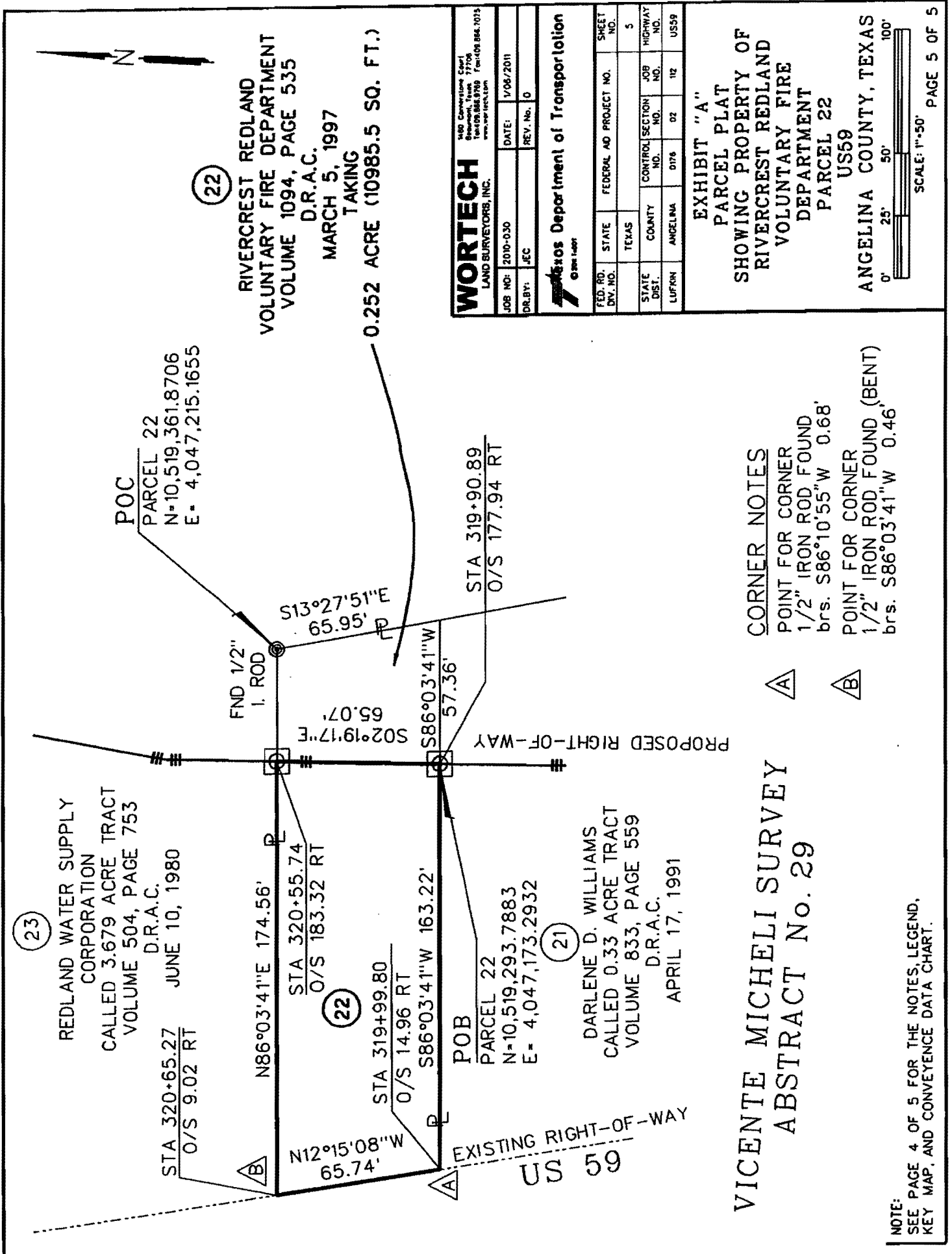
DECEMBER 2010



THIS DOCUMENT NOT VALID WITHOUT ORIGINAL SEAL AND SIGNATURE OF PERSON CERTIFYING

WORTECH LAND SURVEYORS, INC.		1400 Corporation Blvd Lufkin, Texas 75901 Tel: 409.884.8769 Fax: 409.884.8775 www.wortech.com	
JOB NO: 2010-030	DATE: 1/05/2011	REV. NO: 0	
DR. BY: JEC			
Texas Department of Transportation D 0111-1401			
FED. RD. DIV. NO.	STATE	FEDERAL AID PROJECT NO.	SHEET NO.
	TEXAS		4
STATE DIST.	COUNTY	CONTROL SECTION	JOB NO.
LUFKIN	ANGELINA	0716 02	112
			US59

EXHIBIT "A"
PARCEL PLAT
SHOWING PROPERTY OF
RIVERCREST REDLAND
VOLUNTARY
FIRE DEPARTMENT
PARCEL 22
US59
ANGELINA COUNTY, TEXAS
PAGE 4 OF 5



County: Bell
Highway: Interstate Highway 35
Limits: From S LP 363 to Nugent Ave
ROW CSJ: 0015-14-123

Property Description
For Parcel 98

BEING 0.555 OF AN ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE AZARIAH G. MOORE SURVEY, ABSTRACT NO. 596 IN BELL COUNTY, TEXAS AND BEING A PART OF A CALLED LOT 2, BLOCK 1 OF THE I-35 COMMERCIAL SUBDIVISION RECORDED IN CABINET C, SLIDE 80-A OF THE PLAT RECORDS BELL COUNTY, TEXAS (P.R.B.C.T.) AND PART OF A 4.584 ACRE TRACT DESCRIBED IN WARRANTY DEED WITH VENDOR'S LIEN TO CELLA INVESTMENT GROUP RECORDED IN VOLUME 3059, PAGE 631 OF THE DEED RECORDS OF BELL COUNTY, TEXAS (D.R.B.C.T.); AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a found X cut in concrete on an angle point in the north line of Lot 2, Block 1 and on the south line of a called Lot 1, Block 1 of said I-35 Commercial Subdivision;

THENCE North 77°46'36" East 18.61 feet with the north line of Lot 2, Block 1 and the south line of Lot 1, Block 1 to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap on the proposed west right-of-way line of Interstate Highway 35 (IH 35) for the **POINT OF BEGINNING**;

- (1) THENCE North 77°46'36" East 78.29 feet with the north line of Lot 2, Block 1 and the south line of Lot 1, Block 1 to a set 5/8" iron rod with plastic cap stamped "Landesign";
- (2) THENCE South 73°26'51" East 38.40 feet with the north line of Lot 2, Block 1 and the south line of Lot 1, Block 1 to a set 5/8" iron rod with plastic cap stamped "Landesign" at the northeast corner of Lot 2, Block 1, the southeast corner of Lot 1, Block 1, the west line of a called 10.861 acre tract described in deed to the State of Texas recorded in Volume 615, Page 548 of the D.R.B.C.T. and the existing west right-of-way line of IH 35;
- (3) THENCE South 16°38'10" West 238.36 feet with the east line of Lot 2, Block 1 and the existing west right-of-way line of IH 35 to a found 1/2" iron rod at the southeast corner of Lot 2, Block 1 and the northeast corner of a called 0.574 acre tract described indeed to Shallow Ford Construction Co., Inc. recorded in Volume 2368, Page 607 of the D.R.B.C.T.;

- (4) THENCE North 73°04'30" West 107.13 feet with the south line of said Lot 2, Block 1 and the north line of said 0.574 acre tract to a set 5/8" iron rod with TxDOT aluminum cap on the proposed west right-of-way line of IH 35;
- (5) THENCE North 16°40'57" East 50.00 feet through Lot 2, Block 1 with the proposed west right-of-way line of IH 35 to the set 5/8" iron rod with TxDOT aluminum cap stamped " Control of Access Point" at the beginning of an Access Denial Line;
- (6) THENCE North 16°40'57" East 149.98 feet through Lot 2, Block 1 with the proposed west right-of-way line of IH 35 and the Access Denial Line to the **POINT OF BEGINNING and the end of the Access Denial Line.**

This parcel contains 0.555 of an acre of land, more or less, out of the Azariah G. Moore Survey, Abstract No. 596 in Bell County, Texas.

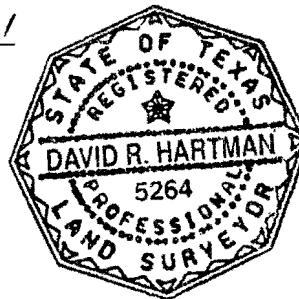
All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00015.

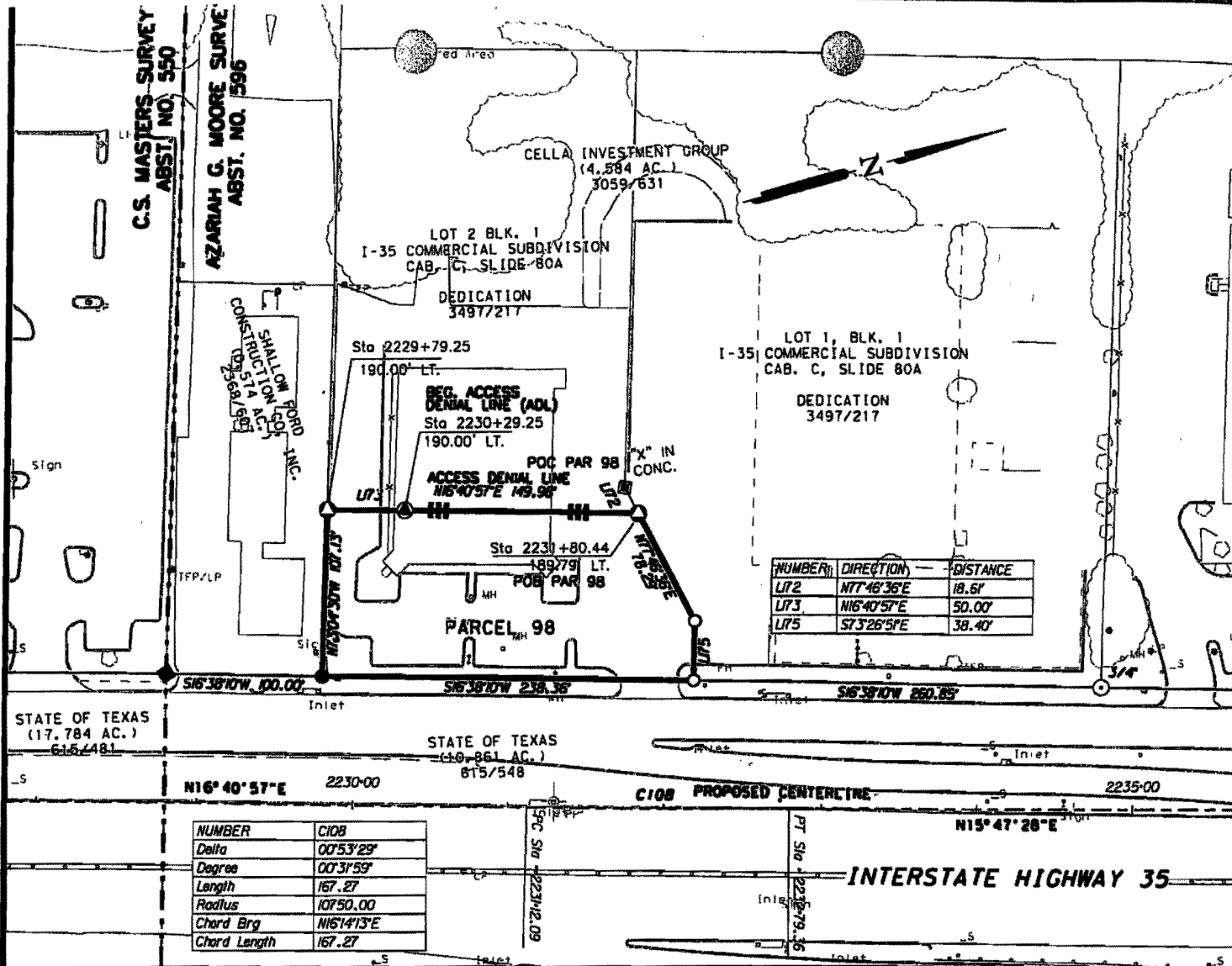
Access is prohibited across the Access Denial Line to highway facility from the remainder of the abutting property.

A plat of even survey date herewith accompanies this property description.

I certify that the survey was performed on the ground under my supervision.

David R. Hartman 10/10/11
David R. Hartman Date
Registered Professional Land Surveyor
State of Texas No. 5264





SURVEY LEGEND

- = SET 5/8" IRON ROD WITH ALUMINUM CAP STAMPED "TxDOT" (MAY BE REPLACED WITH TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF CONSTRUCTION)
- ⊙ = SET 5/8" IRON WITH TxDOT ALUMINUM CAP STAMPED "CONTROL OF ACCESS POINT"
- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET W/ "LANDESIGN" CAP UNLESS NOTED
- = 5/8" IRON ROD SET W/ "TxDOT" CAP UNLESS NOTED
- = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- △ = CALCULATED POINT
- P = PROPERTY LINE
- C = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- ||| = ACCESS DENIAL LINE

NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00015.

ACCESS IS PROHIBITED ACROSS THE ACCESS DENIAL LINE TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 10/10/11

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



**LANDESIGN
SERVICES, INC.**

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 98
HIGHWAY: IH 35
ROW CSJ: 0015-14-123
SCALE: 1" = 100'

ACRES 0.555
COUNTY: BELL
REVISED: 10/10/11
DATE: 03/31/11
SHEET: 3 of 3

PROJECT NAME: IH 35 LP 363 JOB NUMBER: 101-07-03

Parcel 98
Highway No.: IH 35
CSJ 0015-14-123
Bell County
Limits: From S LP 363 to Nugent Ave

CATEGORY I BISECTION CLAUSE

AND IN ADDITION THERETO:

Title to all of that Masonry Main Building located partially on the remainder of the herein described parcel, said improvement being bisected by the proposed west right of way line, with the result that the portion of the said improvement lying adjacent to the said right of way line would be in such a condition that it could not be adequately reconstructed at such location, plus the temporary right to enter upon the said remaining property for the sole purpose of removing all of the said improvement.

Page 1 of 3
March 31, 2011

County: Bell
Highway: Interstate Highway 35
Limits: From S LP 363 to Nugent Ave
ROW CSJ: 0015-14-123

Property Description
For Parcel 92

BEING 0.116 OF AN ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE C. S. MASTERS SURVEY, ABSTRACT NO. 550 IN BELL COUNTY, TEXAS AND BEING A PART OF A CALLED LOT 1, BLOCK 2 OF THE WALKER SAULSBURY COMMERCIAL SUBDIVISION PHASE III RECORDED IN CABINET B, SLIDE 240-A OF THE PLAT RECORDS BELL COUNTY, TEXAS (P.R.B.C.T.) AND PART OF A CALLED 3.759 ACRE TRACT DESCRIBED IN SPECIAL WARRANTY DEED TO JJA PROPERTIES, LP, RECORDED IN IN VOLUME 5932, PAGE 248 OF THE DEED RECORDS OF BELL COUNTY, TEXAS (D.R.B.C.T.); AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a set 5/8" iron rod with plastic cap stamped "Landesign" on the south line of said Lot 1, Block 2 and the existing north right-of-way line of Jack White Street (Cab. B, Slide 240-A);

THENCE North 73°11'20" West 239.75 feet with the south line of said Lot 1, Block 2 and the existing north right-of-way line of Jack White Street to a set 5/8" iron rod with TxDOT aluminum cap (Note 1) on the proposed east right-of-way line of Interstate Highway 35 (IH 35) for the **POINT OF BEGINNING**;

- (1) THENCE North 73°11'20" West 29.80 feet with the south line of said Lot 1, Block 2 and the existing north right-of-way line of Jack White St. to a set 5/8" iron rod with plastic cap stamped "Landesign" at the southwest corner of Lot 1, Block 2 on the east line of a called 17.784 acre tract described in deed to the State of Texas recorded in Volume 615, Page 481 of the D.R.B.C.T. and the existing east right-of-way line of IH 35;
- (2) THENCE North 16°38'10" East 280.23 feet with the west line of Lot 1, Block 2 and the existing east right-of-way line of IH 35 to a found 1/2" iron rod at the northwest corner of Lot 1, Block 2 on the existing south right-of-way line of Bray Street as shown on plat (Cab. B, Slide 240-A);
- (3) THENCE South 71°06'41" East 30.46 feet with the north line of Lot 1, Block 2 and the existing south right-of-way line of Bray St. to a set 5/8" iron rod with TxDOT aluminum cap (Note 1) on the proposed east right-of-way line of IH 35;

- (4) THENCE South 63°21'24" West 17.76 feet through Lot 1, Block 2 with the proposed east right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap (Note 1);
- (5) THENCE South 16°40'57" West 254.48 feet through Lot 1, Block 2 with the proposed east right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap (Note 1);
- (6) THENCE South 28°25'52" East 17.65 feet through Lot 1, Block 2 with the proposed east right-of-way line of IH 35 to the **POINT OF BEGINNING**.

This parcel contains 0.116 of an acre of land, more or less, out of the C. S. Masters Survey, Abstract No. 550 in Bell County, Texas.

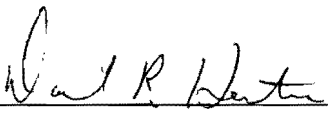
(Note 1) "The monument described as set in this call may be replaced with a Texas Department of Transportation Type II Right of Way Marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by Texas Department of Transportation."

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00015.

Access is permitted to highway facility from the remainder of the abutting property.

A plat of even survey date herewith accompanies this property description.

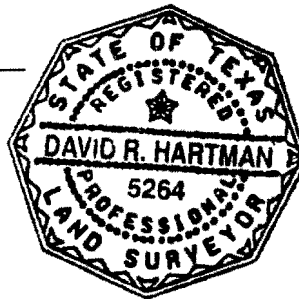
I certify that the survey was performed on the ground under my supervision.

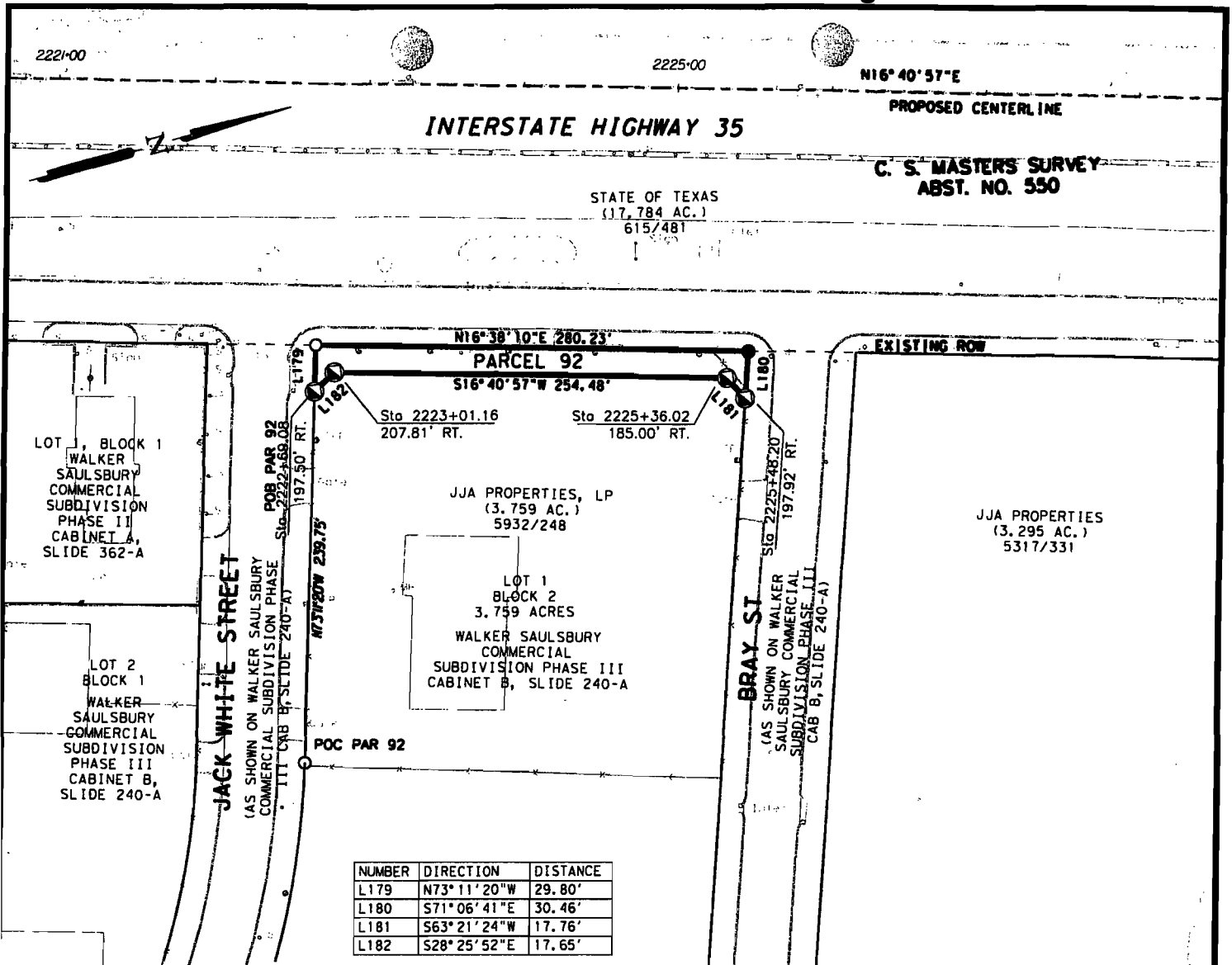


David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

3/31/11

Date

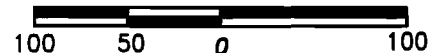




SURVEY LEGEND

- SET 5/8" IRON ROD WITH ALUMINUM CAP STAMPED "TxDOT" (MAY BE REPLACED WITH TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF CONSTRUCTION)
- ⊙ SET 5/8" IRON WITH TxDOT ALUMINUM CAP STAMPED "CONTROL OF ACCESS POINT"
- TYPE II MONUMENT SET
- TYPE I MONUMENT FOUND
- 5/8" IRON ROD SET W/ "LANDESIGN" CAP UNLESS NOTED
- 5/8" IRON ROD SET W/ "TxDOT" CAP UNLESS NOTED
- 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ IRON PIPE FOUND
- △ CALCULATED POINT
- ℙ PROPERTY LINE
- ℄ CENTER LINE
- () RECORD INFORMATION
- P.C. POINT OF CURVATURE
- P.T. POINT OF TANGENT
- P.O.B. POINT OF BEGINNING
- P.O.C. POINT OF COMMENCEMENT
- +++ ACCESS DENIAL LINE

SCALE IN FEET



NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00015.

ACCESS IS PERMITTED TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 3/31/11

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 92 ACRES 0.116
HIGHWAY: IH 35 COUNTY: BELL
ROW CSJ: 0015-14-123 DATE: 03/31/11
SCALE: 1" = 100' SHEET: 3 of 3

PROJECT NAME: IH 35 LP 363 JOB NUMBER: 101-07-03

Page 1 OF 7

COUNTY: McLennan
HIGHWAY: Interstate Highway 35
PROJECT LIMITS: From: FM 1858
To: McLennan/Hill County Line
RCSJ: 0014-08-083

December 17, 2009
Revised: April 27, 2011

PROPERTY DESCRIPTION FOR PARCEL 4

BEING a 4.688 acre (204,189 square feet) parcel of land situated in the ~~T.E. and R.R. Marable Survey, Abstract 630, McLennan County, Texas, and~~ in the T.E. and R.R. Marable Survey, Abstract 625, McLennan County, Texas, and being a part of the remaining portion of a 147.26 acre tract of land described in an instrument to Bolton Body Shop, LTD., recorded in Document #2004-050741 of the Official Public Records of McLennan County, Texas, the aforementioned 4.688 acre parcel of land, more or less, being more particularly described by metes and bounds as follows:

COMMENCING at a point for the Southwest corner of the aforementioned remaining portion of a 147.26 acre tract and the Northwest corner of a 35.2 acre tract of land described in an instrument to Rex Bennett Padgett, recorded in Volume 1151, Page 77, of the Deed Records of McLennan County, Texas, from which a found 1/2" iron rod bears North 57°55'56" East, 1.01 feet;

THENCE NORTH 57°55'56" East, 1259.12 feet, along the Northwest line of the aforementioned 35.2 acre tract, and the Southeast line of the aforementioned remaining portion of a 147.26 acre tract, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) lying in the proposed West right-of-way line of Interstate Highway 35 for a non-tangent point of curvature, the Southwest corner of the herein described 4.688 acre parcel, and the POINT OF BEGINNING;

- (1) THENCE NORTHEASTERLY an arc distance of 313.69 feet with a curve to the right having a radius of 8,627.72 feet, a delta angle of 02°05'00", and a chord which bears North 09°31'46" East, 313.68 feet, leaving the Southeast line of the aforementioned remaining portion of a 147.26 acre tract, and the Northwest line of the aforementioned 35.2 acre tract, along the proposed West right-of-way line of Interstate Highway 35, passing at an arc distance of 188.54 feet a set 5/8" iron rod with aluminum cap stamped "Control of Access Point" for the beginning of a proposed "Denial of Access Line" (see Note 1), and continuing along the proposed West right-of-way line of Interstate Highway 35 to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for a point of non-tangency of the herein described 4.688 acre parcel;
- (2) THENCE NORTH 07°43'15" West, 71.28 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, and the proposed "Denial of Access Line" (see Note 1), to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for an angle corner of the herein described 4.688 acre parcel;

- (3) **THENCE NORTH 09°01'02" East, 111.01 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, and the proposed "Denial of Access Line" (see Note 1), to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for an angle corner of the herein described 4.688 acre parcel;**
- (4) **THENCE NORTH 26°56'17" East, 66.46 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, and the proposed "Denial of Access Line" (see Note 1), to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for a non-tangent point of curvature of the herein described 4.688 acre parcel;**
- (5) **THENCE NORTHEASTERLY an arc distance of 501.26 feet with a curve to the right having a radius of 12,215.00 feet, a delta angle of 02°21'04", and a chord which bears North 10°45'00 East, 501.22 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, and the proposed "Denial of Access Line" (see Note 1), passing at an arc distance of 310.33 feet a set 5/8" iron rod with aluminum cap stamped "Control of Access Point" for the end of the proposed "Denial of Access Line" (see Note 1), and continuing along the proposed West right-of-way line of Interstate Highway 35 to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for a point of non-tangency of the herein described 4.688 acre parcel;**
- (6) **THENCE NORTH 02°42'00" East, 122.60 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2) for an angle corner of the herein described 4.688 acre parcel;**
- (7) **THENCE NORTH 12°07'25" East, 125.51 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 2), lying in a North line of the aforementioned remaining portion of a 147.26 acre tract, and in the South line of Lot 2, Block 2 of the Czech Heritage Addition, recorded in Document #2010-021528 of the Official Public Records of McLennan County, Texas, for the Northwest corner of the herein described 4.688 acre parcel, from which a found 3/8" iron rod with plastic cap stamped "RODEN" for the Southwest corner of the said Lot 2, lying in the existing East right-of-way line of Melodie Drive (60' right-of-way width), described in Document #2007-034668 of the Official Public Records of McLennan County, Texas, bears NORTH 77°52'16" West, 46.33 feet;**
- (8) **THENCE SOUTH 77°52'16" East, 178.41 feet, along a North line of the aforementioned remaining portion of a 147.26 acre tract and the South line of the aforementioned Lot 2, to a point lying in the existing West right-of-way line of Interstate Highway 35 (right-of-way width varies), described in a document of a 9.64 acre tract of land, recorded in Volume 416, Page 200, of the Deed Records of McLennan County, Texas, for a Northeast corner of the said remaining portion of a 147.26 acre tract, and the Northeast corner of the herein described 4.688 acre parcel from which a found 3/8" iron rod bears NORTH 83°40'17" West, 0.83 feet;**

Page 3 OF 7

- (9) THENCE SOUTH $12^{\circ}09'12''$ West, 174.09 feet (record - $S14^{\circ}08'19''W$), along the East line of the aforementioned remaining portion of a 147.26 acre tract, and the aforementioned existing West right-of-way line of Interstate Highway 35, to a set $5/8''$ iron rod with plastic cap stamped "CDS/MUERY S.A. TX" for a point of curvature of the herein described 4.688 acre parcel;
- (10) THENCE SOUTHWESTERLY an arc distance of 974.84 feet with a curve to the left having a radius of 11,478.58 feet, a delta angle of $04^{\circ}51'57''$, and a chord which bears South $09^{\circ}43'13''$ West, 974.55 feet, to a found fence corner post for the Southeast corner of the aforementioned remaining portion of a 147.26 acre tract, the Northeast corner of a 0.4 of an acre tract of land described in an instrument to Dannis E. Russell, recorded in Volume 1539, Page 414, of the Deed Records of McLennan County, Texas, and the Southeast corner of the herein described 4.688 acre parcel;

Page 4 OF 7

- (11) **THENCE** SOUTH 57°55'56" West, 222.70 feet (record - S60°00'00"W), leaving the aforementioned existing West right-of-way line of Interstate Highway 35, along the Southeast line of the aforementioned remaining portion of a 147.26 acre tract, the Northwest line of the aforementioned 0.4 of an acre tract, and the Northwest line of the aforementioned 35.2 acre tract, to the **POINT OF BEGINNING**, and containing 4.688 acres (204,189 square feet) of land, more or less. The total length of the herein described proposed "Denial of Access Line" (see Note 1) is 684.23 feet.

(Note 1) Access is prohibited across the "Denial of Access Line" to the highway facility from the remainder of the abutting property.

(Note 2) "The monument described as set in this call may be replaced with a TxDOT Type II Right of Way Marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT."

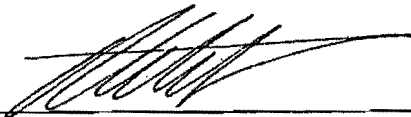
The bearing basis for this survey is Grid North, Texas State Plane Coordinate System, Central Zone, NAD83(93). All coordinates, distances and areas shown are surface and may be converted to grid by dividing by the TxDOT conversion factor of 1.00004.

A plat of even survey date herein accompanies and is made a part of this description.

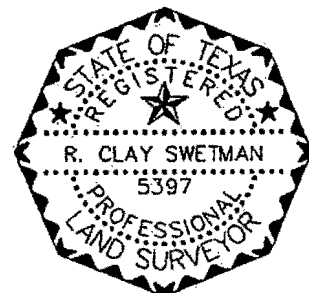
THE STATE OF TEXAS X
 X KNOWN TO ALL MEN BY THESE PRESENTS:
COUNTY OF BEXAR X

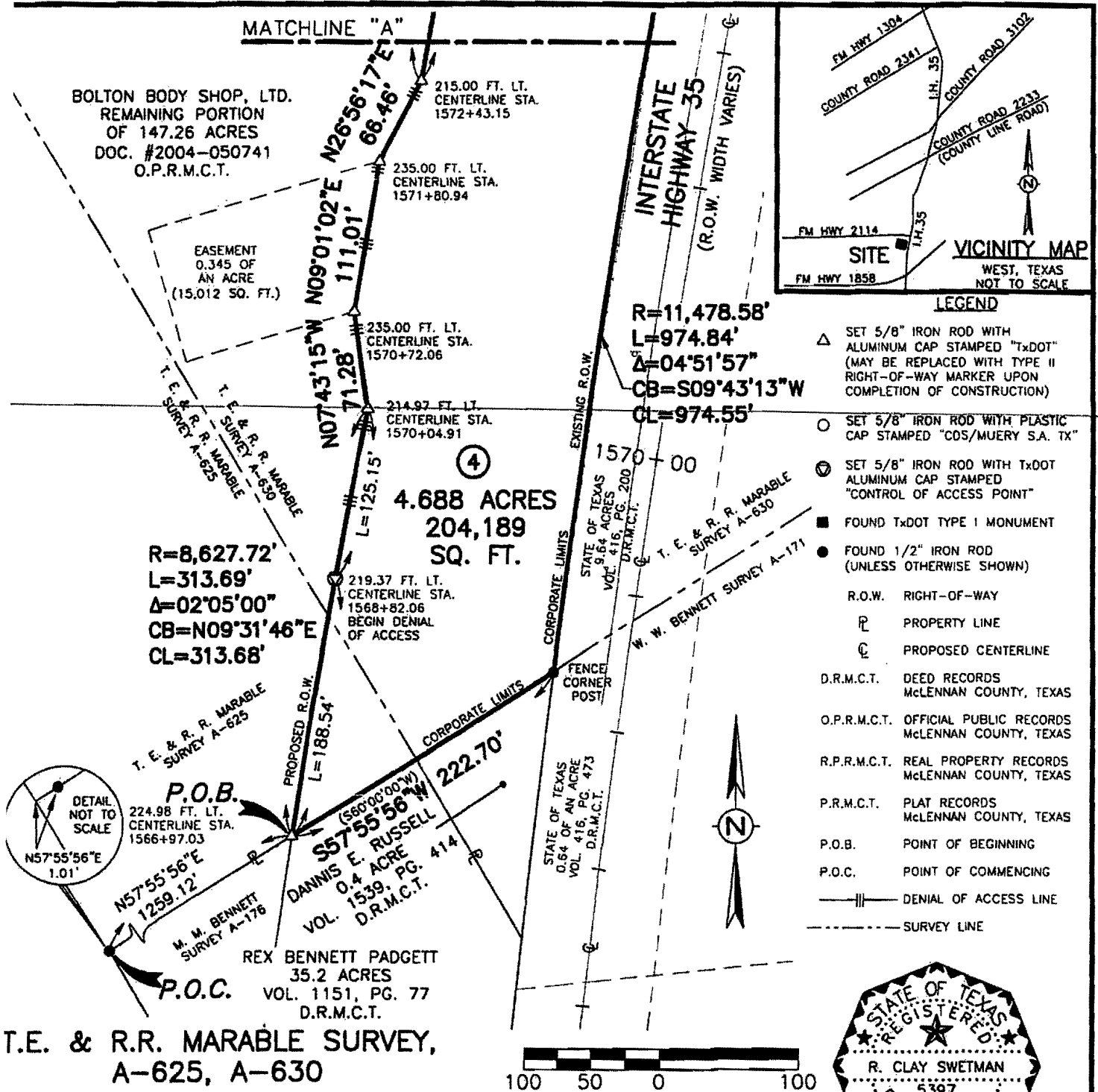
I, R. Clay Swetman, a Registered Professional Land Surveyor, do hereby certify that the above field notes were prepared using information obtained by an on the ground survey made under my direction and supervision.

Date 27th day of April, 2011, A.D.



R. Clay Swetman
Registered Professional Land Surveyor
No. 5397 - State of Texas





A DESCRIPTION OF EVEN SURVEY DATE HEREIN
ACCOMPANIES THIS PLAT. (PARCEL 4.DOC)

(NOTE 1) ACCESS IS PROHIBITED ACROSS THE "DENIAL OF ACCESS LINE" TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.

ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES
THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE
COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES,
DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO
GRID BY DIVIDING BY THE TxDOT CONVERSION FACTOR OF 1.00004

I HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION.

R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397

REVISÉD: 4-27-11

CDS/MUERY SERVICES

Engineering & Surveying

3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION

INTERSTATE HIGHWAY 35

PARCEL NO. 4

RCSJ: 0014-08-083

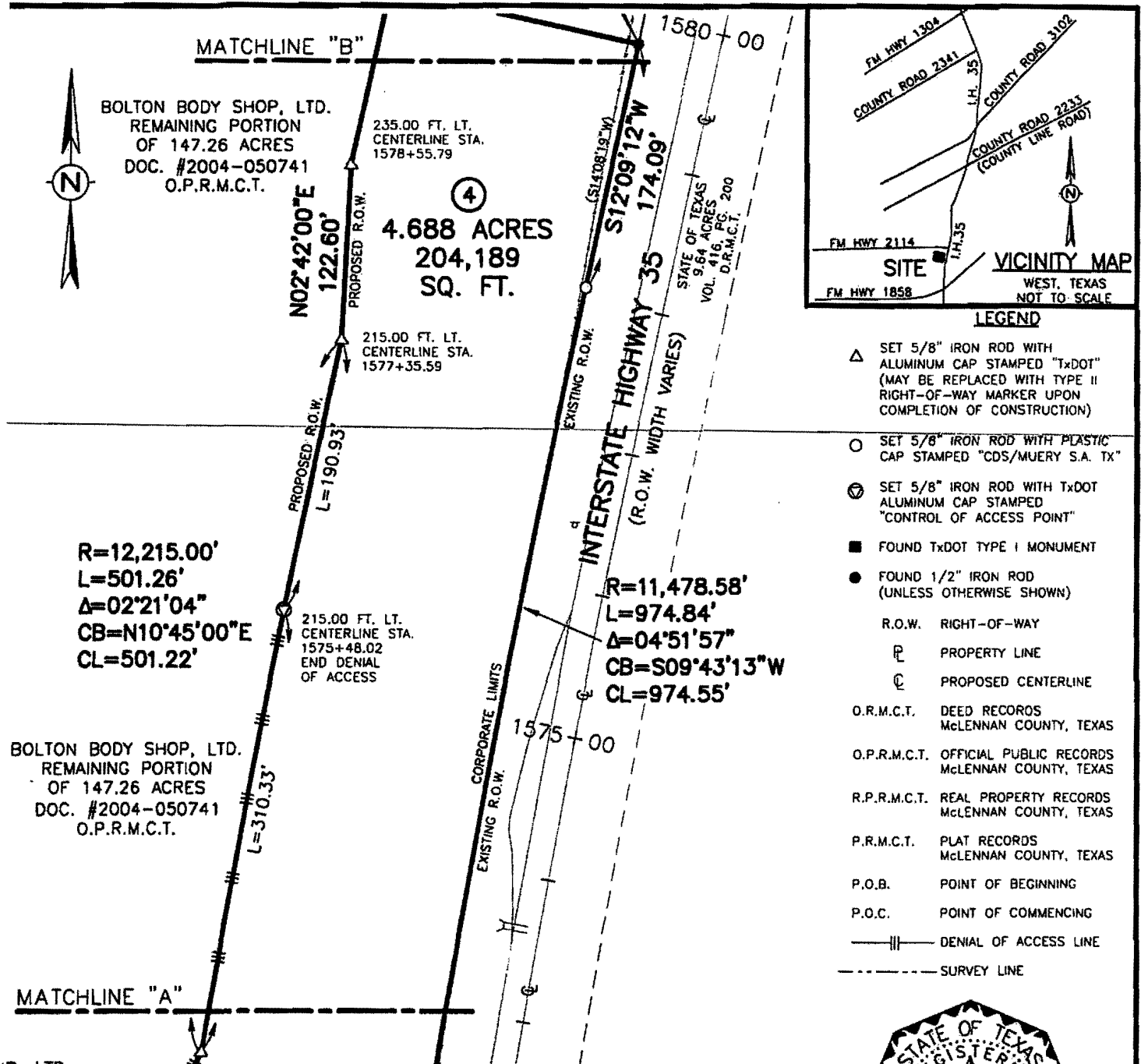
McLENNAN COUNTY, TEXAS

ROW ACQUISITION--4.688 AC.

WACO DISTRICT

DATE: DECEMBER 17, 2009

PAGE 5 OF 7



I.E. & R.R. MARABLE SURVEY,
A-625, A-630

A DESCRIPTION OF EVEN SURVEY DATE HEREIN
ACCOMPANIES THIS PLAT. (PARCEL 4.DOC)

(NOTE 1) ACCESS IS PROHIBITED ACROSS THE "DENIAL OF ACCESS LINE"
TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.

ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES

THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE
COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES,
DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO
GRID BY DIVIDING BY THE TXDOT CONVERSION FACTOR OF 1.00004

I HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT
REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY
DIRECTION AND SUPERVISION.

[Signature] 4/27/2011
R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397

100 50 0 100
SCALE IN FEET



REVISED: 4-27-11

CDS/MUERY SERVICES
Engineering & Surveying

3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION

INTERSTATE HIGHWAY 35

PARCEL NO. 4

RCSJ: 0014-08-083

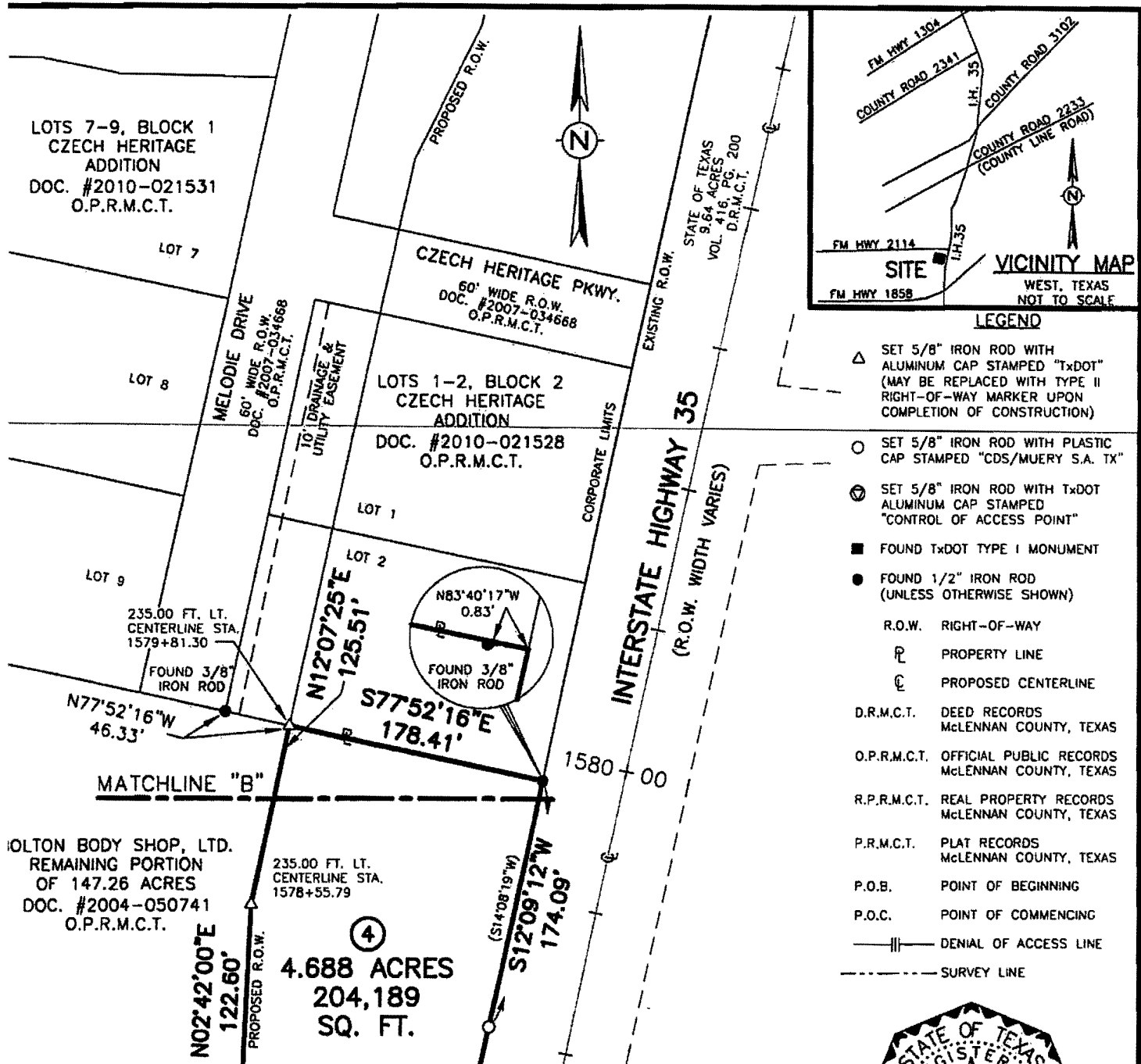
McLENNAN COUNTY, TEXAS

ROW ACQUISITION-4.688 AC.

WACO DISTRICT

DATE: DECEMBER 17, 2009

PAGE 6 OF 7



E. & R.R. MARABLE SURVEY,
A-625, A-630

DESCRIPTION OF EVEN SURVEY DATE HEREIN
ACCOMPANIES THIS PLAT. (PARCEL 4.DOC)

NOTE 1) ACCESS IS PROHIBITED ACROSS THE "DENIAL OF ACCESS LINE"
TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.
ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES
THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE
COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES,
DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO
GRID BY DIVIDING BY THE TxDOT CONVERSION FACTOR OF 1.00004

HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT
REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY
DIRECTION AND SUPERVISION.

[Signature] 4/27/2011
R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397

REVISED: 4-27-11

CDS/MUERY SERVICES
Engineering & Surveying

3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION

INTERSTATE HIGHWAY 35

PARCEL NO. 4

RCSJ: 0014-08-083

McLENNAN COUNTY, TEXAS

ROW ACQUISITION-4.688 AC.

WAGO DISTRICT

DATE: DECEMBER 17, 2009

PAGE 7 OF 7

County: McLennan
Highway: IH 35
CSJ: 0014-08-083
Parcel: 4/4E

DRAINAGE EASEMENT CLAUSE

A DRAINAGE EASEMENT for the purpose of opening, constructing and maintaining a permanent channel or drainage easement in, along, upon and across the premises described in the following property description, together with the right and privilege at all times of ingress and egress to and from said premises for the purpose of making any additions, improvements, modifications or repairs which the State deems necessary, and the right to remove from said premises and use, for highway purposes, any stone, earth, gravel or caliche or other road building material which may be excavated in the opening, construction or maintenance of said channel or drainage easement.

Page 1 OF 3

COUNTY: McLennan
HIGHWAY: Interstate Highway 35
PROJECT LIMITS: From: FM 1858
To: McLennan/Hill County Line
RCSJ: 0014-08-083

December 17, 2009
Revised: April 27, 2011

PROPERTY DESCRIPTION FOR PARCEL 4E

BEING a 0.345 of an acre (15,012 square feet) parcel of land situated in the T.E. and R.R. Marable Survey, Abstract 630, McLennan County, Texas, and being a part of the remaining portion of a 147.26 acre tract ~~of land described in an instrument to Bolton Body Shop, LTD, recorded in Document #2004-050741 of the Official Public Records of McLennan County, Texas, the aforementioned 0.345 of an acre parcel of land, more or less, being more particularly described by metes and bounds as follows:~~

COMMENCING at a point for the Southwest corner of the aforementioned remaining portion of a 147.26 acre tract, and the Northwest corner of a 35.2 acre tract of land described in an instrument to Rex Bennett Padgett, recorded in Volume 1151, Page 77, of the Deed Records of McLennan County, Texas, from which a found 1/2" iron rod bears North 57°55'56" East, 1.01 feet;

THENCE NORTH 57°55'56" East, 1259.12 feet, along the Northwest line of the aforementioned 35.2 acre tract, and the Southeast line of the aforementioned remaining portion of a 147.26 acre tract, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) lying in the proposed West right-of-way line of Interstate Highway 35 for a non-tangent point of curvature;

THENCE NORTHEASTERLY an arc distance of 313.69 feet with a curve to the right having a radius of 8,627.72 feet, a delta angle of 02°05'00", and a chord which bears North 09°31'46" East, 313.68 feet, leaving the Southeast line of the aforementioned remaining portion of a 147.26 acre tract, and the Northwest line of the aforementioned 35.2 acre tract, along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) for a point of non-tangency;

THENCE NORTH 07°43'15" West, 71.28 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) for the Southeast corner of the herein described 0.345 of an acre parcel, and the POINT OF BEGINNING;

- (1) THENCE South 73°17'04" West, 126.02 feet, leaving the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) for the Southwest corner of the herein described 0.345 of an acre parcel;

Page 2 OF 3

- (2) THENCE NORTH 16°42'56" West, 100.00 feet, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) for the Northwest corner of the herein described 0.345 of an acre parcel;
- (3) THENCE North 73°17'04" East, 174.22 feet, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1) lying in the proposed West right-of-way line of Interstate Highway 35, for the Northeast corner of the herein described 0.345 acre parcel;
- (4) THENCE SOUTH 09°01'02" West, 111.01 feet, along the proposed West right-of-way line of Interstate Highway 35, to the POINT OF BEGINNING, and containing 0.345 of an acre (15,012 square feet) of land, more or less.

(Note 1) "The monument described as set in this call may be replaced with a TxDOT Type II Right of Way Marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT."

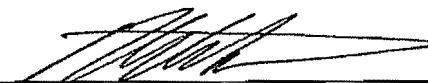
The bearing basis for this survey is Grid North, Texas State Plane Coordinate System, Central Zone, NAD83(93). All coordinates, distances and areas shown are surface and may be converted to grid by dividing by the TxDOT conversion factor of 1.00004.

A plat of even survey date herein accompanies and is made a part of this description.

THE STATE OF TEXAS X
 X KNOWN TO ALL MEN BY THESE PRESENTS:
COUNTY OF BEXAR X

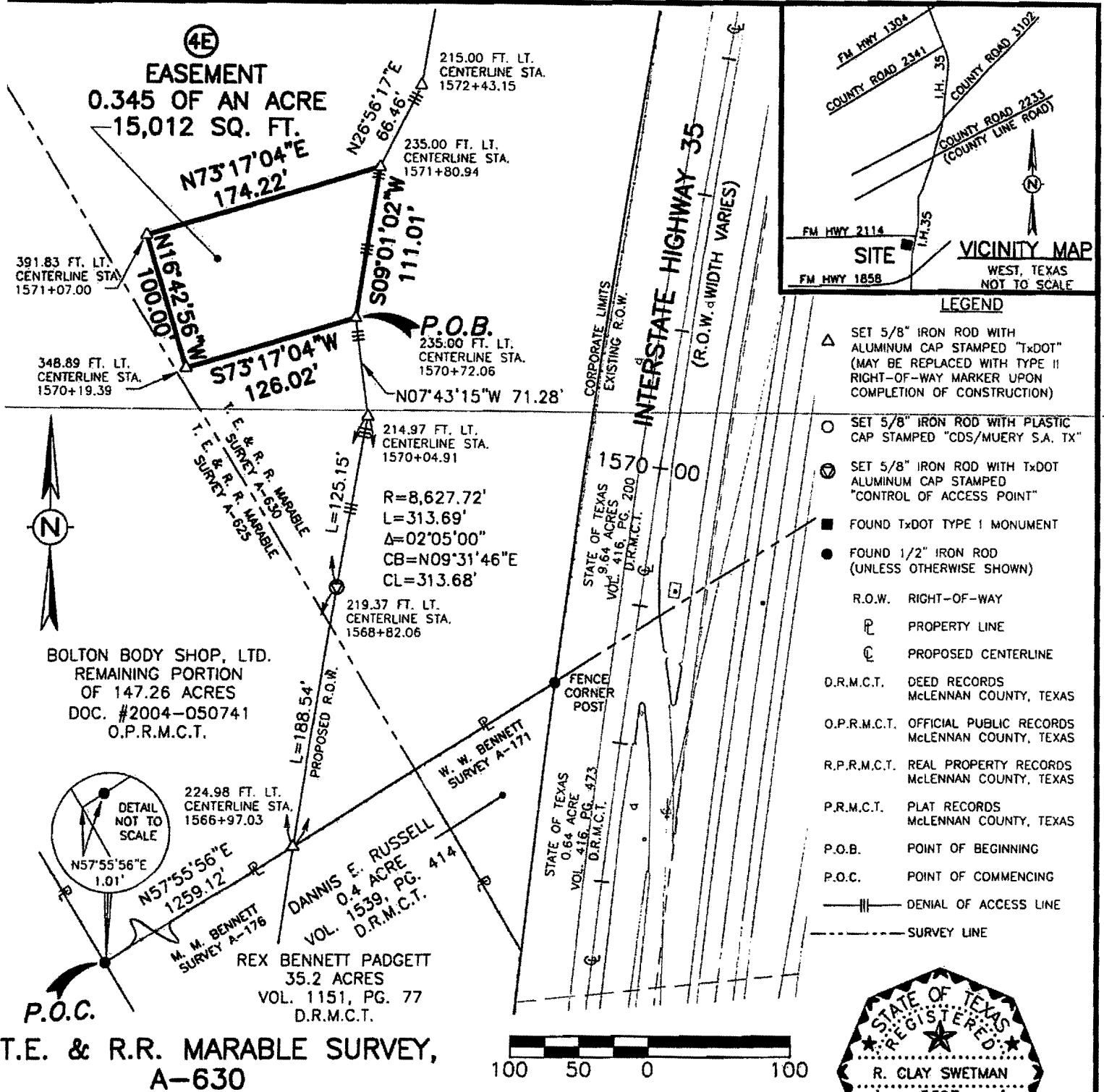
I, R. Clay Swetman, a Registered Professional Land Surveyor, do hereby certify that the above field notes were prepared using information obtained by an on the ground survey made under my direction and supervision.

Date 27th day of April, 2011, A.D.



R. Clay Swetman
Registered Professional Land Surveyor
No. 5397 - State of Texas





T.E. & R.R. MARABLE SURVEY, A-630

A DESCRIPTION OF EVEN SURVEY DATE HEREIN ACCOMPANIES THIS PLAT. (PARCEL 4E.DOC)
ACCESS IS PROHIBITED ACROSS THE "DENIAL OF ACCESS LINE" TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.
ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES

THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES, DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY THE TxDOT CONVERSION FACTOR OF 1.00004

I HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION.

[Signature]
R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397

REVISED: 4-27-11

CDS/MUERY SERVICES
Engineering & Surveying

3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION

INTERSTATE HIGHWAY 35

PARCEL NO. 4E

RCSJ: 0014-08-083

McLENNAN COUNTY, TEXAS

ROW ACQUISITION-0.345 AC.

WACO DISTRICT

DATE: DECEMBER 17, 2009

PAGE 3 OF 3

COUNTY: McLennan
HIGHWAY: Interstate Highway 35
PROJECT LIMITS: From: FM 1858
To: McLennan/Hill County Line
RCSJ: 0014-08-083

April 27, 2011

PROPERTY DESCRIPTION FOR PARCEL 62

BEING a 2.455 acre (106,924 square feet) parcel of land situated in the T.E. and R.R. Marable Survey, Abstract 630, McLennan County, Texas, and being a part of the remaining portion of a 147.26 acre tract of land described in an instrument to Bolton Body Shop, LTD, recorded in Document #2004-050741 of the Official Public Records of McLennan County, Texas, also being a portion of Lot 10, Block 1, described in Czech Heritage Addition, recorded in Document #2010-021529 of the Official Public Records of McLennan County, Texas, the aforementioned 2.455 acre parcel of land, more or less, being more particularly described by metes and bounds as follows:

COMMENCING at a found 3/8" iron rod with plastic cap stamped "Roden" in the North right-of-way line of Czech Heritage Pkwy. (60' wide right-of-way) as described in Document #2007-034668 of the Official Public Records of McLennan County, Texas, and the East right-of-way line of Melodie Drive (60' wide right-of-way) as described in Document #2007-034668 of the Official Public Records of McLennan County, Texas, at the Southwest corner of the aforementioned Lot 10;

THENCE SOUTH 77°52'16" East, 46.30 feet, along the South line of the aforementioned Lot 10 and the existing North right-of-way line of the aforementioned Czech Heritage Pkwy., to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1), lying in the proposed West right-of-way line of Interstate Highway 35 for the Southwest corner of the herein described 2.455 acre parcel, and the POINT OF BEGINNING;

- (1) THENCE NORTH 12°07'25" East, 50.36 feet, leaving the South line of the aforementioned Lot 10 and the existing North right-of-way line of the aforementioned Czech Heritage Pkwy., along the proposed West right-of-way line of Interstate 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1), for an angle corner of the herein described 2.455 acre parcel;
- (2) THENCE NORTH 25°59'10" East, 104.34 feet, continuing along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1), for an interior angle corner of the herein described 2.455 acre parcel;
- (3) THENCE NORTH 12°07'25" East, 527.27 feet, along the proposed West right-of-way line of Interstate Highway 35, to a set 5/8" iron rod with aluminum cap stamped "TxDOT" (see Note 1), in the North line of the aforementioned Lot 10 and in a South line of a 2.59 acre tract of land described in Document #2005-021985 of the Official Public Records of McLennan County, Texas, for the Northwest corner of the herein described 2.455 acre parcel, from which a set 1/2" iron rod with plastic cap stamped "CDS/MUERY S.A. TX" for the Northwest corner of the said Lot 10, bears North 77°52'38" West, 121.31 feet;

- (4) THENCE SOUTH 77°52'38" East, 153.94 feet, leaving the proposed West line of the aforementioned Interstate 35, along the North line of the aforementioned Lot 10 and a south line of the aforementioned 2.59 acre tract, to a point in the existing West right-of-way line of Interstate 35, described in a document of a 9.64 acre tract of land, recorded in Volume 416, Page 200, of the Deed Records of McLennan County, Texas, for the Northeast corner of the herein described 2.455 acre parcel, from which a found 3/8" iron rod with plastic cap stamped "Roden" bears South 82°49'01" West, 0.72 feet;
- (5) THENCE SOUTH 12°09'12" West, 678.96 feet, along the East line of the aforementioned Lot 10 and the existing West right-of-way line of Interstate Highway 35, to a point in the North line of the aforementioned Czech Heritage Pkwy., for the Southeast corner of the herein described 2.455 acre parcel, from which a found 3/8" iron rod with plastic cap stamped "Roden" bears North 84°36'48" West, 0.76 feet;
- (6) THENCE NORTH 77°52'16" West, 178.59 feet, along the South line of the aforementioned Lot 10 and the North line of the aforementioned Czech Heritage Pkwy., to the POINT OF BEGINNING, and containing 2.455 acre (106,924 square feet) of land, more or less.

Access is allowed to the highway facility from the remainder of the abutting property.

(Note 1) "The monument described as set in this call may be replaced with a TxDOT Type II Right of Way Marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT."

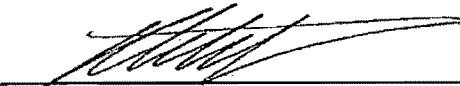
The bearing basis for this survey is Grid North, Texas State Plane Coordinate System, Central Zone, NAD83(93). All coordinates, distances and areas shown are surface and may be converted to grid by dividing by the TxDOT conversion factor of 1.00004.

A plat of even survey date herein accompanies and is made a part of this description.

THE STATE OF TEXAS X
 X KNOWN TO ALL MEN BY THESE PRESENTS:
COUNTY OF BEXAR X

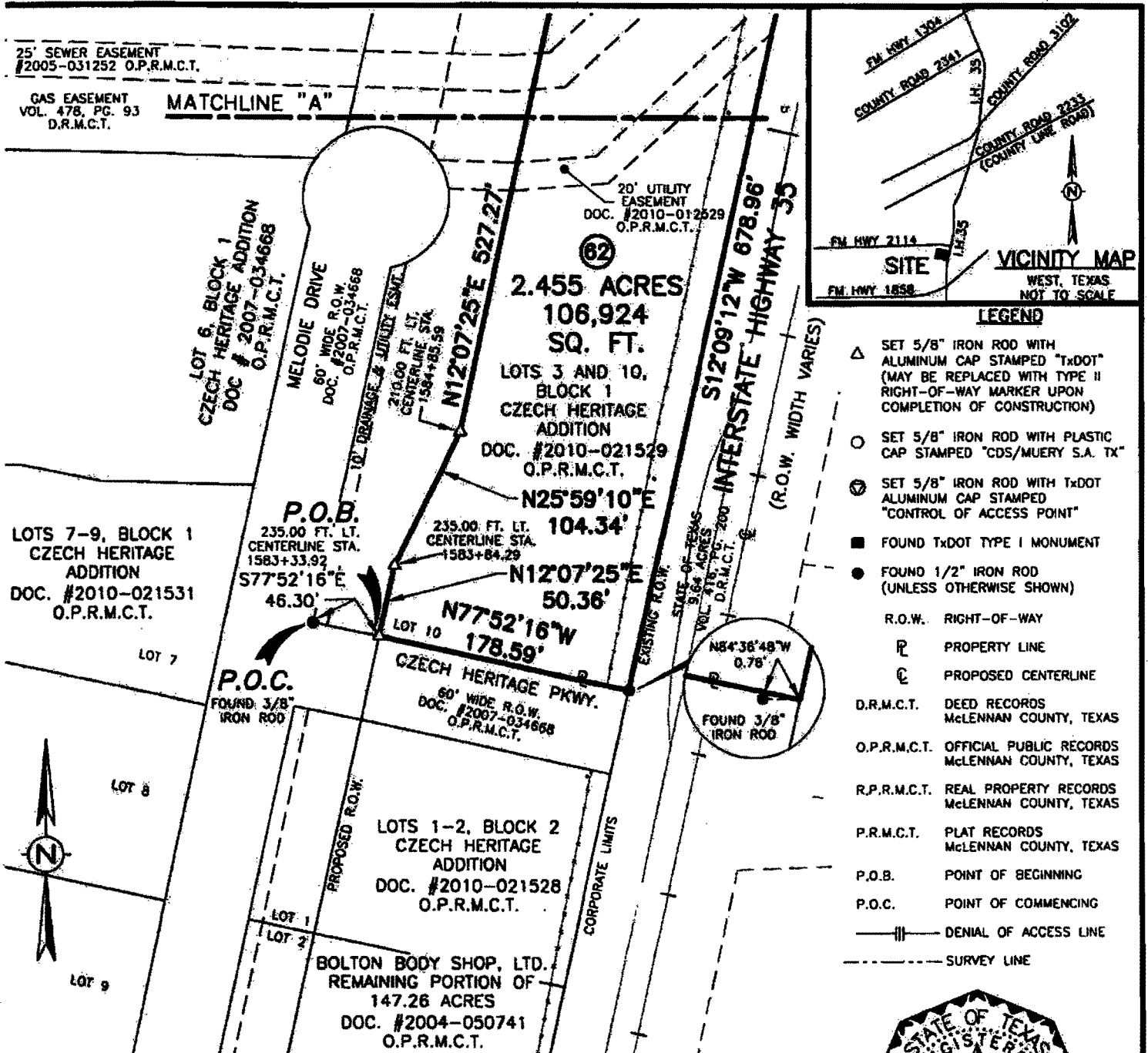
I, R. Clay Swetman, a Registered Professional Land Surveyor, do hereby certify that the above field notes were prepared using information obtained by an on the ground survey made under my direction and supervision.

Date 27th day of April, 2011, A.D.



R. Clay Swetman
Registered Professional Land Surveyor
No. 5397 - State of Texas





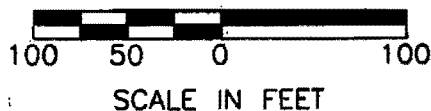
T.E. & R.R. MARABLE SURVEY, A-630

A DESCRIPTION OF EVEN SURVEY DATE HEREIN ACCOMPANIES THIS PLAT. (PARCEL 62.DOC)
ACCESS IS ALLOWED TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.

ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES
THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES, DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DMDING BY THE TxDOT CONVERSION FACTOR OF 1.00004

I HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION.

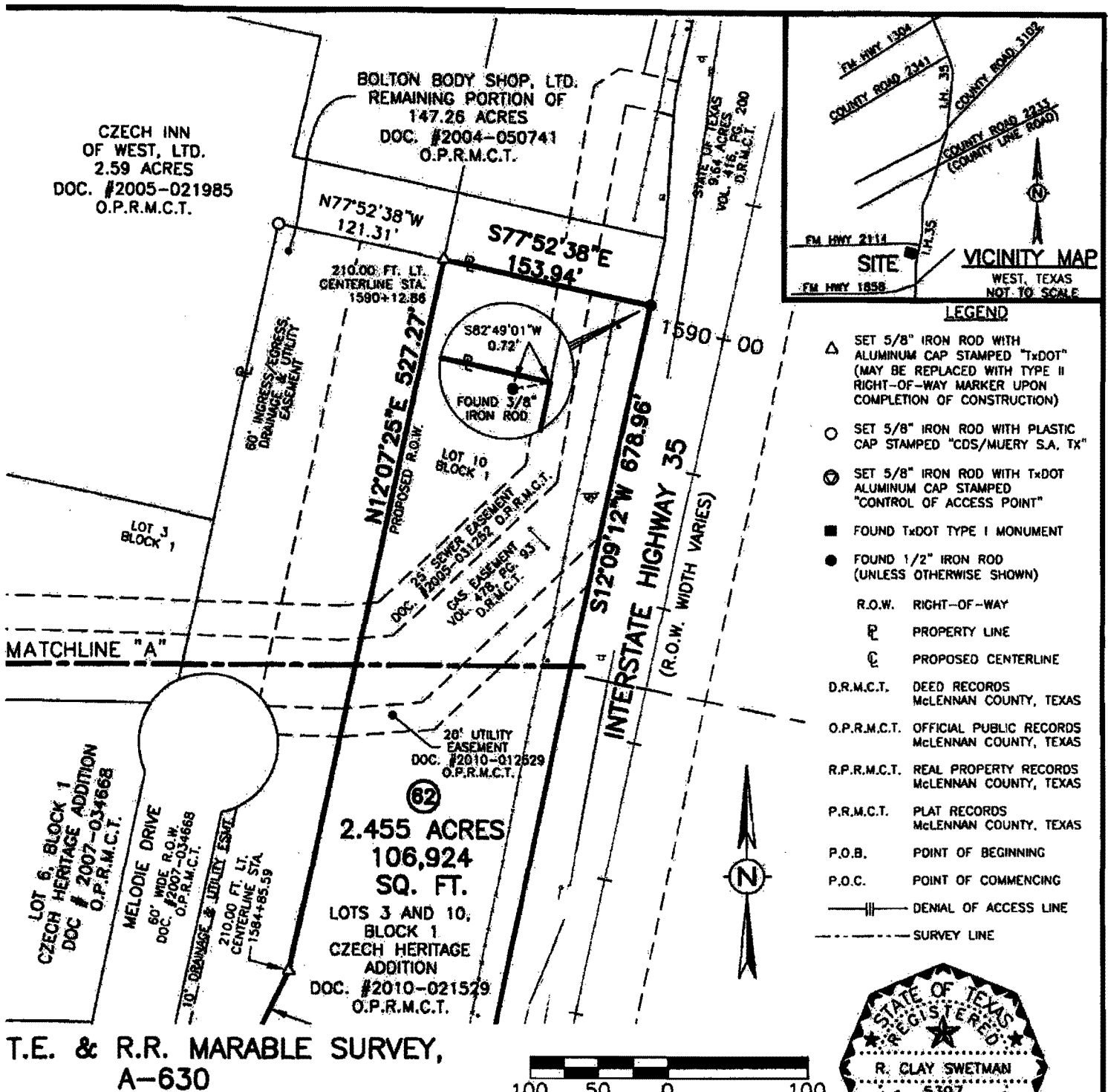
[Signature] 4/27/2011
R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397



CDS/MUERY SERVICES
Engineering & Surveying
3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION
INTERSTATE HIGHWAY 35
PARCEL NO. 62
RCSJ: 0014-08-083
MCLENNAN COUNTY, TEXAS

ROW ACQUISITION-2.455 AC.
WACO DISTRICT
DATE: APRIL 27, 2011
PAGE 3 OF 4



**T.E. & R.R. MARABLE SURVEY,
A-630**

A DESCRIPTION OF EVEN SURVEY DATE HEREIN ACCOMPANIES THIS PLAT. (PARCEL 62.DOC)

ACCESS IS ALLOWED TO THE HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

ONLY EASEMENTS SHOWN HEREON WERE REVIEWED BY CDS/MUERY SERVICES

THE BEARING BASIS FOR THIS SURVEY IS GRID NORTH, TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, NAD83(93). ALL COORDINATES, DISTANCES AND AREAS SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY THE TxDOT CONVERSION FACTOR OF 1.00004

I HEREBY CERTIFY THAT THE ABOVE DRAWING IS A TRUE AND CORRECT REPRESENTATION OF A SURVEY MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION.

R. CLAY SWETMAN
REGISTERED PROFESSIONAL LAND SURVEYOR NO. 5397

CDS/MUERY SERVICES
Engineering & Surveying
3411 MAGIC DR. • SAN ANTONIO, TEXAS 78229 • 210-581-1111

TEXAS DEPARTMENT OF TRANSPORTATION
INTERSTATE HIGHWAY 35
PARCEL NO. 62
RCSI: 0014-08-083
McLENNAN COUNTY, TEXAS

ROW ACQUISITION-2.455 AC.

WACO DISTRICT DATE: APRIL 27, 2011 PAGE 4 OF 4

Page 1 of 3
August 5, 2008
Revised March 7, 2011

County: McLennan
Highway: Interstate Highway 35
Limits: From South FM 2837 in Lorena to FM 2063 in Hewitt
ROW CSJ: 0015-01-220

Property Description
For Parcel 52A

BEING 1.719 ACRES OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE THOMAS THATCHER SURVEY, ABSTRACT NO. 647 IN MCLENNAN COUNTY, TEXAS AND PART OF A CALLED 5.76 ACRE TRACT DESCRIBED IN SPECIAL WARRANTY DEED TO LDJV PROPERTIES, LLC RECORDED IN DOCUMENT NUMBER 2010035984 OF THE OFFICIAL PUBLIC RECORDS OF MCLENNAN COUNTY, TEXAS; AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a found 1/2" iron rod at the northwest corner of said 5.76 acres and the southwest corner of a called 10.00 acre tract described in deed to John E. McCarthy, Bishop of the Diocese of Austin, Texas, recorded in Volume 1574, Page 321 of the Deed Records of McLennan County, Texas (D.R.M.C.T.), and in the existing south right-of-way line of Interstate Highway 35 (IH 35), a called 6.792 acre tract described in deed to the State of Texas for right-of-way of IH 35 recorded in Volume 826, Page 125 of the D.R.M.C.T.;

THENCE South 02°19'53" West 165.76 feet with the existing east right-of-way line of IH 35 and the west line of said 5.76 acres to a set Type II monument in the proposed north right-of-way line of Farm Market Highway 2837 (FM 2837) and the **POINT OF BEGINNING**;

- (1) THENCE South 48°03'36" East 325.42 feet through said 5.76 acres with the proposed north right-of-way line of FM 2837 to a set Type II monument;
- (2) THENCE 198.73 feet along a curve to the left having a radius of 755.00 feet, a delta angle of 15°04'52" and chord bears South 55°36'01" East 198.15 feet through said 5.76 acres with the proposed north right-of-way line of FM 2837 to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap in the east line of said 5.76 acres and in the west line of a remainder of a called 107.7354 acre tract described in deed to Lorena Development Joint Venture recorded in Volume 1844, Page 369 of the D.R.M.C.T.;
- (3) THENCE South 15°47'24" West 67.40 feet with the east line of said 5.76 acres and the west line of the remainder of said 107.7354 acres to a set 5/8" iron rod with plastic cap stamped "Landesign" at the southeast corner of said 5.76 acres, the southwest corner of the remainder of said 107.7354 acres, in the existing

Page 2 of 3

north right-of-way line of FM 2837 and the north line of a called 7.03 acre tract described in Cause No. 29682 to the State of Texas for right-of-way in the Civil Court Records of McLennan County, Texas;

- (4) THENCE North $82^{\circ}16'50''$ West 307.66 feet with the existing north right-of-way line of FM 2837 and the south line of said 5.76 acres to a found Type I monument;
- (5) THENCE North $39^{\circ}46'05''$ West 144.14 feet with the existing north right-of-way line of FM 2837 and the south line of said 5.76 acres to a set $5/8''$ iron rod with plastic cap stamped "Landesign" at the northwest corner of said 7.03 acres in the existing south right-of-way line of IH 35 and in the east line of the said 6.792 acres;
- (6) THENCE North $02^{\circ}19'53''$ East 242.38 feet with the existing south right-of-way line of IH 35 and the west line of said 5.76 acres to the **POINT OF BEGINNING**.

This parcel contains 1.719 acres of land, more or less, out of the Thomas Thatcher Survey, Abstract No. 647 in McLennan County, Texas.

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

Access is permitted to highway facility from the remainder of the abutting property.

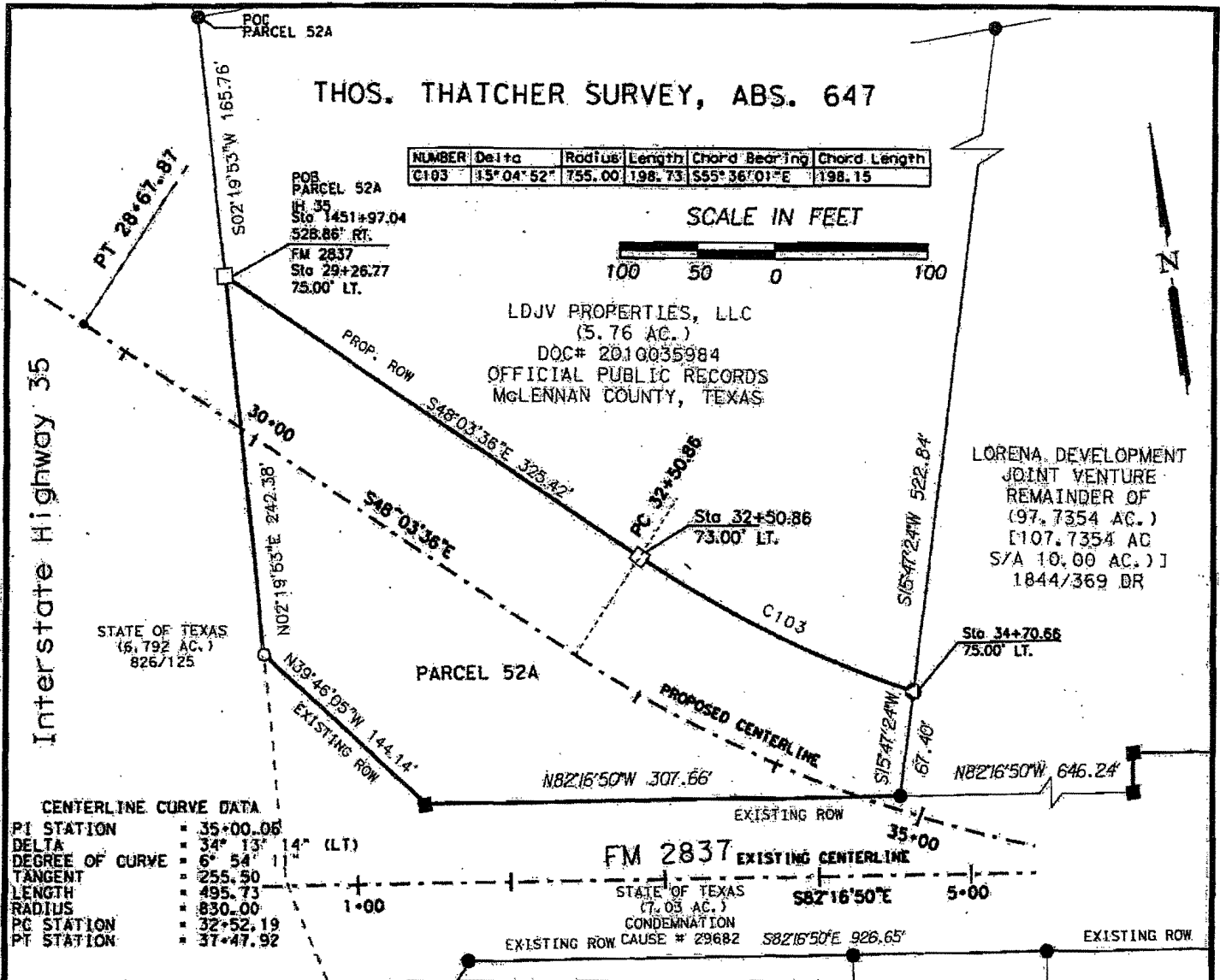
A plat of even survey date herewith accompanies this property description.

I certify that the survey was performed on the ground under my supervision.

David R. Hartman
David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

3/7/11
Date





SURVEY LEGEND

- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET
W/ "LANDESIGN" CAP UNLESS NOTED
- ◊ = 5/8" IRON ROD SET
W/ "T&DOT" CAP UNLESS NOTED
- = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- △ = CALCULATED POINT
- P = PROPERTY LINE
- C = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- = ACCESS DENIAL LINE

Rev. 3/07/11

NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00013.

ACCESS IS PERMITTED TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 3/7/11

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



LANDESIGN SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 52A ACRES 1.719
HIGHWAY: IH 35 COUNTY: MCLENNAN
ROW CSJ: 0015-01-220 DATE: 08/05/08
SCALE: 1" = 100' SHEET: 3 of 3

PROJECT NAME: IH 35 LORENA JOB NUMBER: 101-07-02

Page 1 of 4
August 5, 2008
Revised March 7, 2011

County: McLennan
Highway: Interstate Highway 35
Limits: From South FM 2837 in Lorena to FM 2063 in Hewitt
ROW CSJ: 0015-01-220

Property Description
For Parcel 52B

BEING 0.451 OF ONE ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE THOMAS THATCHER SURVEY, ABSTRACT NO. 647 IN MCLENNAN COUNTY, TEXAS AND PART OF A REMINDER OF CALLED 107.7354 ACRE TRACT DESCRIBED IN WARRANTY DEED TO LORENA DEVELOPMENT JOINT VENTURE RECORDED IN VOLUME 1844, PAGE 369 OF THE DEED RECORDS OF MCLENNAN COUNTY, TEXAS (D.R.M.C.T.); AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a set 5/8" iron rod with plastic cap stamped "Landesign" at the northwest corner of said remainder of 107.7354 acres, the northeast corner of a called 5.76 acre tract described in deed to LDJV, LLC recorded in Document Number 2010035984 of the Official Public Records of McLennan County, Texas and in the south line of a called 10.00 acre tract described in deed to John E. McCarthy, Bishop of the Diocese of Austin, Texas, recorded in Volume 1574, Page 321 of the D.R.M.C.T., and in the existing east right-of-way line of Interstate Highway 35 (IH 35), a called 6.792 acre tract described in deed to the State of Texas for right-of-way of IH 35 recorded in Volume 826, Page 125 of the D.R.M.C.T.;

THENCE South 15°47'24" West 5522.84 feet with the west line of the remainder of 107.7354 acres and the east line of said 5.76 acres to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap in the proposed north right-of-way line of Farm Market Highway 2837 (FM 2837) and the **POINT OF BEGINNING**;

- (1) THENCE 252.21 feet along a curve to the left having a radius of 755.00 feet, a delta angle of 19°08'22" and chord bears South 72°42'38" East 251.04 feet through the remainder of said 107.7354 acres with the proposed north right-of-way line of FM 2837 to a set Type II monument;
- (2) THENCE South 82°16'50" East 389.24 feet through said 107.7354 acres with the proposed north right-of-way line of FM 2837 to a found Type I monument at an angle point in the existing north right-of-way line of FM 2837 and the north line of a called 7.03 acre tract described in Cause No. 29682 to the State of Texas for right-of-way in the Civil Court Records of McLennan County, Texas;

Page 2 of 4

- (3) THENCE South $7^{\circ}43'10''$ West 25.00 feet with the south line of said 107.7354 acres with the existing north right-of-way line of FM 2837 to a found Type I monument;
- (4) THENCE North $82^{\circ}16'50''$ West 646.24 feet with the existing north right-of-way line of FM 2837 and the south line of the remainder of said 107.7354 acres to the southwest corner of the remainder of said 107.7354 acres and the southeast corner of the said 5.76 acres;
- (5) THENCE North $15^{\circ}47'24''$ East 67.40 feet with the west line of the remainder of said 107.7354 and the east line of said 5.76 acres to the **POINT OF BEGINNING**.

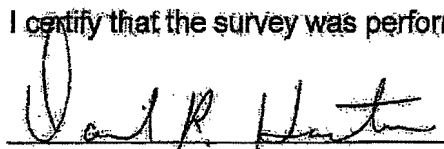
This parcel contains 0.451 of one acre of land, more or less, out of the Thomas Thatcher Survey, Abstract No. 647 in McLennan County, Texas.

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

Access is permitted to highway facility from the remainder of the abutting property.

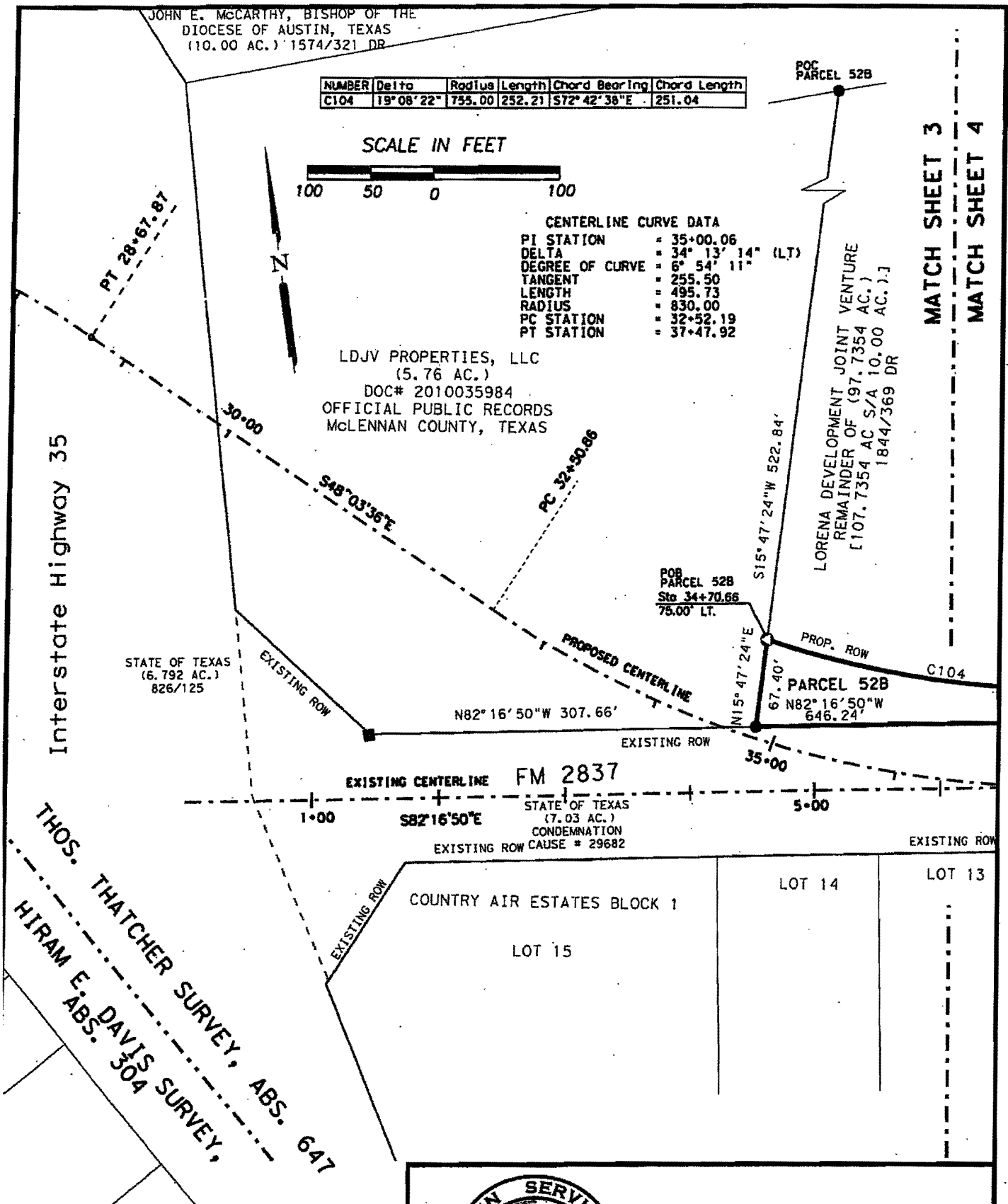
A plat of even survey date herewith accompanies this property description.

I certify that the survey was performed on the ground under my supervision.


David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

3/7/11
Date





PARCEL: 52B
ACRES 0.451
HIGHWAY: IH 35
COUNTY: McLennan
ROW CSJ: 0015-01-220
SCALE: 1" = 100'
SHEET: 3 of 4

PROJECT NAME: IH 35 LORENA JOB NUMBER: 101-07-002



**LANDESIGN
SERVICES, INC.**

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

MATCH SHEET 3
MATCH SHEET 4

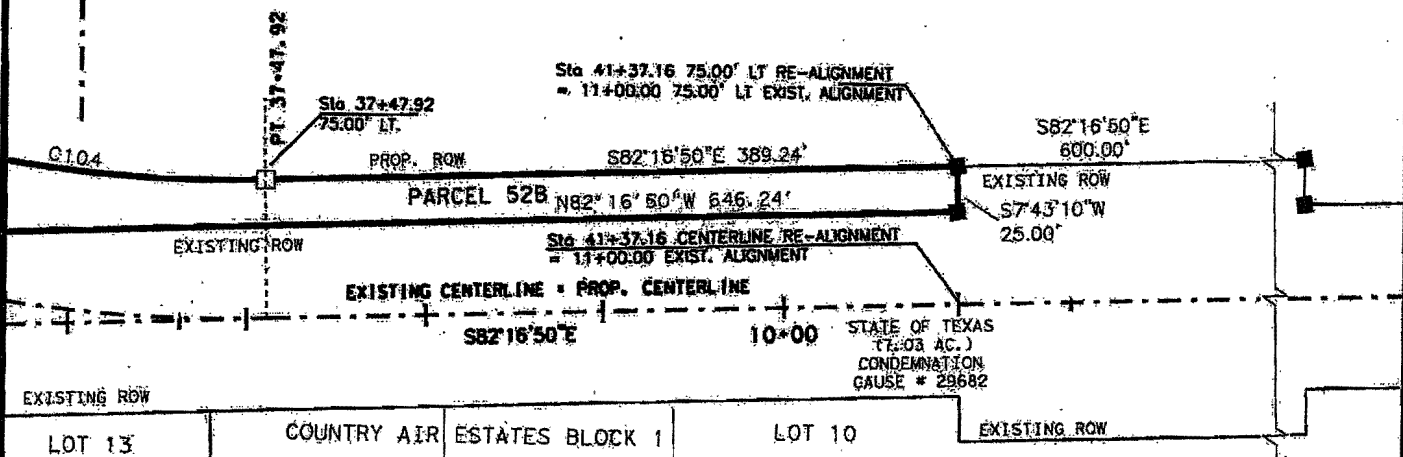
THOS. THATCHER SURVEY, ABS. 647

LORENA DEVELOPMENT JOINT VENTURE
REMAINDER OF (.97.7354 AC.)
[107.7354 AC S/A 10.00 AC.]]
1844/369 DR

NUMBER	Bearing	Radius	Length	Chord Bearing	Chord Length
E104	19°08'22"	755.00	252.27	S72°42'36"E	251.04



SCALE IN FEET



SURVEY LEGEND

- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET
W/ "LANDESIGN" CAP UNLESS NOTED
- ◊ = 5/8" IRON ROD SET
W/ "HDDT" CAP UNLESS NOTED
- = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- △ = CALCULATED POINT
- = PROPERTY LINE
- = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- = ACCESS DENIAL LINE

Rev. 3/07/11

NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00013.

ACCESS IS PERMITTED TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

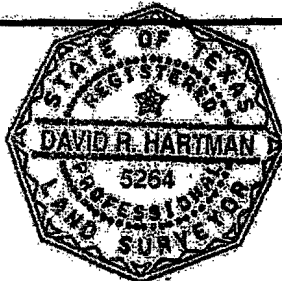
I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 3/7/11

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas

PARCEL: 52B ACRES: 0.451
HIGHWAY: IH 35 COUNTY: McLENNAN
ROW CSJ: 0015-01-220 DATE: 08/05/08
SCALE: 1" = 100' SHEET: 4 of 4

PROJECT NAME: IH 35 LORENA JOB NUMBER: 101-07-02



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

Page 1 of 3
May 15, 2010

County: McLennan
Highway: Interstate Highway 35
Limits: From South FM 2837 in Lorena to FM 2063 in Hewitt
ROW CSJ: 0015-01-220

Property Description
For Parcel 59

BEING 0.134 OF AN ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE THOS. THATCHER SURVEY, ABSTRACT NO. 647 IN MCLENNAN COUNTY, TEXAS AND BEING A PART OF A CALLED 1.741 ACRE TRACT DESCRIBED IN WARRANTY DEED TO GEORGE A. MONTGOMERY AND PATRICIA E. MONTGOMERY RECORDED ON VOLUME 1314, PAGE 282 OF THE DEED RECORDS OF MCLENNAN COUNTY, TEXAS (D.R.M.C.T); AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a found Type I monument (broken) on the south line of said 1.741 acre tract, the west line of a called 0.562 acre tract described in deed to the State of Texas recorded in Volume 825, Page 59 of the D.R.M.C.T and the existing west right-of-way line of Interstate Highway 35 (IH 35);

THENCE North 28°30'02" East 67.20 feet with the south line of said 1.741 acre tract and the existing west right-of-way line of IH 35 to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap (see Note 1) on the proposed west right-of-way line of IH 35 and the **POINT OF BEGINNING**;

- (1) THENCE North 15°17'43" East 67.38 feet through said 1.741 acre tract with the proposed west right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap (see Note 1);
- (2) THENCE North 11°51'42" East 121.01 feet through said 1.741 acre tract with the proposed west right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap (see Note 1);
- (3) THENCE North 08°59'57" East 39.50 feet through said 1.741 acre tract with the proposed west right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap on the north line of said 1.741 acre tract and the south line of a called 1.106 acre tract described in deed to Terry Murphy recorded in Volume 682, Page 826 of the Official Public Records of McLennan County, Texas (O.P.R.M.C.T.);
- (4) THENCE South 45°41'41" East 65.71 feet with the north line of said 1.741 acre tract and the south line of said 1.106 acre tract to a set 5/8" iron rod with Landesign cap at the northeast corner of said 1.741 acre tract, the southeast corner of said 1.106 acre tract, the southwest corner of a called 2.95 acre tract

Page 2 of 3

described in deed to McLennan County recorded in Volume 413, Page 614 of the D.R.M.C.T, the northwest corner of a called 2.07 acre tract described in deed to McLennan County recorded in Volume 412, Page 565 of the D.R.M.C.T, the northeast corner of said 0.562 acre tract and the existing west right-of-way line of IH 35;

- (5) THENCE South 28°30'02" West 200.87 feet with the east line of said 1.741 acre tract and the existing west right-of-way line of IH 35 to the **POINT OF BEGINNING**;

This parcel contains 0.134 acres of land, more or less, out of the Thos. Thatcher Survey, Abstract No. 647 in McLennan County, Texas.

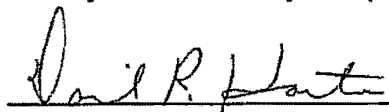
(Note 1) "The monument described as set in this call may be replaced with a Texas Department of Transportation Type II right-of-way Marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by Texas Department of Transportation "

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

Access is permitted to highway facility from the remainder of the abutting property.

A plat of even survey date herewith accompanies this property description.

I certify that the survey was performed on the ground under my supervision.

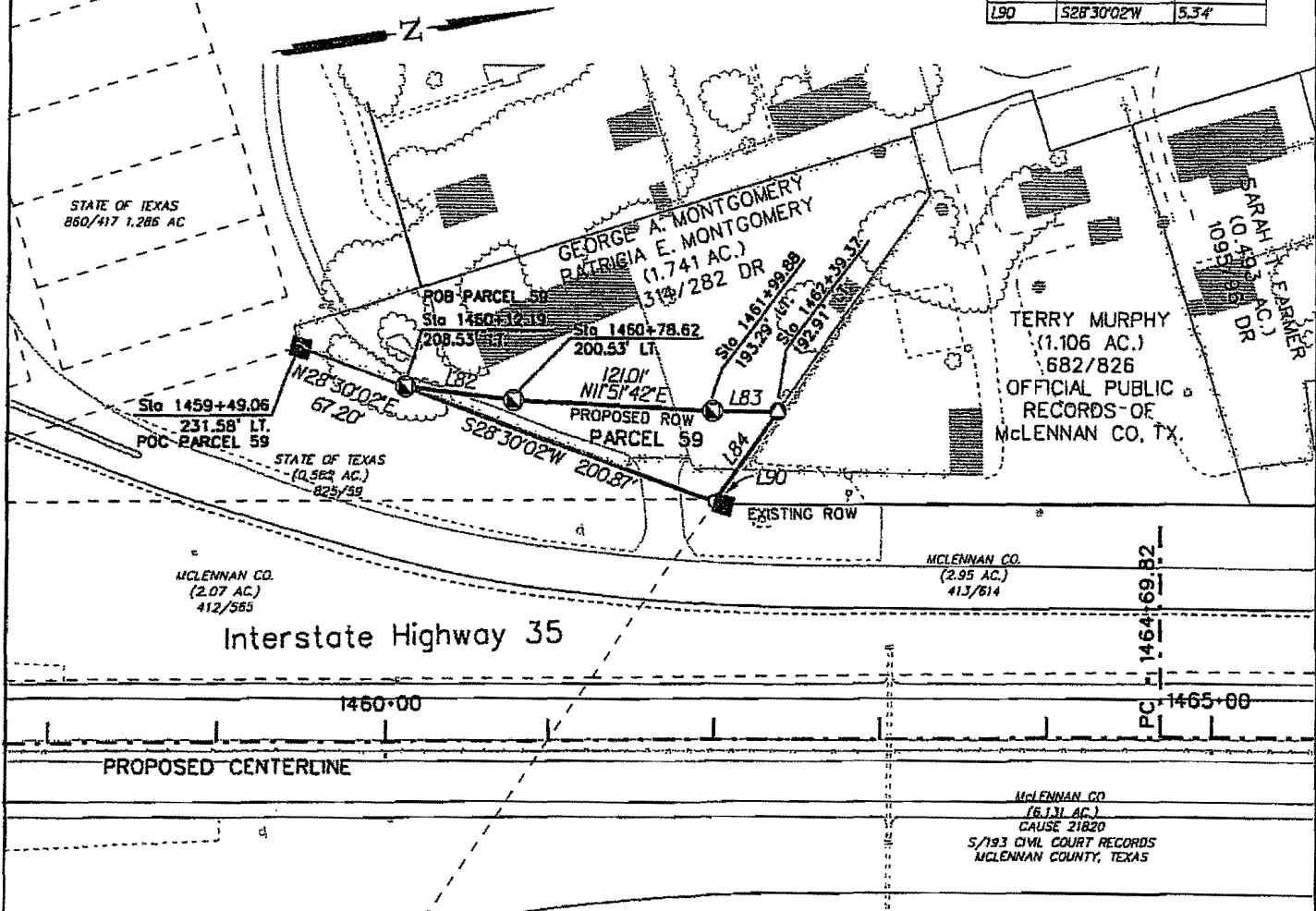

David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

5/15/10
Date



THOS. THATCHER SURVEY, ABS. 647

NUMBER	DIRECTION	DISTANCE
L82	N157°43'E	67.38'
L83	N08°59'57"E	39.50'
L84	S45°41'41"E	65.71'
L90	S28°30'02"W	5.34'



SURVEY LEGEND

SCALE IN FEET

- ⊙ = SET 5/8" IRON ROD WITH ALUMINUM CAP STAMPED "TxDOT" (MAY BE REPLACED WITH TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF CONSTRUCTION)
- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET W/ "LANDESIGN" CAP UNLESS NOTED
- = 5/8" IRON ROD SET W/ "TxDOT" CAP UNLESS NOTED
- ⊙ = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- Δ = CALCULATED POINT
- P.L. = PROPERTY LINE
- C.L. = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- ++ = ACCESS DENIAL LINE

NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00013.

ACCESS IS PERMITTED TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ABUTTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.



David R. Hartman 5/15/10

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 59 ACRES 0.134
HIGHWAY: IH 35 COUNTY: MCLENNAN
ROW CSJ: 0015-01-220 DATE: 05/15/10
SCALE: 1" = 100' SHEET: 3 of 3

PROJECT NAME: IH 35 LORENA JOB NUMBER: 101-07-02

Page 1 of 3
April 16, 2010

County: Bell
Highway: Interstate Highway 35
Limits: From North LP 363 to North of Troy
ROW CSJ: 0015-04-083

Property Description For Parcel 31

BEING 0.356 OF AN ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE SEYMOUR BOTTSFORD SURVEY, ABSTRACT NO. 118 IN BELL COUNTY, TEXAS AND BEING PART OF THAT CALLED 5.73 ACRE TRACT DESCRIBED AS A 16.193 ACRE TRACT SAVE AND EXCEPT 10.463 ACRES IN SPECIAL WARRANTY DEED TO T-N-T CARPORTS, INC. RECORDED IN VOLUME 4871, PAGE 186 OF THE OFFICIAL PUBLIC RECORDS OF BELL COUNTY, TEXAS AND; MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a found 1/2" iron rod on the north line of said 5.73 acres and at the southwest corner of a 10.463 acre tract described in deed to Terrel Timmermann recorded in Volume 3047, Page 475 of the Official Public Records of Bell County, Texas;

THENCE South 73°00'32" East 578.66 feet with the north line of said 5.73 acre tract and the south line of said 10.463 acre tract to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap in the proposed west right-of-way line of Interstate Highway 35 (IH 35) for the **POINT OF BEGINNING**;

- (1) THENCE South 73°00'32" East 41.50 feet with the north line of said 5.73 acre tract and the south line of said 10.463 acre tract to a found 1" iron pipe in the existing west right-of-way line of IH 35, the west line of a 0.521 acre tract described in deed to the State of Texas recorded in Volume 778, Page 689 of the Deed Records of Bell County, Texas (D.R.B.C.T.), the northeast corner of said 5.73 acres and the southeast corner of said 10.463 acres;
- (2) THENCE South 16°55'21" West 314.84 feet with the existing west right-of-way line of IH 35 and the east line of said 5.73 acre tract to a found Type I monument at the southeast corner of said 5.73 acre tract, the northeast corner of a 7.55 acre tract described in deed to Carroll Estes and wife, Annette Estes recorded in Volume 4213, Page 761 of the Official Public Records of Bell County, Texas (O.P.R.B.C.T.), and the northwest corner of a called 0.238 acre tract described in deed to the State of Texas recorded in Volume 767, Page 181 in the D.R.B.C.T.;
- (3) THENCE North 72°43'20" West 58.64 feet with the south line of said 5.73 acre tract and the north line of said 7.55 acre tract to a set 5/8" iron rod with TxDOT aluminum cap in the proposed west right-of-way line of IH 35;

- (4) THENCE 315.00 feet with a curve to the left, having a radius of 9935.00 feet, a delta angle of $01^{\circ}49'00''$ and chord bears North $20^{\circ}02'33''$ East 314.99 feet through said 5.73 acre tract and with the proposed west right-of-way line of IH 35 to the **POINT OF BEGINNING**;

This parcel contains 0.356 of an acre of land, more or less, out of the Seymour Bottsford Survey, Abstract No. 118 in Bell County, Texas.

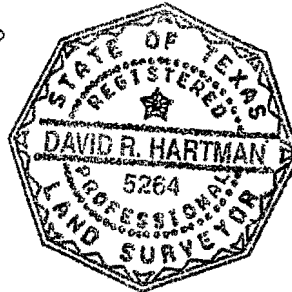
All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

Access is permitted to highway facility from the remainder of the abutting property.

A plat of even survey date herewith accompanies this property description.

I certify that the survey was performed on the ground under my supervision.

David R. Hartman 4/16/10
David R. Hartman Date
Registered Professional Land Surveyor
State of Texas No. 5264



**SEYMOUR BOTTSFORD SURVEY
ABSTRACT 118**

NUMBER	DIRECTION	DISTANCE
L34	N72° 43' 20" W	58.64'
L35	S73° 00' 32" E	41.50'

NO.	Radius	Delta Angle	Length	Chord Bearing	Chord Length
C23	9935.00	01° 49' 00"	315.00	N20° 02' 33" E	314.99

PROPOSED CENTERLINE OF IH-35
PI STATION = 612+00.58
NORTHING = 10,403,333.63
EASTING = 3,239,927.93
DELTA = 3° 42' 36" (LT)
RADIUS = 15,000.00'
D = 0° 22' 55"
TANGENT = 485.82'
LENGTH = 971.30'

POC PAR 31

CARROLL ESTES AND WIFE,
ANNETTE ESTES
(7.55 AC.)
4213/761
O.P.R.B.C.T.

T-N-T CARPORTS, INC.
(5.73 AC.)
(16.193 AC S&E 10.463 AC.)
4871/186
O.P.R.B.C.T.

TERREL TIMMERMANN
(10.463 AC.)
3047/475
O.P.R.B.C.T.

Slo 610+12.85
179.72' LT.

POB PAR 31
Slo 613+31.53
173.31' LT.

PAR 31

S16° 55' 21" W 594.97'

S16° 55' 21" W 409.51'

S16° 55' 21" W 314.84'

STATE OF TEXAS (0.521 AC.) 778/689

STATE OF TEXAS
(1.439 AC.)
615/400

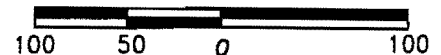
STATE OF TEXAS
(5.214 AC.)
615/387

PROPOSED CENTERLINE

615+00

SURVEY LEGEND

SCALE IN FEET



- ⊙ = SET 5/8" IRON WITH TxDOT ALUMINUM CAP STAMPED "CONTROL OF ACCESS POINT"
- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET W/ "LANDESIGN" CAP UNLESS NOTED
- ◐ = 5/8" IRON ROD SET W/ "TxDOT" CAP UNLESS NOTED
- = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- △ = CALCULATED POINT
- ⌚ = PROPERTY LINE
- ⌚ = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- +++ = ACCESS DENIAL LINE

NOTES:

ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00013.

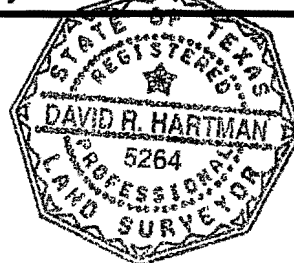
ACCESS IS PERMITTED TO HIGHWAY FACILITY FROM THE REMAINDER OF THE ADJUTING PROPERTY.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 4/10/10

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



**LANDESIGN
SERVICES, INC.**

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 31 ACRES 0.356
HIGHWAY: IH 35 COUNTY: Bell
ROW CSJ: 0015-04-083 DATE: 04/16/10
SCALE: 1" = 100' SHEET: 3 of 3

PROJECT NAME: IH35 Temple Troy JOB NUMBER: 101-07-04

Page 1 of 3
March 15, 2010

County: Bell
Highway: Interstate Highway 35
Limits: From North LP 363 to North of Troy
ROW CSJ: 0015-04-083

Property Description
For Parcel 83

BEING 0.865 OF AN ACRE OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE TALLIFERRO HUGHES SURVEY, ABSTRACT NO. 385 IN BELL COUNTY, TEXAS AND ALL OF LOT 7 AND PART OF LOTS 3,4,5,6 AND 8 AND A PORTION OF A 20.0 FOOT WIDE ALLEY ALL IN BLOCK 11 OF THE ORIGINAL TOWN OF TROY RECORDED IN VOLUME 124, PAGE 442 OF THE DEED RECORDS OF BELL COUNTY, TEXAS (D.R.B.C.T.) CONVEYED IN SUBSTITUTE TRUSTEE'S DEED TO ECONO-FUEL, INC. RECORDED IN DOCUMENT NUMBER 2007 – 00049483 OF THE REAL PROPERTY RECORDS OF BELL COUNTY, TEXAS (R.P.R.B.C.T.); AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

BEGINNING at a found 1/2" iron rod at the southeast corner of the remainder of Lot 8, Block 11, the north right-of-way line of Belton Street, the southeast corner of the east 20 feet of Lot 8, Block 11 described in deed to the State of Texas recorded in Volume 615, Page 581 of the D.R.B.C.T. and the existing west right-of-way line of Interstate Highway 35 (IH 35)

- (1) THENCE North 75°04'57" West 150.96 feet with the existing north right-of-way line of Belton Street and the south line of Lots 8 through 6, Block 11 to a set 5/8" iron rod with "Landesign" cap at the southwest corner of the remainder of Lot 6, Block 11 and on the east line of a called 4.17 acre tract described in deed to Houston Brown recorded in Volume 1514, Page 347 in the D.R.B.C.T.;
- (2) THENCE North 15°08'17" East 249.70 feet with the west line of the remainder of Lots 6 and 5, Block 11 and the east line of said 4.17 acre tract to a set 5/8" iron rod with "Landesign" cap at the northwest corner of the remainder of Lot 5, Block 11 and an angle point in the east line of said 4.17 acre tract;
- (3) THENCE South 74°58'36" East 150.84 feet through Lots 5 through 3 with the east line of said 4.17 acre tract to a set 5/8" iron rod with "Landesign" cap at the northeast corner of the remainder of Lot 3, Block 11, an angle point in the east line of said 4.17 acre tract and on the west line of the east 20 feet of Lot 3, Block 11 described in deed to the State of Texas recorded in Volume 615, Page 581 D.R.B.C.T. and the existing west right-of-way line of IH 35;

Page 2 of 3

- (4) THENCE South 15°06'39" West 249.42 feet with the east line of the remainder of Lots 3 and 8, Block 11 and the existing west right-of-way line of IH 35 to the **POINT OF BEGINNING.**

This parcel contains 0.865 acres of land, more or less, out of the Talliferro Hughes Survey, Abstract No. 385 in Bell County, Texas.

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

A plat of even survey date herewith accompanies this property description.

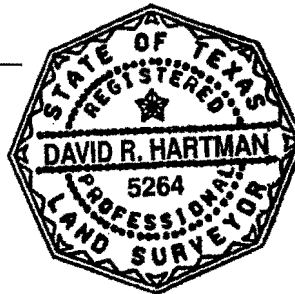
I certify that the survey was performed on the ground under my supervision.

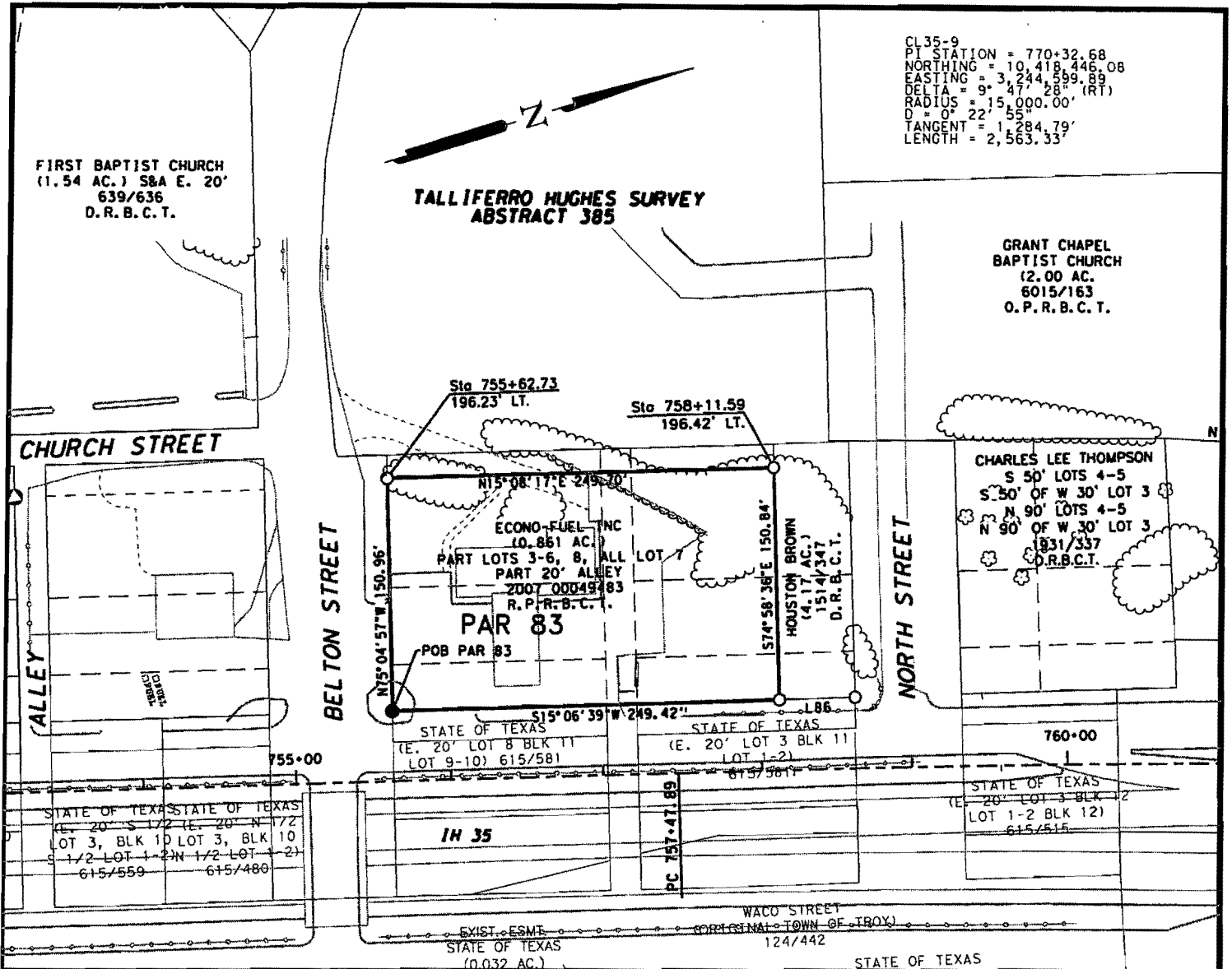
David R. Hartman

4/16/10

David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

Date





SURVEY LEGEND

- ⊙ = SET 5/8" IRON WITH TxDOT ALUMINUM CAP
STAMPED "CONTROL OF ACCESS POINT"
- = TYPE II MONUMENT SET
- = TYPE I MONUMENT FOUND
- = 5/8" IRON ROD SET W/ "LANDESIGN" CAP UNLESS NOTED
- ◌ = 5/8" IRON ROD SET W/ "TxDOT" CAP UNLESS NOTED
- = 1/2" IRON ROD FOUND UNLESS NOTED
- ⊙ = IRON PIPE FOUND
- Δ = CALCULATED POINT
- = PROPERTY LINE
- = CENTER LINE
- () = RECORD INFORMATION
- P.C. = POINT OF CURVATURE
- P.T. = POINT OF TANGENT
- P.O.B. = POINT OF BEGINNING
- P.O.C. = POINT OF COMMENCEMENT
- +++ = ACCESS DENIAL LINE
- D.R.B.C.T. = DEED RECORDS BELL COUNTY, TEXAS
- O.P.R.B.C.T. = OFFICIAL PUBLIC RECORDS BELL COUNTY, TEXAS
- R.P.R.B.C.T. = REAL PROPERTY RECORDS BELL COUNTY, TEXAS

NOTES:

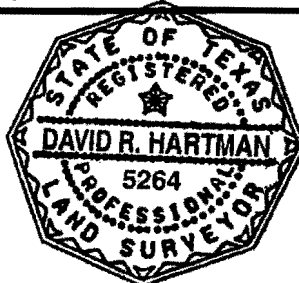
ALL BEARINGS ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, CENTRAL ZONE, WITH ALL DISTANCES AND COORDINATES BEING NAD 83 DATUM AND ADJUSTED TO THE SURFACE BY PROJECT SURFACE FACTOR OF 1.00013.

PROPERTY DESCRIPTION WITH SAME DATE WAS PREPARED WITH THIS PLAT.

I HEREBY CERTIFY THAT THIS SURVEY WAS MADE ON THE GROUND UNDER MY DIRECTION AND SUPERVISION AND THAT THIS PLAT IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF.

David R. Hartman 4/16/10

David R. Hartman
Registered Professional Land Surveyor, No. 5264, State of Texas



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

PARCEL: 83 ACRES 0.865
HIGHWAY: IH 35 COUNTY: Bell
ROW CSJ: 0015-04-083 DATE: 03/15/10
SCALE: 1" = 100' SHEET: 3 of 3

PROJECT NAME: IH35 Temple Troy JOB NUMBER: 101-07-04

Page 1 of 8
April 1, 2010
Revised: May 11, 2011

County: Bell
Highway: Interstate Highway 35
Limits: From North LP 363 to North of Troy
ROW CSJ: 0015-04-083

Property Description
For Parcel 109

BEING 5.234 ACRES OF LAND, SURVEYED BY LANDESIGN SERVICES, INC., OUT OF THE TALLIFERRO HUGHES SURVEY, ABSTRACT NO. 385 IN BELL COUNTY, TEXAS AND PART OF A REMAINDER OF A CALLED 80.00 ACRE TRACT DESCRIBED IN WARRANTY DEED WITH VENDOR'S LIEN TO JOE R. RAMIREZ AND WIFE HELEN H. RAMIREZ RECORDED IN VOLUME 2387, PAGE 307, OF THE OFFICIAL PUBLIC RECORDS OF BELL COUNTY, TEXAS (O.P.R.B.C.T.) AND ALL OF A CALLED 0.062 ACRE TRACT DESCRIBED IN WARRANTY DEED TO JOE R. RAMIREZ AND WIFE, HELEN H. RAMIREZ RECORDED IN DOCUMENT NUMBER 200700014868 OF THE REAL PROPERTY RECORDS OF BELL COUNTY, TEXAS; AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCING at a set 5/8" iron rod with "Landesign" cap at the southeast corner of a called 20.00 acre tract described in deed to Jupiter T. Freeman and wife, Nevador Freeman recorded in Volume 694, Page 468 of the D.R.B.C.T. and the southwest corner of remainder of a called of 4.28 acre tract described in deed to Joe R. Ramirez and wife, Helen H. Ramirez and Ralph Ramirez recorded in Volume 1606, Page 639 of the D.R.B.C.T.;

THENCE North 34°09'00" East 504.19 feet with the west line of said remainder of 4.28 acre tract and the east line of said 20.00 acre tract to a set Type II monument at the northwest corner of said remainder of 4.28 acre tract and the southwest corner of a called 0.477 acre tract described in deed to Paul H. Ramirez and wife, Margaret Ramirez recorded in Volume 3578, Page 6 of the O.P.R.B.C.T.;

THENCE North 34°09'00" East 237.02 feet with the west line of said 0.477 acre tract and the west line of a called 2.73 acre tract (1606/598) described in deed to Paul H. Ramirez and wife, Margaret Ramirez recorded in Volume 1606, Page 598 of the D.R.B.C.T. to a set Type II monument at the northeast corner of said 20.00 acre tract, the southeast corner of said remainder of 80.00 acre tract, the proposed west right-of-way line of Interstate Highway 35 (IH 35), the beginning of an Access Denial Line and the **POINT OF BEGINNING**;

- (1) THENCE North 24°46'37" East 140.47 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 and the Access Denial Line to a set 5/8" iron rod with Texas Department of Transportation (TxDOT) aluminum cap stamped "CONTROL OF ACCESS POINT" at the end of the Access Denial Line;

- (2) THENCE North 24°46'37" East 76.26 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap stamped "CONTROL OF ACCESS POINT" at the beginning of an Access Denial Line;
- (3) THENCE North 24°46'37" East 260.77 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 and the Access Denial Line to a set Type II monument;
- (4) THENCE North 36°34'45" East 107.28 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 and the Access Denial Line to a set Type II monument;
- (5) THENCE 68.90 feet along a curve to the right having a radius of 8565.00 feet, a delta angle of 00°27'39" and a chord bears North 25°52'24" East 68.90 feet through said remainder of 80.00 acre tract, with the proposed west right-of-way line of IH 35 and the Access Denial Line to a set 5/8" iron rod with TxDOT aluminum cap stamped "CONTROL OF ACCESS POINT" at the end of the Access Denial Line;
- (6) THENCE 737.01 feet along a curve to the right having a radius of 8565.00 feet, a delta angle of 04°55'49" and chord bears North 28°34'08" East 736.78 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 to a set Type II monument;
- (7) THENCE North 22°54'41" East 101.96 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 to a set Type II monument;
- (8) THENCE 115.04 feet along a curve to the right having a radius of 8580.00 feet, a delta angel of 00°46'06" and a chord bears North 32°05'32" East 115.04 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 to a set Type II monument;
- (9) THENCE North 32°28'35" East 418.49 feet through said remainder of 80.00 acre tract with the proposed west right-of-way line of IH 35 to a set 5/8" iron rod with TxDOT aluminum cap on the north line of said remainder of 80.00 acre tract and the south line of a called 12.72 acre tract described in deed to William Scott Pierce recorded in Volume 5988, Page 664 of the O.P.R.B.C.T.;
- (10) THENCE South 73°40'40" East 73.51 feet with the north line of said remainder of said 80.00 acre tract and the south line of the said 12.72 acre tract to a set 5/8" iron rod with "Landesign" cap at an angle point in the north line of said remainder of 80.00 acre tract and the south line of said 12.72 acre tract;
- (11) THENCE South 08°03'30" West 244.63 feet with the east line of said remainder of 80.00 acre tract and the south line of said 12.72 acre tract to a found 5/8" iron rod at the southeast corner of said 12.72 acre tract on the east line of said remainder

of 80.00 acre tract, the west line of a called 7.992 acre tract described in deed to the State of Texas recorded in Volume 615, Page 418 of the D.R.B.C.T., the northwest corner of a called 1.414 acre tract described in deed to the State of Texas recorded in Volume 767, Page 73 of the D.R.B.C.T. and the existing west right-of-way line of IH 35;

- (12) THENCE South 24°55'09" West 83.87 feet with the east line of said remainder of 80.00 acre tract and the existing west right-of-way of IH 35 to a set 5/8" iron rod with "Landesign" cap at the north corner of said 0.062 acre tract;
- (13) THENCE South 24°55'09" West 185.42 feet with the east line of said 0.062 acre tract and the existing west right-of-way line of IH 35 to a set 5/8" iron rod with "Landesign" cap at the northeast corner of the remainder of a called 0.804 acre tract described in deed to Mary Ann Resendez recorded in Volume 1606, Page 623 of the D.R.B.C.T.;
- (14) THENCE 29.82 feet along a curve to the right having a radius of 245.73, a delta angle of 06°57'09" and a chord bears North 59°21'13" West 29.80 feet with the south line of said 0.062 acre tract and the north line of the remainder of said 0.804 acre tract to a set 5/8" iron rod with "Landesign" cap at the northwest corner of said 0.804 acre tract;
- (15) THENCE South 34°09'00" West 457.18 feet with the east line of said remainder of 80.00 acre tract and the west line of said 0.804 acre tract to a set 5/8" iron rod with "Landesign" cap at the southwest corner a said 0.804 acre tract and the northwest corner of a called 0.376 acre tract described in deed to Linda Gomez recorded in Volume 2920, Page 798 of the O.P.R.B.C.T.;
- (16) THENCE South 34°09'00" West 145.48 feet with the east line of said remainder of 80.00 acre tract and the west line of said 0.376 acre tract to a set 5/8" iron rod with "Landesign" cap at the southeast corner of said 0.376 acre tract and the northeast corner of north remainder of a called 2.73 acre tract (1606/649) described in deed to Joe E. Ramirez and wife, Nancy Ramirez recorded in Volume 1606, Page 649 of the D.R.B.C.T.;
- (17) THENCE South 34°09'00" West 11.22 feet with the west line of said remainder of 2.73 acre tract and the east line of said remainder of 80.00 acre tract to a set 5/8" iron rod with "Landesign" cap at the southwest corner of said north remainder of 2.73 acre tract (1606/649) and the northwest corner of a called 0.512 acre tract described in deed to Virginia Garcia recorded in Volume 2920, Page 789 of the O.P.R.B.C.T.;
- (18) THENCE South 34°09'00" West 158.69 feet with the west line of said 0.512 acre tract and the east line of said remainder of 80.00 acre tract to a found 1/2" iron rod at the southwest corner of said 0.512 acre tract and the northwest corner of a called 0.594 acre tract described in deed to Eric J. Denoso and wife, Salina

Ramirez Denoso recorded in Document Number 2007 - 00015077 of the Real Property Records Bell County, Texas (R.P.R.B.C.T.);

- (19) THENCE South 34°09'00" West 156.50 feet with the west line of said 0.594 acre tract and the east line of said remainder of 80.00 acre tract to a found 5/8" iron rod at the southwest corner of said 0.594 acre tract and the northwest corner of a called 0.749 acre tract described in deed to Amanda J. Martin recorded in Volume 5533, Page 375 of the O.P.R.B.C.T.;
- (20) Thence South 34°09'00" West 170.94 feet with the west line of said 0.749 acre tract and the east line of said remainder of 80.00 acre tract to a found 5/8" iron rod at the southwest corner of said 0.749 acre tract and the northwest corner of said south remainder of 2.73 acre tract (1606/649);
- (21) THENCE South 34°09'00" West 257.85 feet with the west line of said south remainder of 2.73 acre tract, the east line of said remainder of 80.00 acre tract and the west line of a called 0.477 acre tract described in deed to Joe E. Ramirez and wife, Nancy Ramirez recorded in Volume 2920, Page 792 of the O.P.R.B.C.T. to a found 1/2" iron rod at the southwest corner of the said 0.477 acre tract and the northwest corner of remainder of said 2.73 acre tract (1606/598);
- (22) THENCE South 34°09'00" West 190.39 feet with west line of said 2.73 acre tract (1606/598) and the east line of said remainder of 80.00 acre tract to the POINT OF BEGINNING.

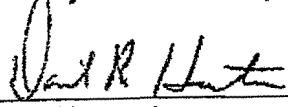
This parcel contains 5.234 acres of land, more or less, and 577.42 linear feet of Access Denial Line, out of the Tallferro Hughes Survey, Abstract No. 385 in Bell County, Texas.

All bearings are based on the Texas State Plane Coordinate System, Central Zone, NAD 83 Datum and adjusted to the surface by project surface adjustment factor of 1.00013.

Access is prohibited across the Access Denial Line to highway facility from the remainder of the abutting property.

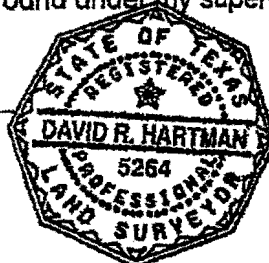
A plat of even survey date herewith accompanies this property description.

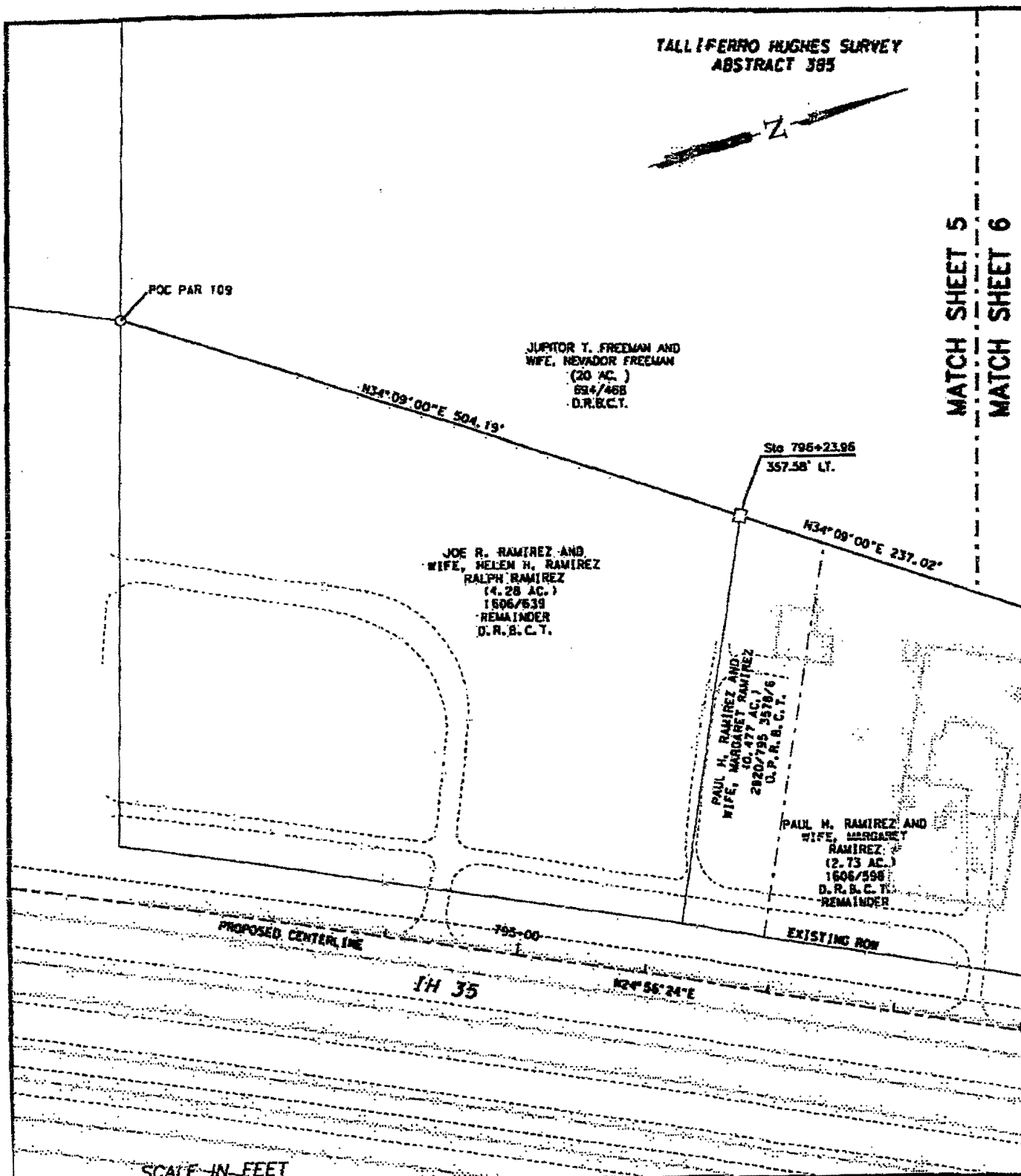
I certify that the survey was performed on the ground under my supervision.


David R. Hartman
Registered Professional Land Surveyor
State of Texas No. 5264

Date

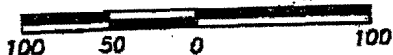
5/11/11





MATCH SHEET 5
MATCH SHEET 6

SCALE IN FEET



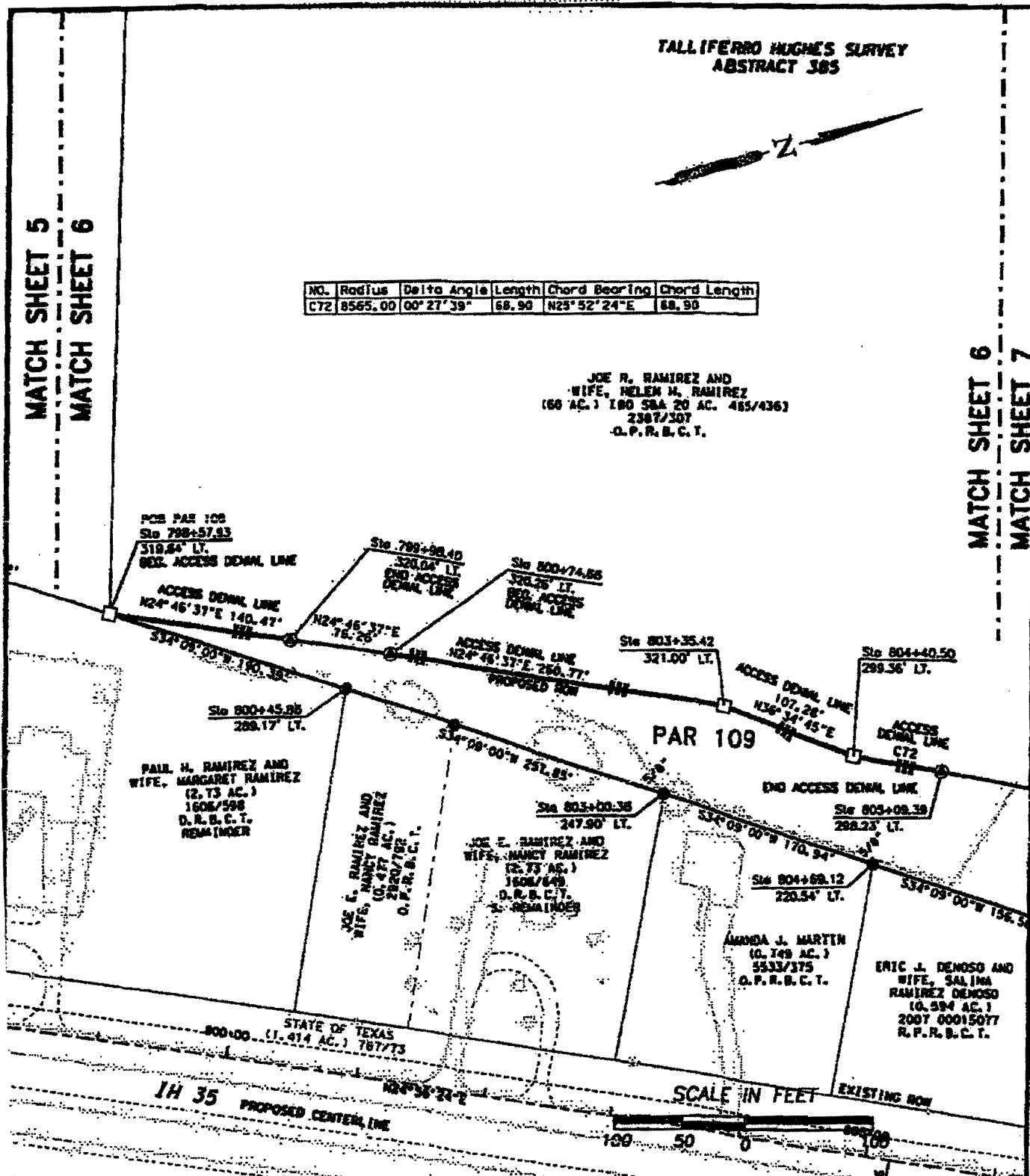
PARCEL: 109 ACRES 5.234
HIGHWAY: IH 35 COUNTY: Bell
ROW CSJ: 0015-04-083
SCALE: 1" = 100' SHEET: 5 of 8

PROJECT NAME: IH35 Temple Troy JOB NUMBER: 101-07-004



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681



PARCEL: 109 ACRES 5.234
HIGHWAY: IH 35 COUNTY: Bell
ROW CSJ: 0015-04-083
SCALE: 1" = 100' SHEET: 6 of 8

PROJECT NAME: IH35 Temple Troy JOB NUMBER: 101-07-004



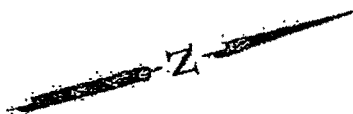
**LANDESIGN
SERVICES, INC.**

512-288-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681

MATCH SHEET 6
MATCH SHEET 7

NUMBER	DIRECTION	DISTANCE
L180	S34°09'00"W	11.22'

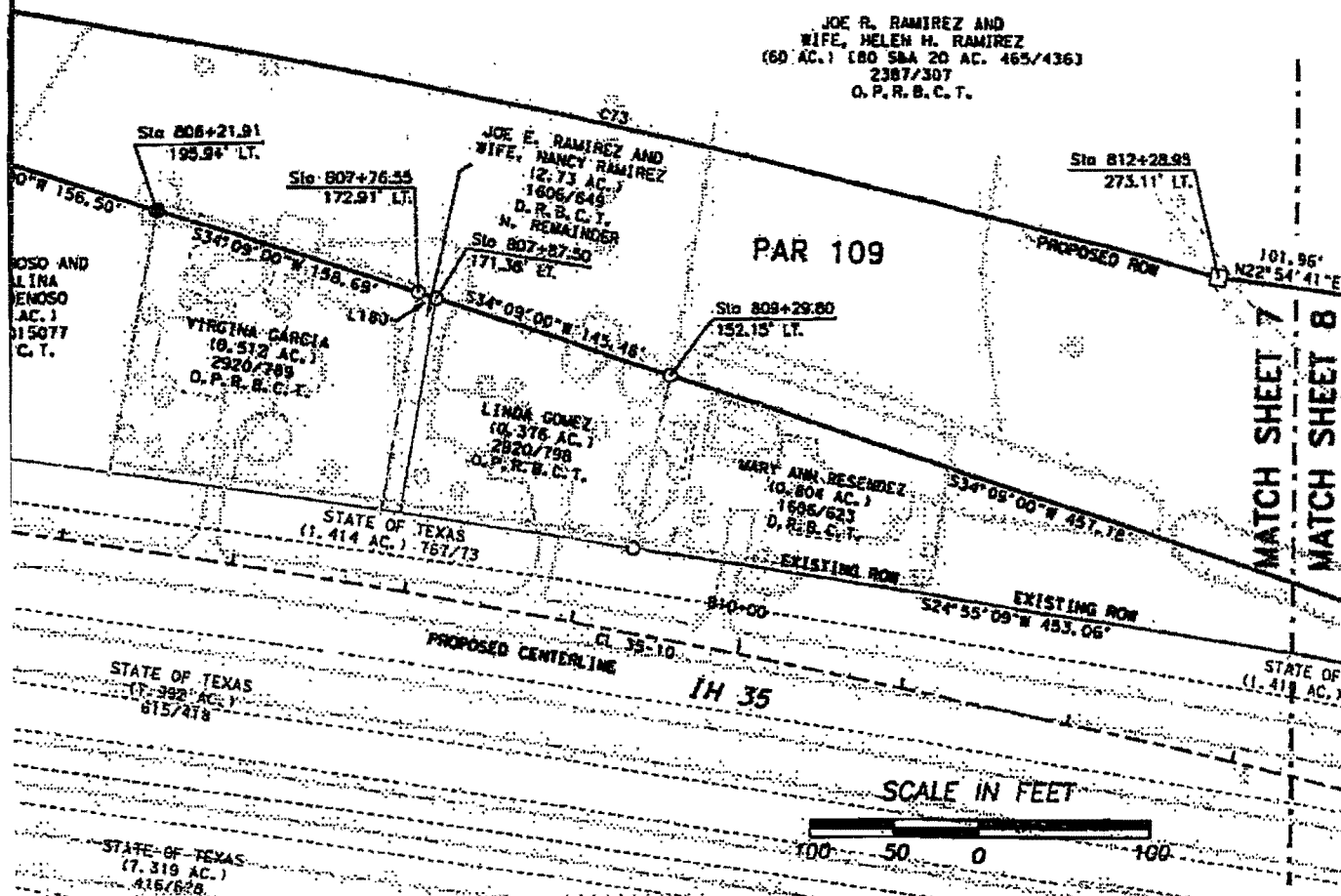
TALL FERRO-HUGHES SURVEY
ABSTRACT 385



NO.	Radius	Delta Angle	Length	Chord Bearing	Chord Length
C73	8565.00	04°55'49"	737.01	N28°34'08"E	736.78

C135-10
PT. STATION = 811+16.10
NORTHING = 10,427.154.39
EASTING = 3,226.454.48
DELTA = 5°45'12" (R)
RADIUS = 12,000.00'
D = 28°38'
TANGENT = 597.74'
LENGTH = 7,194.48'

JOE R. RAMIREZ AND
WIFE, HELEN M. RAMIREZ
(60 AC.) (80 SBA 20 AC. 463/436)
2387/307
O. P. R. B. C. T.



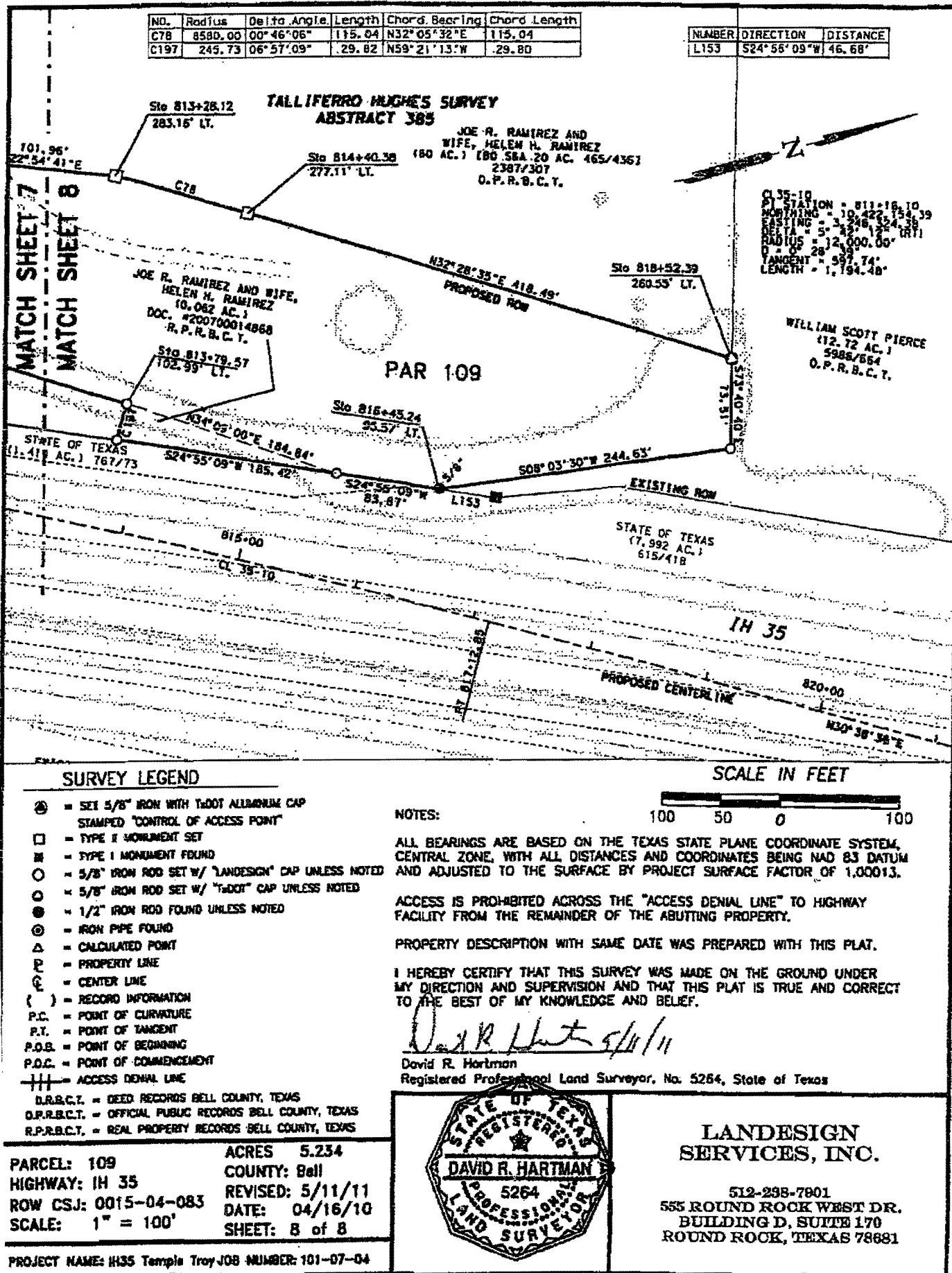
PARCEL: 109 ACRES 5.234
HIGHWAY: IH 35 COUNTY: Bell
ROW CSJ: 0015-04-083
SCALE: 1" = 100' SHEET: 7 of 8

PROJECT NAME: IH35 Temple Troy JOB NUMBER: 101-07-004



LANDESIGN
SERVICES, INC.

512-238-7901
555 ROUND ROCK WEST DR.
BUILDING D, SUITE 170
ROUND ROCK, TEXAS 78681



Revised December 9, 2011
October 15, 2009
Parcel 310
Sheet 1 of 4

County: Harris
Highway: Interstate Highway 45
Limits: Nyack Drive to Medical Center Boulevard
RCSJ: 0500-03-546

PROPERTY DESCRIPTION FOR PARCEL 310

Being a 1.2018 acre (52,351 square feet) parcel of land situated in the Robert Wilson Survey, Abstract 88, Harris County, Texas; being a portion of that certain called 474.9065 acres tract of land conveyed to SOUTHBROOK CORPORATION, by Warranty Deed executed August 31, 1992, as recorded in File Number N852137 in the Official Public Records of Real Property of Harris County, Texas; being a portion of Commercial Reserve "B", and Restricted Reserve "C", of the Final Replat of Baybrook Section Two, a subdivision recorded in Film Code Number 486030 in the Map Records of Harris County, Texas; said 1.2018 acre tract of land being more particularly described by metes and bounds as follows:

COMMENCING at a found 3/4-inch iron rod with cap stamped "Cherry Engineering", on the Northwest Right-of-Way line of Jasmine Avenue (80-foot R.O.W., as described in Film Code Number 486030 in the Map Records of Harris County, Texas), same being the most Southerly corner of said Commercial Reserve "B"; thence as follows:

North 49°20'57" East, with the Southeast line of said Commercial Reserve "B", and the Northwest line of said Jasmine Avenue, a distance of 39.57 feet to a set 5/8-inch iron rod with aluminum "TXDOT" cap on the Proposed Southwest Right-of-Way of I. H. 45, being the beginning of a curve to the right, whose center bears North 49°54'31" East, being the **POINT OF BEGINNING** of the herein described 1.2019 acre parcel of land; said point having coordinates of X = 3,197,198.10 and Y = 13,763,765.18; **

- (1) **THENCE**, with the Proposed Southwest Right-of-Way line of I. H. 45, along said curve having a radius of 22,935.31 feet, a central angle of 01°15'23", an arc length of 502.90 feet, and a chord bearing North 39°27'47" West a distance of 502.89 feet to a set 5/8-inch iron rod with aluminum "TXDOT" cap; **

Revised December 9, 2011
October 15, 2009
Parcel 310
Sheet 2 of 4

- (2) **THENCE**, North 38°50'06" West, continuing with the Proposed Southwest Right-of-Way of I. H. 45, a distance of 167.68 feet to a set 5/8-inch iron rod with aluminum "TXDOT" cap in the Northwest line of said Commercial Reserve "B", being the Southeast line of that certain called 0.105 acre Restricted Reserve "A-1" in the Replat of Restricted Reserve "A", Final Replat of Baybrook Section Two, a subdivision recorded in Film Code Number 620214 in the Map Records of Harris County, Texas;
- (3) **THENCE**, North 48°51'54" East, with said Northwest line of Commercial Reserve "B", the Southeast line of said Restricted Reserve "A-1", a distance of 66.21 feet to a point for corner on the Existing Southwest Right-of-Way line of I.H. 45 (300-foot Right-of-Way, as recorded in Volume 1515, Page 548 of the Deed Records of Harris County, Texas);
- (4) **THENCE**, South 41°05'46" East, with said Existing Southwest Right-of-Way line of I. H. 45, a distance of 670.95 feet to a point for the East corner of said Commercial Reserve "B", and being on the Northwest Right-of-Way of said Jasmine Avenue, from which a found 3/4-inch iron rod bears North 49°20'57" East, 0.77 feet;
- (5) **THENCE**, South 49°20'57" West, with the Existing Northwest Right-of-Way line of said Jasmine Avenue, and the Southeast line of said Commercial Reserve "B", a distance of 87.16 feet to the **POINT OF BEGINNING**; containing 1.2018 acres (52,351 square feet) of land. **

Revised December 9, 2011
October 15, 2009
Parcel 310
Sheet 3 of 4

Note: Parcel plat of even date was prepared in conjunction with this property description.

** The monument described and set in this call may be replaced with a TxDOT Type II Right-of-Way marker upon the completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.

All bearings and coordinates are based on the Texas Coordinate System, South Central Zone, North American Datum of 1983 (NAD 83) 1993 Adjustment. All coordinates and distances shown are surface and may be converted to grid by dividing by a combined adjustment factor of 1.00013.

Access is prohibited across the Access Denial Line to the highway facility from the abutting remainder property.

I, David M. Layman, a Registered Professional Land Surveyor in the State of Texas do hereby certify that this survey was prepared from an actual on-the-ground survey of the property described herein conducted by me or under my supervision and that this survey correctly represents the facts found at the time of the survey.

Ground Survey was conducted July, 2005 thru September, 2005 and July, 2009.



David M. Layman 12/9/2011

"THE MONUMENT DESCRIBED & SET IN THIS CALL MAY BE REPLACED WITH A TXDOT TYPE II RIGHT OF WAY MARKER UPON THE COMPLETION OF THE HIGHWAY CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED PROFESSIONAL LAND SURVEYOR EITHER EMPLOYED OR RETAINED BY TXDOT."

ROBERT WILSON SURVEY

ABSTRACT 88

ACCESS DENIAL LINES ARE MONUMENTED AT THE BEGINNING AND END WITH A 5/8-INCH IRON ROD WITH ALUMINUM CAP STAMPED "CTRL OF ACCESS" A PROPERTY DESCRIPTION OF EVEN DATE WAS PREPARED IN CONJUNCTION WITH THEIR PARCEL PLAT.

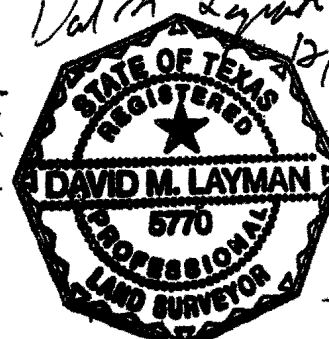
DATUM NOTE:
ALL BEARINGS AND COORDINATES SHOWN ARE BASED ON THE TEXAS COORDINATE SYSTEM, SOUTH CENTRAL ZONE, NORTH AMERICAN DATUM OF 1983 (NAD83), 1993 ADJUSTMENT. ALL COORDINATES FOR CONTROL POINTS WERE CALCULATED FROM CLOSED TRAVERSES TIED TO GLOBAL POSITIONING STATIONS (GPS) ESTABLISHED FROM NATIONAL GEODETIC SURVEY (NGS) MONUMENTS. ALL DISTANCES AND COORDINATES SHOWN ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY A COMBINED ADJUSTMENT FACTOR OF 1.00013.

- 5/8" Iron rod w/ aluminum cap stamped "TXDOT"
- Marker found "as noted"
- P.O.B. - Point Of Beginning
- P.O.C. - Point Of Commencing
- R - Property Line
- S - Survey Line
- Z - Fee Hook
- Q - Proposed Centerline

CL PROJECT BASELINE DATA

PI STATION=793+71.08
DELTA= 03°21'44"(RT)
DEGREE OF CURVE= 00°15'00"
TANGENT=672.63'
LENGTH=1,344.87'
RADIUS=22,918.31'
PRC STATION=786+98.44
X=3,196,480.23, Y=13,764,953.51
PT STATION=800+43.31
X=3,197,334.57, Y=13,763,915.12
CHORD= S39°26'46"E, 1,344.68'

O.P.R.P.H.G.T. - OFFICIAL PUBLIC RECORDS OF REAL PROPERTY OF HARRIS COUNTY, TEXAS
D.R.H.C.T. - DEED RECORDS OF HARRIS COUNTY, TEXAS
C.F.H.C.T. - CLERKS' FILES OF HARRIS COUNTY, TEXAS
M.R.H.C.T. - MAP RECORDS OF HARRIS COUNTY, TEXAS



Val M. Layman
12/9/2011

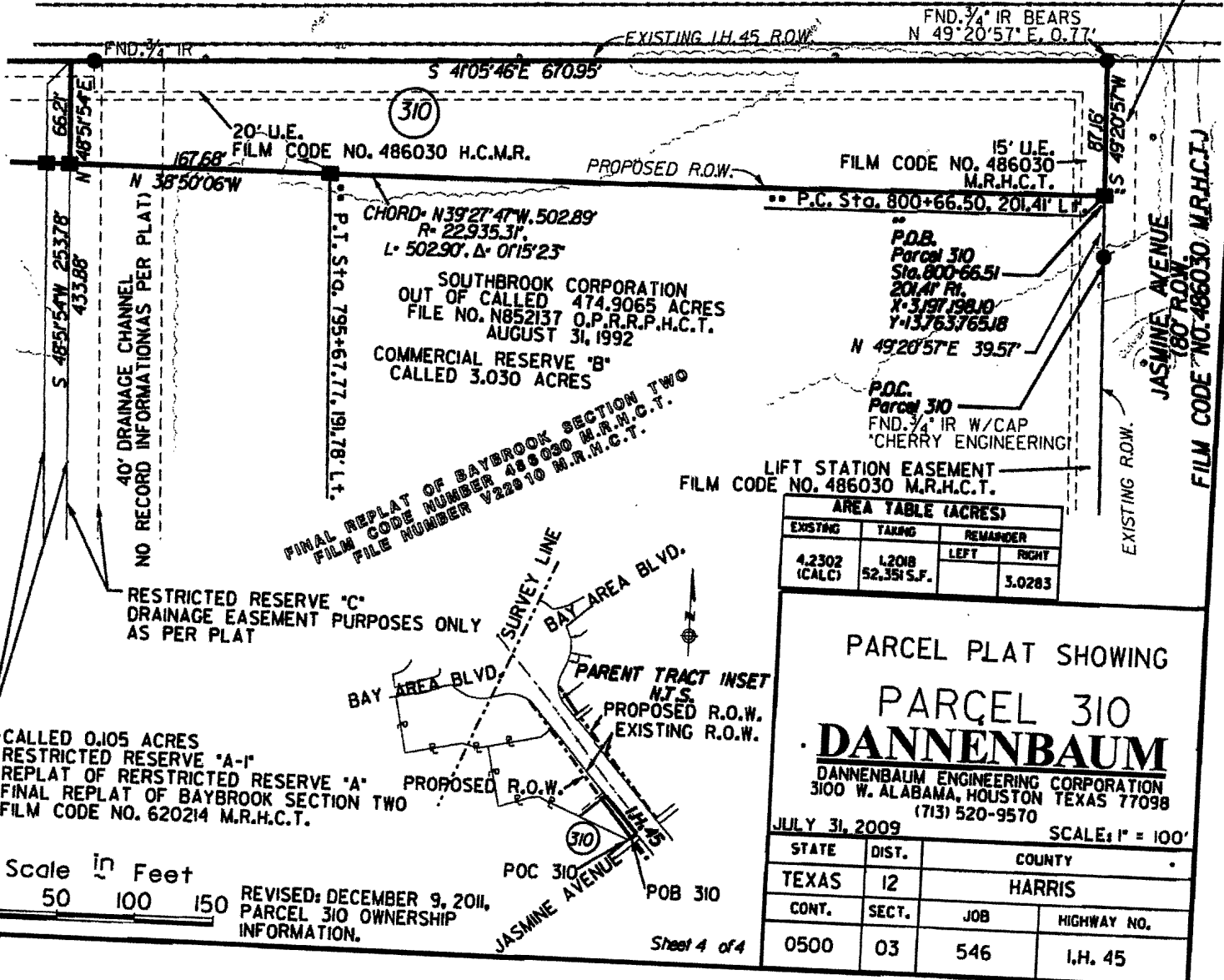
PROJECT BASELINE
795-00

I.H. 45

800-00

300' RIGHT-OF-WAY
VOL. 1515, PG. 548
D.R.H.C.T.

20' STRIP DEDICATED TO ROW
FILM CODE NO. 486030 M.R.H.C.T.



AREA TABLE (ACRES)			
EXISTING	TAKING	REMAINDER	
		LEFT	RIGHT
4.2302 (CALC)	L2018 52.351 S.F.		3.0283

PARCEL PLAT SHOWING

PARCEL 310

DANNENBAUM

DANNENBAUM ENGINEERING CORPORATION
3100 W. ALABAMA, HOUSTON TEXAS 77098
(713) 520-9570

JULY 31, 2009

SCALE: 1" = 100'

STATE	DIST.	COUNTY	
TEXAS	12	HARRIS	
CONT.	SECT.	JOB	HIGHWAY NO.
0500	03	546	I.H. 45

Revised: April 25, 2011
September, 2010
Parcel 311
Page 1 of 6 Pages

County: Harris
Highway: Interstate Highway 610
Limits: West of West 34th St. on US 290 to North and South of US 290 on IH 610
RCSJ: 0271-14-225

Property Description for Parcel 311

Being a 0.5036 acre (21,936 square feet) parcel of land situated in the John Flowers Survey, Abstract 269, Harris County, Texas and being out of the residue of a called 8.6285 acre tract of land conveyed to Treeline Partners, Ltd. in deed dated March 28, 1994 and recorded under File Number P779552, Film Code Number 093-80-0931 of the Harris County Official Public Records of Real Property (H.C.O.P.R.R.P.), also being a portion of Restricted Reserves "A", "C", and "D", Two Ninety-Thirty Fourth Center, a subdivision situated in said Harris County according to the map or plat thereof recorded under Film Code Number 359095 of the Harris County Map Records (H.C.M.R.), said 0.5036 acre tract being more particularly described as follows, with all bearings based on the Texas State Plane Coordinate System, South Central Zone, North American Datum of 1983 (1993 Adjustment). All distances and coordinates are surface and may be converted to grid by dividing by the combined adjustment factor of 1.00013.

COMMENCING at a 5/8-inch iron rod found for the southeast corner of the residue of said 8.6285 acre tract, being the southwest corner of a called 2.4123 acre tract of land conveyed to B&G Realty, Inc. in deed recorded under File Number S005162, Film Code Number 509-06-2361 of said H.C.O.P.R.R.P., and being in the northerly line of a called 0.6192 acre tract of land conveyed to Supreme Interests, Inc. in deed recorded under File Number 20100461817, Film Code Number 074-59-0901 of said H.C.O.P.R.R.P.; thence as follows:

South 86°54'53" West, along the line common to the residue of said 8.6285 acre tract and said 0.6192 acre tract, a distance of 36.31 feet to a 5/8-inch iron rod with TxDOT aluminum cap set at the point of intersection with the proposed easterly right-of-way line of U.S. 290 (width varies), and being the POINT OF BEGINNING (N=13,863,718.66, E=3,089,271.06), and being at Baseline Station 2856+81.80, 200.91 feet left;

Revised: April 25, 2011
September, 2010
Parcel 311
Page 2 of 6 Pages

- 1.) THENCE, South 86°54'53" West, continuing along the line common to the residue of said 8.6285 acre tract and said 0.6192 acre tract, a distance of 86.22 feet to a 5/8-inch iron rod found for the southwesterly corner of the residue of said 8.6285 acre tract, also being the northwesterly corner of said 0.6192 acre tract, and being in the existing easterly right-of-way line of U.S. 290 (width varies) as conveyed to the State of Texas as Parcel 22Y in deed recorded in Volume 7449, Page 576 of the Harris County Deed Records (H.C.D.R.);
- 2.) THENCE, North 44°55'13" West, along said existing easterly right-of-way line of U.S. 290, a distance of 378.30 feet to a point for the most westerly corner of the residue of said 8.6285 acre tract, also being the southwesterly corner of a called 0.6254 acre tract of land conveyed to Morgan Land Company in deed recorded under File Number Y095717, Film Code Number 596-42-1516 of said H.C.O.P.R.R.P.;
- 3.) THENCE, North 45°02'42" East, along the line common to the residue of said 8.6285 acre tract and said 0.6254 acre tract, a distance of 49.87 feet to a PK nail set at the point of intersection with the aforementioned proposed easterly right-of-way line of U.S. 290, being at Baseline Station 2852+45.96, 186.54 feet left;

THENCE, along said proposed easterly right-of-way line of U.S. 290, the following courses:

- 4.) South 44°55'13" East, a distance of 86.24 feet to an "X" in concrete set at the beginning of a tangent curve to the left, being at Baseline Station 2853+32.20, 186.54 feet left;**
- 5.) Southeasterly, along the arc of said curve to the left, having a Central Angle of 03°15'14"; a Radius of 2,979.00 feet; a Chord Bearing and Distance of South 46°32'50" East, 169.16 feet and an arc distance of 169.18 feet to an "X" in concrete set for a point of tangency at Baseline Station 2855+01.28, 191.35 feet left;**
- 6.) South 48°10'27" East, passing at a distance of 41.84 feet a 5/8-inch iron rod with TxDOT aluminum cap stamped "ADL" set for the beginning of an Access Denial Line, and continuing along said Access Denial Line for a total distance of 116.05 feet to an "X" in concrete set at the beginning of a tangent curve to the right, being at Baseline Station 2856+17.15, 197.93 feet left;**

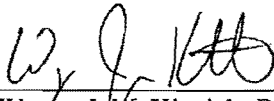
Revised: April 25, 2011
September, 2010
Parcel 311
Page 3 of 6 Pages

- 7.) Southeasterly, along the arc of said curve to the right, and continuing along said Access Denial Line, having a Central Angle of $01^{\circ}13'39''$; a Radius of 3,021.00 feet; a Chord Bearing and Distance of South $47^{\circ}33'37''$ East, 64.72 feet and an arc distance of 64.72 feet to the POINT OF BEGINNING, containing an area of 0.5036 of one acre (21,936 square feet) of land.

** The monument described and set in this call may be replaced with a TxDOT Type II Right-of-way marker upon the completion of the highway construction project under the supervision of a Registered Professional Land Surveyor, either employed or retained by TxDOT.

Access is prohibited across the Access Denial Line to the Highway facility from the abutting remainder property.

I, Wayne J. McKittrick, a Registered Professional Land Surveyor, hereby certify that the legal description above and the accompanying plat of even date represent an actual survey made on the ground under my supervision.

 4-25-11
Wayne J. McKittrick, R.P.L.S.
Texas Registration No. 4875
Survcon Inc.
5757 Woodway Avenue
Houston, Texas 77057
713-780-4123
Job No. 60019718

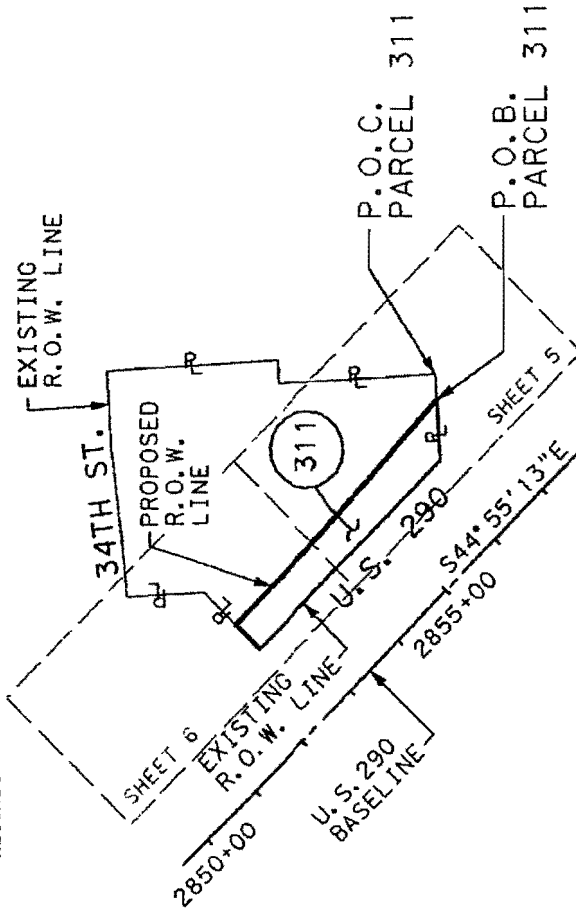
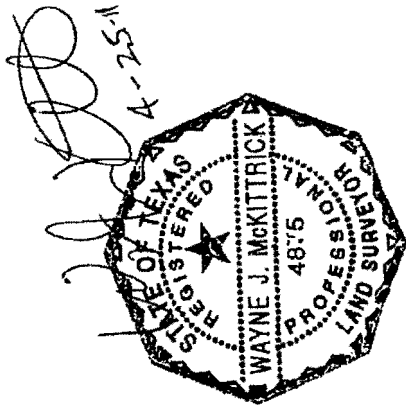


LEGEND

- SET TxDOT MONUMENT UNLESS NOTED OTHERWISE
- ⊗ FOUND CONCRETE MONUMENT
- SET 5/8" I.R. W/ PLASTIC CAP STAMPED "SURVCON INC."
- FOUND MONUMENT AS NOTED
- ▣ INDICATES SET 5/8" IRON ROD W/ TxDOT ALUMINUM CAP STAMPED "ADL" UNLESS NOTED OTHERWISE
- R PROPERTY LINE
- I.R. IRON ROD
- I.P. IRON PIPE
- P.O.B. POINT OF BEGINNING
- P.O.C. POINT OF COMMENCING
- H.C.D.R. HARRIS COUNTY DEED RECORDS
- H.C.M.R. HARRIS COUNTY MAP RECORDS
- H.C.O.P.R.R.P. HARRIS COUNTY OFFICIAL PUBLIC RECORDS OF REAL PROPERTY
- H.C.C.C.R. HARRIS COUNTY CIVIL COURT RECORDS

NOTES:

1. ALL BEARINGS AND COORDINATES ARE BASED ON THE TEXAS STATE PLANE COORDINATE SYSTEM, SOUTH CENTRAL ZONE, NAD83 (1993 ADJUSTMENT). (ALL FOUND MONUMENTS HEREON WERE TIED TO THE HORIZONTAL CONTROL POINTS ESTABLISHED FOR TxDOT ALONG THE US 290 CORRIDOR). ALL COORDINATES AND DISTANCES ARE SURFACE AND MAY BE CONVERTED TO GRID BY DIVIDING BY A COMBINED ADJUSTMENT FACTOR OF 1.00013.
 2. DRAWINGS ARE BASED ON ABSTRACTING PERFORMED JUNE 2007 & APRIL 2011.
 3. DRAWINGS ARE BASED ON FIELD SURVEYS PERFORMED JUNE 2007 THROUGH OCTOBER 2008.
 4. A PROPERTY DESCRIPTION OF EVEN DATE WAS PREPARED IN CONJUNCTION WITH THIS PARCEL PLAT.
- ** THE MONUMENT DESCRIBED AND SET MAY BE REPLACED WITH A TxDOT TYPE II RIGHT-OF-WAY MARKER UPON COMPLETION OF THE HIGHWAY CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED PROFESSIONAL LAND SURVEYOR, EITHER EMPLOYED OR RETAINED BY TxDOT.



WHOLE PROPERTY INSET

N.T.S.

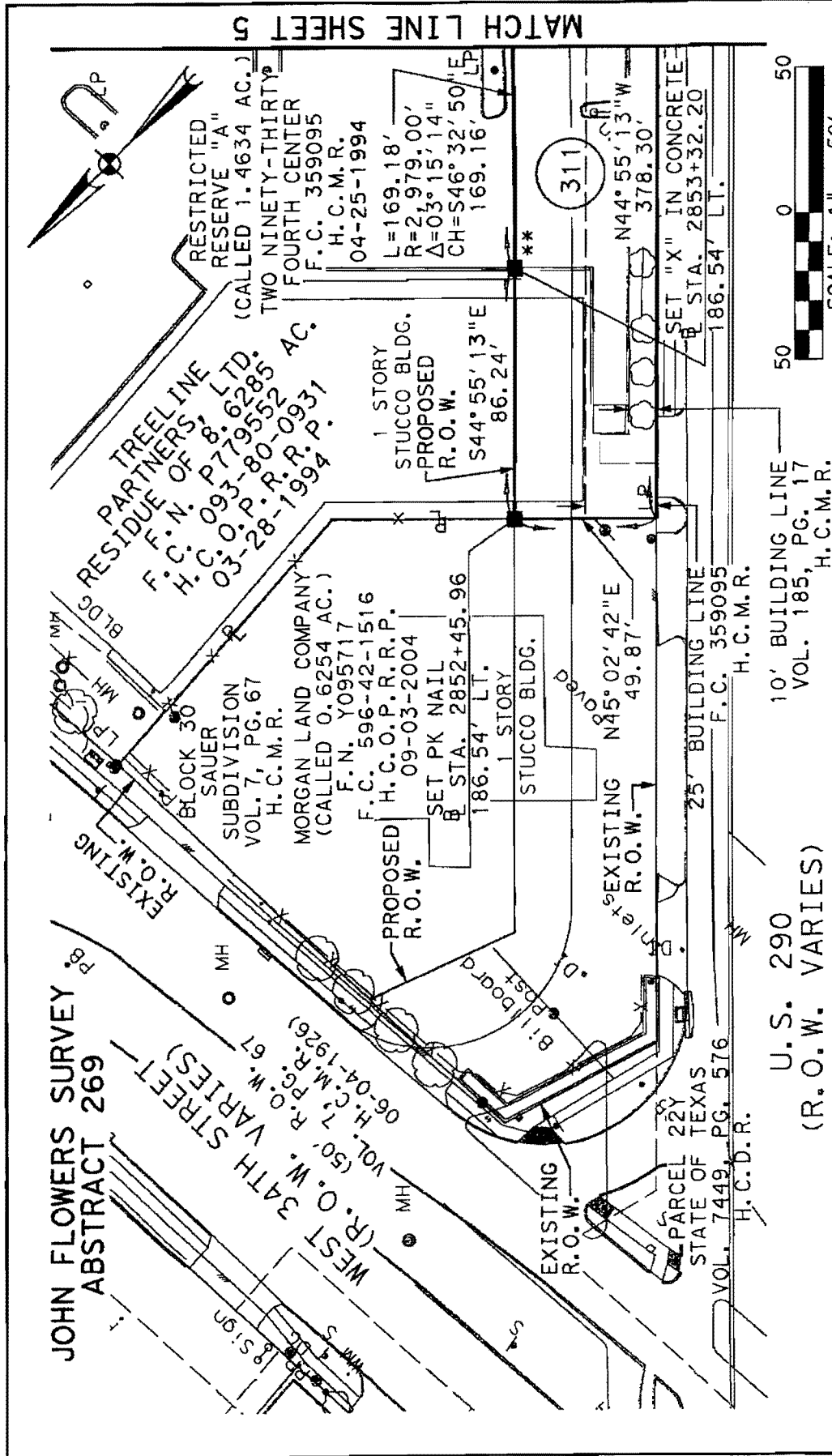
REVISIONS			
No.	DATE	DESCRIPTION	
1	4/25/11	UPDATED ADJOINER DEED INFORMATION	
EXISTING		TAKING	REMAINING
3.181 AC. (CALC.)		0.5036 AC. 21,936 S.F.	2.677 AC. LT.
PARCEL PLAT SHOWING PARCEL 311			
RCSJ: 0271-14-225			

COUNTY: HARRIS DATE: SEPT. 2010
HIGHWAY: IH 610 SCALE: 1" = 50'



SURVCON INC.
PROFESSIONAL SURVEYORS
5757 WOODWAY, HOUSTON, TEXAS 77057
PH. (713) 780-4123





PARCEL PLAT SHOWING
PARCEL 311
RCSJ: 0271-14-225

COUNTY: HARRIS
HIGHWAY: IH 610

DATE: SEPT. 2010
SCALE: 1" = 50'

SURVCON INC.
PROFESSIONAL SURVEYORS
5757 WOODWAY, HOUSTON, TEXAS 77057
PH. (713) 780-4123

County: Harris
Parcel: 311
ROW CSJ: 0271-14-225
I.H. 610: West of West 34th St. on US 290
To North and South of US 290 on IH 610 (Segment 3)

CATEGORY I BISECTION CLAUSE
AND IN ADDITION THERETO:

Title to all of that Masonry Restaurant Building located partially on the remainder of the herein described parcel, said improvement being bisected by the proposed northeasterly right of way line, with the result that the portion of the said improvement lying adjacent to the said right of way line would be in such a condition that it could not be adequately reconstructed at such location, plus the temporary right to enter upon the said remaining property for the sole purpose of removing all of the said improvements.

County: Harris
Parcel: 311
ROW CSJ: 0271-14-225
Project Limits: West of West 34th St. on US 290
To North and South of US 290 on IH 610 (Segment 3)

**CATEGORY II BISECTION CLAUSE
AND IN ADDITION THERETO:**

Title to a portion of that Masonry Entry Canopy located on the remainder of the herein described parcel, said improvement being bisected by the proposed northeasterly right of way line, with the result that the portion of the said improvement lying between the hereinafter described cut line and the new northeasterly right of way line would be in such a condition that it could not be adequately reconstructed at such location, said cut line lying between a point being located on the westerly exterior wall of the said improvement 25 feet east of the most westerly and most southerly corner of the said improvement, plus the temporary right of enter upon the said remaining property for the sole purpose of making the necessary cut along said cut line and removing all of the described portion of the said improvement.

County: Denton
Highway: Interstate Highway 35-E
R.O.W. CSJ: 0196-02-115

Page 1 of 3
November 7, 2011

Description for Parcel 171B

BEING a 1,560 square feet tract of land, situated in the Peter K. Wagner Survey, Abstract No. 1342, City of Lewisville, Denton County, Texas, and being all of a called 0.04 acre tract of land conveyed to 407 SL LLC, a Texas Limited Liability Company by deed recorded in Denton County Clerk File (D.C.C.F.) No. 2011-95862 of the Deed Records of Denton County, Texas (D.R.D.C.T.), and further described as part of Lot 2 in Block A of the "Blake C. Bowen Addition", an addition to the City of Lewisville, Texas as recorded in Cabinet R, Page 384 of the Plat Records of Denton County, Texas (P.R.D.C.T.), and being more particularly described by metes and bounds as follows:

COMMENCING at a point for a northerly interior corner of a tract of land conveyed to Lewisville 407 & 35 Partnership by deed recorded in (D.C.C.F.) No. 93-0018559 of the (D.R.D.C.T.), same being a northerly interior corner of said Lot 2, Block A, common to a southerly corner of Lot 1R in Block A of the "Blake C. Bowen Addition", an addition to the City of Lewisville, Texas as recorded in Cabinet Y, Page 368 of the (P.R.D.C.T.), from which point a ½" capped iron rod found, controlling monument (CM), bears South 16°59'42" East, a distance of 0.48 feet;

THENCE North 58°44'32" East, along the common northerly line of said Lot 2 and the southerly line of a tract of land conveyed to Rounds of Fun, Ltd., a Texas Limited Partnership by deed recorded in Volume 4983, Page 00447 of the (D.R.D.C.T.), passing the most easterly corner of said Lot 1R and the most southerly corner of Lot 3 in said Blake C. Bowen Addition recorded in Cabinet Y, Page 368 of the (P.R.D.C.T.) at a distance of 203.15 feet, and continuing for a total distance of 382.18 feet to a point for the most northerly corner of said Lot 2, the most easterly corner of said Lot 3, and located in the existing southwesterly right of way line of Interstate Highway 35-E (a variable width R.O.W.), from which point a 5/8" capped iron rod found bears South 64°38'21" East, a distance of 0.37 feet;

THENCE South 31°07'20" East, departing the southerly line of said Lot 3 and along the existing southwesterly right of way line of said Interstate Highway 35-E, a distance of 260.98 feet to a point for the most easterly corner of said Lot 2, same being the most easterly corner of said Lewisville 407 & 35 Partnership tract and located at the intersection with the existing northwesterly right of way line of F.M. 407 (a variable width R.O.W.);

THENCE South 58°49'53" West, departing the existing southwesterly right of way line of said Interstate Highway 35-E and along the common southeasterly line of said Lot 2 and the existing northwesterly right of way line of said F.M. 407, a distance of 24.87 feet to a 5/8" iron rod with cap marked "LTRA" set for the most easterly corner of said 0.04 acre tract and being the POINT OF BEGINNING having N.A.D. 83 (1993) Texas State Plane, North Central Zone (4202) surface coordinate of North 7077229.01, East 2422084.99;

- 1) THENCE South 58°49'53" West, continuing along the common southeasterly line of said Lot 2, the existing northwesterly right of way line of said F.M. 407, and the southeasterly line of said 0.04 acre tract, a distance of 62.42 feet to a 5/8" iron rod with cap marked "LTRA" set for the most southerly corner of said 0.04 acre tract;

County: Denton
Highway: Interstate Highway 35-E
R.O.W. CSJ: 0196-02-115

Page 2 of 3
November 7, 2011

Description for Parcel 171B

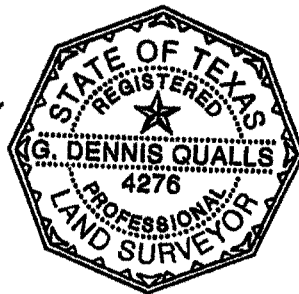
- 2) THENCE North 31°10'07" West, departing said common line and along the southwesterly line of said 0.04 acre tract, a distance of 25.00 feet to a 5/8" iron rod with cap marked "LTRA" set for the most westerly corner of said 0.04 acre tract;
- 3) THENCE North 58°49'53" East, along the northwesterly line of said 0.04 acre tract, a distance of 62.39 feet to a 5/8" iron rod with cap marked "LTRA" set for the most northerly corner of said 0.04 acre tract;
- 4) THENCE South 31°14'11" East, departing the northwesterly line of said 0.04 acre tract and along the northeasterly line of said 0.04 acre tract, a distance of 25.00 feet to the POINT OF BEGINNING, and containing 1,560 square feet [0.0358 acre] of land, more or less.

Basis of Bearings is a line between Texas Department of Transportation GPS Satellite Station R0610096 (North 7047746.872, East 2445861.919 Grid Coordinates) and Texas Department of Transportation GPS Satellite Station R0610058 (North 7091813.057, East 2418964.426 Grid Coordinates), North American Datum 1983 (1993), which is North 31°23'58" West - Texas State Plane, North Central Zone (4202).

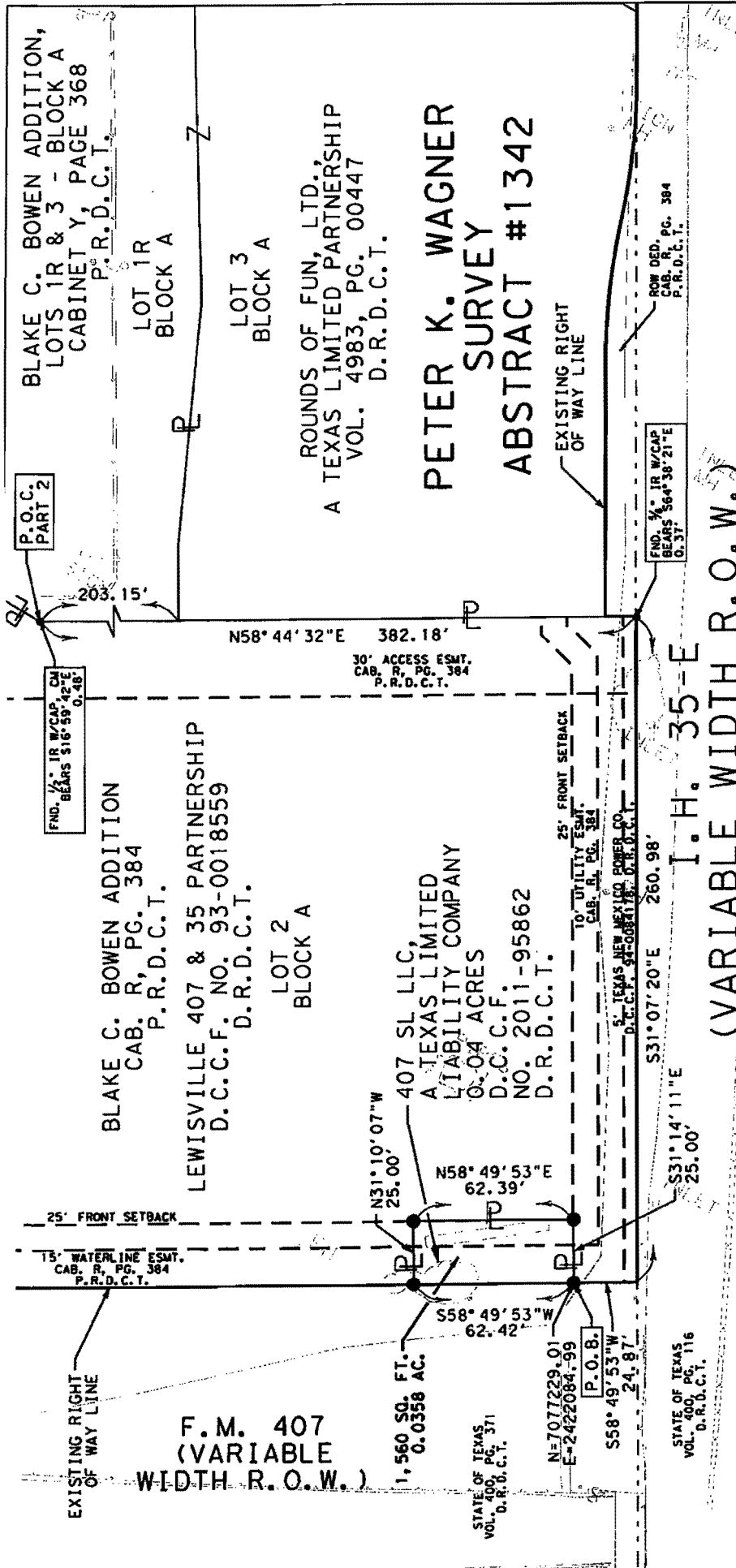
All coordinates shown are surface unless otherwise noted and may be converted to grid by dividing by the TxDOT combined scale factor of 1.00015063.

I, G. Dennis Qualls, a Registered Professional Land Surveyor in the State of Texas, do hereby certify that the land description and plat represent an actual survey made on the ground under my supervision.


G. Dennis Qualls, R.P.L.S. Date
Texas Registration No. 4276



Lina T. Ramey & Associates, Inc.
1349 Empire Central, Suite 900
Dallas, Texas 75247
Ph. 214-979-1144



LEGEND

- EXISTING ROADWAY RIGHT OF WAY BOUNDARY LINE
- EXISTING RIGHT OF WAY LINE
- NEW RIGHT OF WAY LINE
- PROPERTY LINE
- SURVEY LINE
- EXISTING EASEMENT LINE
- ACCESS DENIAL LINE
- ACCESS IS PROHIBITED ACROSS THE "ACCESS DENIAL LINE."
- TxDOT ALUMINUM CAP SET ON TOP OF A 5/8-INCH IRON ROD UNLESS OTHERWISE NOTED (AD)
- TxDOT BRASS DISK (BD)
- SET 5/8-INCH IRON ROD WITH RED PLASTIC CAP MARKED "LTRA"
- FOUND MONUMENT (AS NOTED)
- CM CONTROLLING MONUMENT

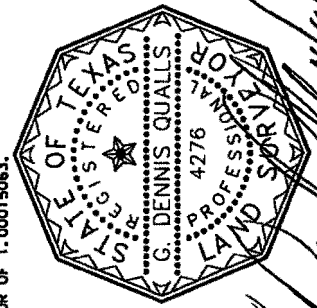
**THE MONUMENT DESCRIBED AND SET IN THIS CALL IF DESTROYED DURING CONSTRUCTION, MAY BE REPLACED WITH A TxDOT TYPE 11 RIGHT OF WAY MARKER UPON THE COMPLETION OF THE HIGHWAY CONSTRUCTION PROJECT UNDER THE SUPERVISION OF A REGISTERED PROFESSIONAL LAND SURVEYOR EITHER EMPLOYED OR RETAINED BY TxDOT.

GRAPHIC SCALE



CITY OF LEWISVILLE
A PLAT OF A SURVEY OF
PARCEL 171B
FOR INTERSTATE HIGHWAY 35-E
RIGHT OF WAY CSJ: 0196-02-115
A 1,560 SQ. FT., [0.0358 AC.]
TRACT OF LAND IN THE
PETER K. WAGNER SURVEY
ABSTRACT NO. 1342
CITY OF LEWISVILLE
DENTON COUNTY, TEXAS

EXHIBIT "A"
PAGE 3 OF 3



G. DENNIS QUALLS, R.P.L.S. NO. 4276 DATE

BASIS OF BEARINGS IS A LINE BETWEEN TEXAS DEPARTMENT OF TRANSPORTATION GPS SATELLITE STATION R0610096 (NORTH 7047746.872, EAST 2445861.919 GRID COORDINATES) & TEXAS DEPARTMENT OF TRANSPORTATION GPS SATELLITE STATION R0610098 (NORTH 7091813.057, EAST 2418984.426 GRID COORDINATES), NORTH AMERICAN DATUM 1983 (1993), WHICH IS N31° 23' 58" W-TEXAS STATE PLANE, NORTH CENTRAL ZONE 4202). COORDINATES SHOWN ARE UNADJUSTED UNLESS OTHERWISE NOTED. BEING CONVERTED TO GRID BY DIVIDING BY THE TADOT COMBINED SCALE FACTOR OF 1.00015063.

ROW CSJ Number: 1229-01-053
County: Maverick
Highway: F.M. 1021
Limits: From: Monroe to
To: Austin Street

August 24, 2010
Page 1 of 2

FIELD NOTES FOR PARCEL 2

Being 0.056 of one acre (2,453 square feet) of land, situated in the J. B. Roberts Survey No. 33, Abstract No. 793, Maverick County, Texas, being a portion of the remainder of that same tract of land defined as Tract I San Refugio Addition to City of Eagle Pass, recorded in Volume 6, Page 238, M.R.M.C.T. in a deed describing said Tract I and Tract II from L.C. de Hoyos, M.D. and wife, Mary Rita de Hoyos to Dr. Ruben de los Santos, executed January 10, 1990, recorded in Volume 278, Page 199, Maverick County Deed Records (M.C.D.R.); said 0.056 of one acre of land being more particularly described by metes and bounds as follows:

COMMENCING for reference at a TxDOT Aluminum disk found for the northwest corner of a called 0.64 acre tract conveyed to Nelson E. Gil in Doc. No. 110509, Book 679, Page 30 of the Official Public Records of Maverick County, Texas and the southwest corner of said Tract II in the easterly right-of-way line of Monroe Street (variable width), from which a found ½" iron rod bears South 31° 22' 26" East, 0.67 feet, thence as follows:

NORTH 02° 11' 08" WEST along said east right-of-way line of Monroe Street, a distance of 138.97 feet to a TxDOT Aluminum disk found for the **POINT OF BEGINNING** and southwest cutback corner at the intersection of said easterly right-of-way line of said Monroe Street with the proposed southerly right-of-way line of F.M. 1021 (60 foot width), having surface coordinates of X=1,487,703.82 and Y=13,443,476.54 all bearings and coordinates are based on the Texas State Plane Coordinate System, South Central Zone, North American Datum of 1983, 1993 Adjustment. All distances and coordinates shown are surface and may be converted to grid by dividing by a combined adjustment factor of 1.00007.

1. **THENCE, NORTH 02° 11' 08" WEST**, with the existing easterly right-of-way line of said Monroe Street, a distance of 22.15 feet to the existing southerly right-of-way line of F.M. 1021 (60' R.O.W.) and being the southwest corner of that 1,250 square foot tract conveyed from Dr. Ruben De Los Santos to the City of Eagle Pass in a deed dated September 19, 2000 and recorded in Book 612, Page 68 of the Official Public Records of Maverick County (O.P.R.M.C.) for the northwest corner of the herein described parcel;
2. **THENCE, NORTH 45° 52' 08" EAST**, with the existing southerly right-of-way line of F. M. 1021 and said cutback line, a distance of 66.70 feet to a 5/8" iron rod with TxDOT Aluminum cap found for a northeast cutback corner in the existing southerly right-of-way line of said F.M. 1021 and for the most northerly northwest corner of the herein described parcel, from which a found 1/2" iron rod bears South 24° 37' 29" East, a distance of 0.78 feet;

Parcel 2
Page 2 of 2

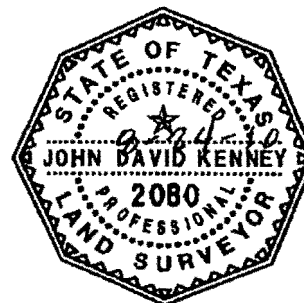
3. **THENCE, SOUTH 85° 29' 57" EAST**, with the existing southerly right-of-way line of F. M. 1021 and said Access Denial Line, a distance of 66.05 feet to a 5/8" iron rod with TxDOT aluminum cap found for the northwest corner of that called 0.55 acre tract conveyed from Arturo F. Flores and wife, Martha H. Flores to L.F.D. Inc. in deed dated October 19, 1993 and recorded in Volume 351, Page 386 M.C.D.R., for the northeast corner of the herein described parcel;
4. **THENCE, SOUTH 02° 09' 48" EAST**, with the westerly line of said 0.55 acre tract, a distance of 20.14 feet to a 5/8" iron rod with TxDOT aluminum cap set in the proposed southerly right-of-way line of F.M. 1021 for the southeast corner of the herein described parcel and the beginning of an Access Denial Line;
5. **THENCE, NORTH 86° 40' 54" WEST**, along the proposed southerly right-of-line of F.M. 1021 and said Access Denial Line, a distance of 65.73 feet to a TxDOT aluminum cap set for a cut back corner;
6. **THENCE, SOUTH 45° 33' 34" WEST**, continuing along said proposed southerly right-of-line of F.M. 1021 and said Access Denial Line, a distance of 67.24 feet to **POINT OF BEGINNING** and containing 0.056 of one acre (2,453 square feet) of land, more or less.

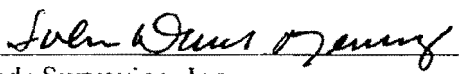
A plat of even date herewith accompanies this metes and bounds description.

Access is prohibited across the "Access Denial Line" to the highway facility from the remainder of the abutting property.

STATE OF TEXAS:
COUNTY OF MAVERICK:

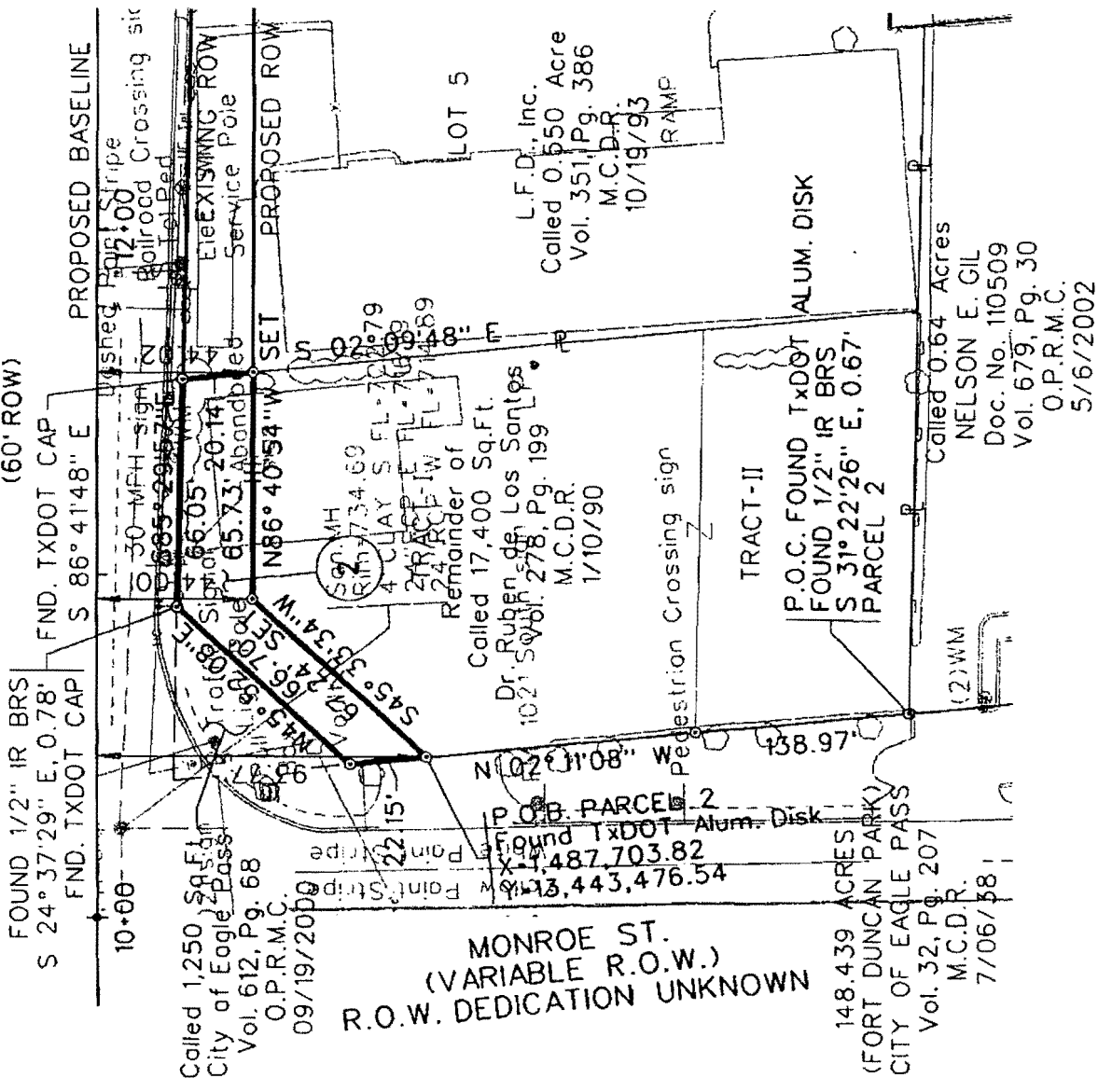
I hereby certify that this description is true and correct according to an actual survey made on the ground under my supervision.




Rods Surveying, Inc.
John David Kenney
RPLS No. 2080

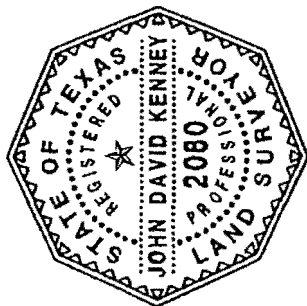
JAMES B. ROBERTS SURVEY NO. 33, A-793 SAN REFUGIO ADDITION VOL. 6, PG. 238, M.R.M.C.T.

FM 1021 (WILSON ROAD)
VOL. 6, PG. 238, M.R.M.C.T.
(60' ROW)



Notes: SCALE 1"=50'

1. All bearings and coordinates are based on the Texas State Plane Coordinate System, South Zone, North American Datum of 1983, 1993 Adjustment. All distances and coordinates shown are surface and may be converted to grid by dividing by a combined adjustment factor of 1.00007.
2. SET : Indicates a 5/8 inch iron rod set with a TXDOT aluminum cap.
3. SET1 : Indicates a cut "X" in Concrete set.
4. A metes and bounds description accompanies this plat.



I do hereby certify that the plat shown hereon conforms to the current General Rules of Procedures and Practices as adopted by the Texas Board of Professional Land Surveyors.

John David Kenney
JOHN DAVID KENNEY, R.P.L.S. #2080

EXISTING	TAKING	REMAINING
0.531 AC.	0.056	0.475
		2,453 SQ. FT.

RIGHT OF WAY SKETCH
SHOWING PROPERTY OF

PARCEL NO. 2

FM 1021 MAVERICK COUNTY
RODS SURVEYING INC. AUGUST 24, 2010
ROW CSJ : 1229-01-053

County: Maverick
Highway: FM 1021
Project Limits: From Monroe St.
 To Austin St.
ROW CSJ: 1229-01-053
Parcel 2

March 6, 2012

AND IN ADDITION THERETO:

Title to all of that metal building located partially on the remainder of the herein described parcel, said improvement being bisected by the proposed southerly right of way line, with the result that the portion of the said improvements lying adjacent to the said right of way line would be in such a condition that they could not be adequately reconstructed at such location, plus the temporary right to enter upon the said remaining property for the sole purpose of removing all of the said improvements.

County:	Dallas	Page 1 of 3	Revised May 22, 2009
Highway:	State Highway 121		
ROW CSJ No.:	0364-02-020		
Station:	From: 2011+67.95		
	To: 2018+72.42		

FIELD NOTES-PARCEL 16

Being 73,084 square feet of land more or less, being a part of Lot 1, Block 1, Phase 1, One Twenty One Business Park, as shown by plat recorded in Volume 99157, Page 27, Map Records of Dallas County, Texas, conveyed by Coppell 121 Partners, L.P to 121 Canyon Office, L.P., by deed dated February 17, 2005 and recorded in Volume 2005049, Page 05724, Deed Records of Dallas County, Texas, said 73,084 square feet of land being more particularly described as follows:

BEGINNING at a 5/8 inch iron rod with an aluminum cap stamped "TxDOT", set at the intersection of the proposed easterly right of way line of State Highway 121 and the south right of way line of Canyon Drive (variable width right of way), at the beginning of an Access Denial Line, on a curve for said Canyon Drive, said iron rod bears North 79°48'18" West, 166.28 feet (chord) from the northeast corner of said Lot 1, in said curve (R=460.27' and L=167.20'), said iron rod also bears North 89°22'16" West, 1884.65 feet from a 1/2 inch iron rod with a plastic cap stamped "Halff and Assoc" found at the most northerly northeast corner of Lot 2, Phase 1, Block 1 of said One Twenty One Business Park, said beginning point being 358.71 feet easterly of and at right angles to centerline survey station 2018+72.42; (**)

THENCE the following three (3) courses and distances along the proposed easterly right of way line of said highway:

- (1) South 75°27'28" West, a distance of 104.49 feet to 5/8 inch iron rod set with an aluminum cap stamped "TXDOT";
- (2) South 37°07'57" West, at 200.00 feet passing a 5/8 inch iron rod set with an aluminum cap stamped "TXDOT" for the end of said Access Denial Line, in all a distance of 256.90 feet to a 5/8 inch iron rod set with an aluminum cap stamped "TXDOT"; (**)
- (3) South 41°18'34" West, at 57.45 feet passing a 5/8 inch iron rod set with an aluminum cap stamped "TXDOT" for the beginning of an Access Denial Line, in all a distance of 267.76 feet to a 5/8 inch iron rod with an aluminum cap stamped "TXDOT" set on the common line between said Lot 1 and a tract of land conveyed to William F. Callejo, Trustee, by deed recorded in Volume 80004, Page 1835 of said Deed Records, and being the end of said Access Denial Line;
- (3) THENCE South 89°43'31" West, with said common line, departing said proposed right of way line and said Access Denial Line, a distance of 165.31 feet to the southwest corner of

County: Dallas
Highway: State Highway 121
ROW CSJ No.: 0364-02-020
Station: From: 2011+67.95
To: 2018+72.42

Page 2 of 3

Revised May 22, 2009

said Lot 1, same being the most northerly northwest corner of said Callejo tract, said point being on the existing easterly right of way line of State Highway 121, from which a found 1 inch iron pipe bears North 67°59'27" E, 0.60 feet and a found 1/2 inch iron rod bears South 38°04'05" West, 0.99 feet;

- (4) THENCE North 42°22'26" East, along said existing easterly right of way line, a distance of 690.72 feet to a 1/2 iron rod found at the northwest corner of said Lot 1, on the south right of way line of said Canyon Drive, at the beginning of a curve to the left, whose center point bears North 39°49'00" East, 460.27 feet;
- (5) THENCE southeasterly, along said south right of way line and said curve, through a central angle of 19°12'53", an arc distance of 154.36 feet to the POINT OF BEGINNING and containing 73,084 square feet or 1.678 acres of land more or less.

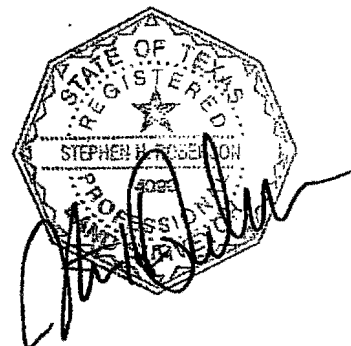
Notes:

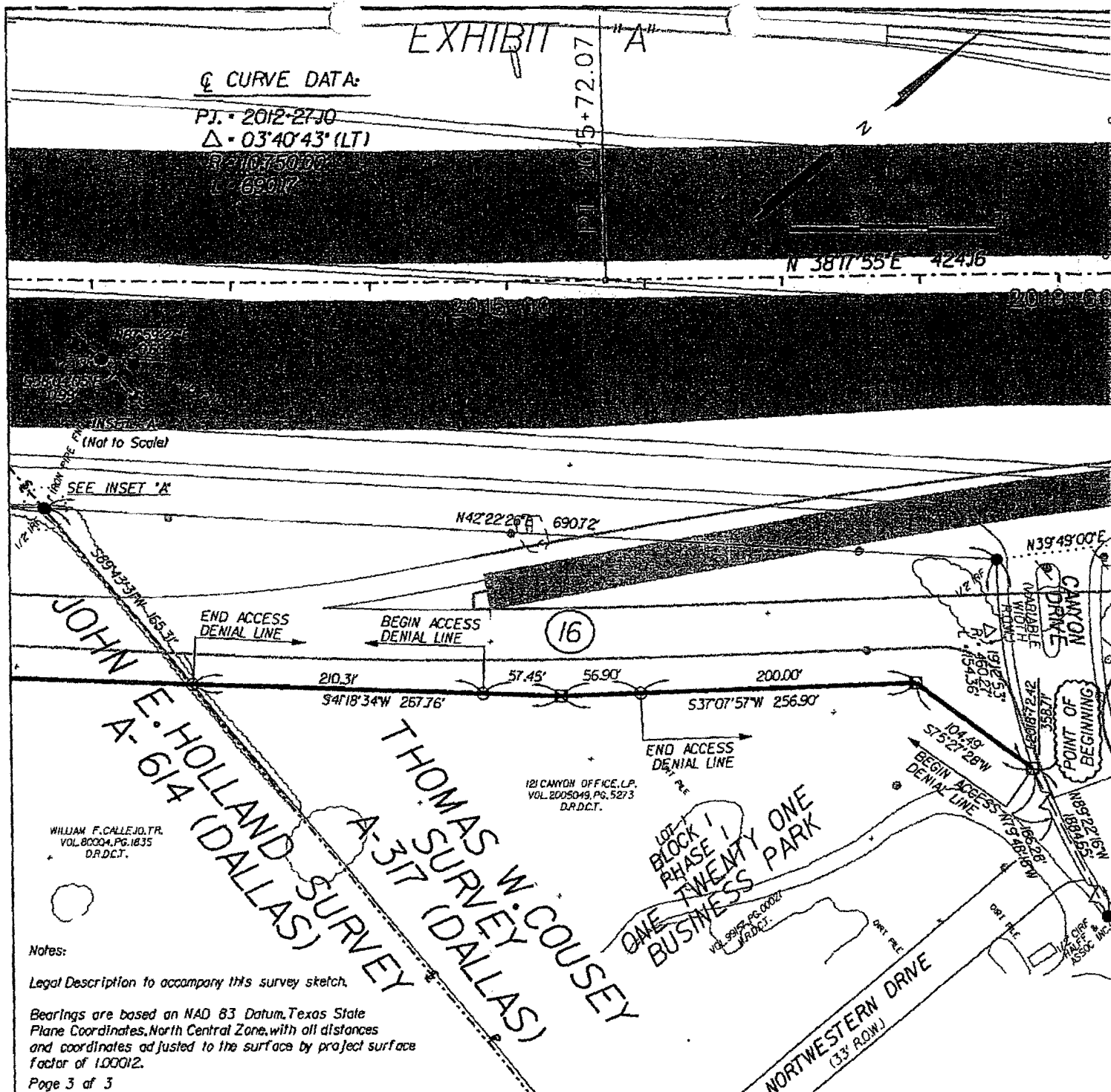
- (*) No monument was set at this corner because right of entry to the property was not granted by the property owner.
- (**) The monument described and set in this call may be replaced with a TxDOT Type II right of way marker upon completion of the highway construction project under the supervision of a Registered Professional Land Surveyor either employed or retained by TxDOT.

Survey sketch to accompany this legal description.

Directional control is based upon NAD 83 Datum, Texas State Plane Coordinate System, North Central Zone, with all distances and coordinates adjusted to the surface by project surface factor of 1.00012.

Surveyor of Record: Stephen H. Roberson
Texas Registration Number: 4090
Release date: 5/22/09



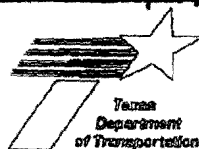


Legend

- • Marker found "as noted"
 - • 5/8" Iron rod w/ aluminum cap stamped "TxDOT"
 - • Type II monument to be set at the end of construction
 - • 5/8" Iron rod w/ aluminum cap stamped "TxDOT" to be replaced with Type II monument at the end of construction
 - ▲ • 60d Nail set
- P.D.B. • Point Of Beginning
- ℙ • Property Line
- ℚ • Survey Line
- ℔ • Fee Hook
- ℔ • Proposed Centerline
- D.R.D.C.T. • Deed Records, Dallas County, Texas
- P.R.D.C.T. • Plat Records, Dallas County, Texas
- [] • Record Information
- • Access Denial Line



5/22/09



PARCEL 16

121 CANYON
OFFICE, L.P.

73,084 square feet

STATE	DIST.	COUNTY	
TEXAS	18	DALLAS	
CONT.	SECT.	JOB	HIGHWAY NO
0364	02	020	S.H.121